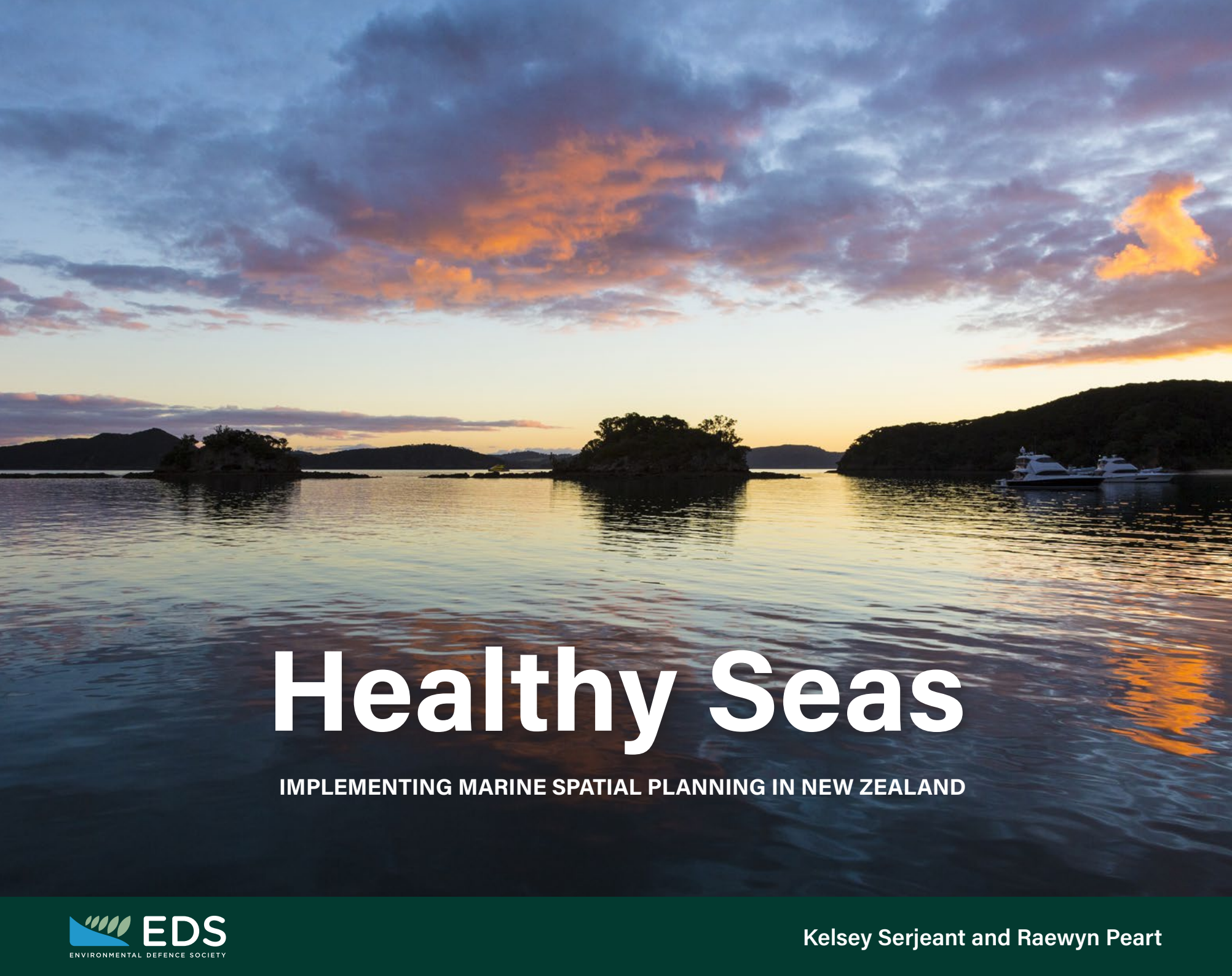




Healthy Seas

IMPLEMENTING MARINE SPATIAL PLANNING IN NEW ZEALAND

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List of abbreviations

DOC	Department of Conservation
EEZ	exclusive economic zone
EEZ Act	Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012
EPA	Environmental Protection Authority
EU	European Union
ITQ	individual transferable quota
MCAA	Marine and Coastal Area (Takutai Moana) Act 2011
MPI	Ministry for Primary Industries
MSP	marine spatial planning
MSY	maximum sustainable yield
NZCPS	New Zealand Coastal Policy Statement 2010
QMS	quota management system
RASP	regional and strategic partnership
RMA	Resource Management Act 1991

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Mokohinau Islands (*Tanya Peart*)

Executive summary

Marine spatial planning (MSP) has become increasingly popular with marine planners internationally. UNESCO has identified MSP initiatives in around 70 countries and all member states of the European Union are required to establish MSP by 2021. New Zealand's Sea Change Tai Timu Tai Pari project, which developed a marine spatial plan for the Hauraki Gulf Marine Park, represents the first attempt in New Zealand at a fully integrated MSP exercise. Efforts by central government to implement the Sea Change plan are currently underway, with a nine-member Ministerial Advisory Committee appointed by the Minister of Conservation and Minister of Fisheries in July 2019 to help shape the government's response to the plan.

Various definitions have been proposed for MSP, reflecting the evolving application of the tool over the last 30–40 years and the different drivers of, and outcomes sought from, MSP in various contexts. For the purposes of this report, and drawing on international literature, we adopt the following definition:

MSP in New Zealand is an integrated, strategic planning approach which guides the management of activities that cumulatively impact on the marine environment in order to maintain and restore healthy ecosystems while providing for kaitiakitanga and future uses.

This definition focuses on the underlying health and productivity of marine ecosystems. Such an approach is consistent with ecosystem-based management, which New Zealand is seeking to embed into marine management through the Sustainable Seas National Science Challenge.

We find that MSP could offer New Zealand considerable ecological, social and economic benefits. A key strength of MSP is its integrative power. It provides an overarching policy framework that operates across disparate marine management regimes, and therefore supports joint action on issues by different agencies. MSP offers New Zealand a more strategic approach to marine management, through supporting planning that is forward-looking and focused on the things that really matter. Such planning seeks to drive positive change over time through developing a vision, objectives, desired outcomes and a means of achieving them. Applied in this way, MSP would better enable marine management to provide for activities in appropriate places, respond to the cumulative impacts of activities and strengthen efforts to maintain healthy and productive ecosystems.

MSP could enhance the role of iwi and hapū in decision-making with respect to marine resources and better support the continuing obligations of kaitiaki towards the marine environment. MSP also provides a way to integrate mātauranga Māori into marine management, thus benefiting from knowledge of the marine area

based on centuries of active engagement with the environment and a detailed understanding of natural systems and cycles.

People are an integral part of the ecosystem within which MSP operates. New Zealand's estuaries, beaches and oceans support local, regional and national economies, create jobs and livelihoods, provide food and recreational opportunities, support cultural practices and offer spiritual respite. MSP offers a way to better engage local communities, user groups and industry in marine planning, can provide greater certainty for those seeking to undertake such activities, and can reduce conflicts between incompatible uses.

We review New Zealand's marine legislation for its compatibility with MSP and find the current legislative framework is fairly compatible. Integrated planning and management in the marine environment is an explicit or implicit objective in much of New Zealand's current legislation. Most legislation recognises the need to maintain the delivery of valuable ecosystem services for future generations, in particular, through the principles of sustainable management and utilisation. Existing legislation provides a range of tools to manage the spatial distribution of activities in and on the ocean.

However, some legislative barriers exist. These include a lack of a statutory mechanism to develop shared and overarching marine objectives and policies which apply across disparate marine management regimes. There is also a lack of statutory mechanisms to ensure implementation of the outcomes of an MSP process occurs as a holistic package, with implementation currently occurring under distinct legislation overseen by different Ministers. There is also no compulsion to undertake MSP under the current legislative framework, even if there are pressing issues in the marine environment, including serious environmental degradation.

Alongside legislative barriers there are implementation issues. Despite a range of tools being available under the Resource Management Act 1991 (RMA) to manage the marine environment in an integrated and strategic way, for some regions such management has not eventuated, or is at best nascent. With respect to fisheries, the legislation provides for the management of the wider impacts of fishing activity on marine species, habitats and biodiversity but, in practice, management has largely been directed at individual fish stocks within the framework of maximum sustainable yield.

We find that if MSP is to be successfully progressed more widely in New Zealand, it needs to be embedded more formally within New Zealand's marine management system, through a statutory framework for MSP.

In developing a statutory framework for MSP, this report draws on the lessons learnt from the Sea Change process, interviews with New Zealand experts, and a review of seven overseas jurisdictions that have put in place framework legislation for MSP. We also consider what functions a statutory framework for MSP might perform in New Zealand, identifying six core functions that we consider to be core to a statutory framework for MSP. These provide a useful guide in designing a future framework for MSP in New Zealand, and in assessing the pros and cons of various frameworks.

Finally, three options are proposed for implementing MSP in New Zealand. The options can be thought of as pragmatic stepping stones along a pathway towards the fully developed framework for MSP envisaged in Option 3. As such, no option is right or wrong, and each could be progressed sequentially drawing on the groundwork already laid.

Option 1: Non-statutory marine spatial plans. This option requires no regulatory or statutory changes to implement and could be progressed immediately. It provides an opportunity to develop a non-statutory **Strategy** and best practice **Guidance** for the design of MSP processes and would further develop MSP skill sets within relevant agencies. New Zealand is not starting from scratch in this regard and current efforts to implement Sea Change form an excellent foundation to build on.

However, without the development of a statutory framework in the longer term, there is a risk that MSP is not initiated or MSP processes fail to meet the objectives sought for them, seriously undermining their value. There are also significant procedural drawbacks with this option in regard to iwi, hapū and stakeholder participation, and scientific input and agency consideration of plan provisions being duplicated under the MSP process and again under the relevant statutory framework. In addition, implementation would occur under existing legislation, which has different purposes and is overseen by different Ministers. As such, it would be difficult to implement plan provisions as package.

Option 2: A Spatial Planning Act. This option establishes a mandate and process for MSP with the passing of a new Spatial Planning Act. Spatial planning is a tool that is applied in (and across) terrestrial and marine contexts, and a framework specifically for MSP could be included in a broader Spatial Planning Act which provides for spatial planning in both contexts.

Option 2 positions the Environmental Protection Authority (EPA) as the lead agency for MSP. This provided the Authority's marine expertise was improved, including by employing marine scientists and planners and ultimately building a team of specialist MSP-trained staff. The EPA would work within a policy

framework approved by the Minister for the Environment, developed by the Ministry, which we propose calling the **Marine Spatial Planning Strategy**.

Spatial plans are developed through the efforts of three key bodies: a **Marine Planning Partnership**, **Collaborative Working Group** and **Project Team**.

A Marine Planning Partnership governs the plan making process and sets terms of reference. Membership comprises an equal number of representatives from relevant agencies and iwi/hapū organisations (ie a 50:50 split) and members of the partnership would be senior level or political representatives from these organisations.

A Collaborative Working Group develops the plan. It comprises iwi/hapū and stakeholders. The Ministry for Primary Industries (MPI), the Department of Conservation (DOC) and the relevant council(s) each appoint a senior member to the Collaborative Working Group as non-voting members to ensure the final plan contains a set of implementable actions and is cognisant of existing agency programmes and budgetary cycles.

A Project Team supports the plan making process by providing technical support and expert advice on planning, science, economics, mātauranga Māori and public engagement. It is built from a core of specialist MSP-trained EPA staff and supplemented with staff contracted externally or seconded full time from MPI, DOC and/or councils.

When a draft marine spatial plan is complete, it is publicly notified by the EPA and public submissions are invited. The Environment Court is proposed as the body best suited to decide the regulatory provisions of a marine spatial plan, due to its independence. The Court would hold an inquiry, including a public hearing, on the regulatory provisions of a marine spatial plan, considering all regulatory provisions under their relevant empowering legislation. The Court would release a decision whereby MSP provisions are accepted, amended or rejected.

For RMA provisions, the Court would make a direction to the relevant local authority to amend RMA policy statements or plans without using a Schedule 1 process, to implement the Court's decision. The decision of the Environment Court could be appealed to the High Court on matters of law only.

For regulatory provisions intended to take effect under other legislation, such as the Fisheries Act 1996, Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012, or conservation legislation, the Court would make a formal report to the relevant Minister recommending that the relevant provisions in the marine spatial plan be implemented as proposed, or amended or rejected. The relevant Minister must implement the recommendations of the Court, or within a set timeframe, lay before the House of Representatives a written

statement setting out the reasons for his or her decision not to implement them. This is similar to the current process followed for water conservation orders under the RMA, and appears to have worked well.

The EPA would be responsible under the Spatial Planning Act for oversight and coordination of a MSP monitoring programme, with on-the-ground efforts largely undertaken by regional councils. A formal review of marine spatial plans would be required once every five years by the EPA.

Option 2 provides a significantly more integrated approach to marine management than Option 1 or the status quo. It achieves this through the development of marine spatial plans that have clear mechanisms for implementation as a holistic package. That said, implementation still occurs under existing legislation, which has different purposes and is overseen by different Ministers.

Option 3: An Oceans Act. This option provides a fully developed integrated framework for MSP embedded in comprehensive marine management legislation in the form of a new Oceans Act. A new Oceans Agency, operating at arm's length of the government, would be responsible for overseeing MSP, in addition to a broad range of other marine functions (potentially including fisheries management, marine protected areas, marine mammal protection, shipping, marine pollution and enforcement).

The Oceans Act would establish overarching principles for marine management. There would also be a requirement in the Oceans Act for a **Marine Policy Statement**, which would be a long-term policy document for the marine and coastal environment that would articulate national policy positions and guide decision-making.

The Oceans Act would also contain a framework for MSP. Many of the process features recommended in Option 2 would be applicable, with some exceptions.

The Oceans Agency would be the lead agency for MSP (rather than the EPA). The Oceans Agency would prepare a Marine Policy Statement and prepare the Marine Spatial Planning Strategy, with both documents approved by a new Minister for Oceans.

A Marine Planning Partnership would also govern MSP processes under an Oceans Act framework. Iwi/hapū and stakeholder representatives would collaboratively develop the plan, with senior members of each core agency participating as non-voting members. A Project Team would support the provision of science, mātauranga Māori and other expertise to the collaborative working group.

Plan approval and implementation would be far more streamlined as most mechanisms for implementation would be contained within the Oceans Act and implemented by the Oceans Agency, with the exception of catchment-based

plan provisions that would need to be implemented in RMA plans and policy statements. Public notification, submissions, and a hearing by the Environment Court would also be required under the Oceans Act framework.

The Oceans Agency would be required to oversee a monitoring programme that assessed the state of the environment in the marine spatial plan area and the performance of management measures contained in the marine spatial plan. A formal review of the plan and recommendations for updates would be provided once every five years.

Option 3 puts in place a thoroughly integrated approach to marine management and in this sense is the most preferable. Implementation of marine spatial plans would be far more streamlined as most mechanisms for implementation would be contained within the Oceans Act and lie within the jurisdiction of the Oceans Agency (with the exception of catchment-related management).

We conclude that Options 2 and 3 would each offer workable and effective approaches to progressing MSP more widely in New Zealand. Option 2 leaves existing marine management regimes remain intact under their distinct statutory regimes, which makes this Option implementable in the mid-term (18 months-2 years). Option 3 involves more significant statutory reform and therefore could be actioned over a longer term (3-5 years).



Blanket Bay, Doubtful Sound

Introduction

Assassination Cove, Bay of Islands

The purpose of this report is to recommend ways in which marine spatial planning (MSP) can be embedded into New Zealand's marine management system. This report follows two recent Environmental Defence Society publications which recommend MSP as a key tool to address New Zealand's marine management challenges. Both reports can be accessed at www.eds.org.nz.

The first of these publications, *Voices from the Sea*, investigates New Zealand's fisheries management system. It evaluates the extent to which current approaches to fisheries management are sufficient to support thriving fisheries and communities, supported by healthy marine ecosystems, for the benefit of current and future generations. *Voices from the Sea* concluded that fisheries management needs to be much more effectively integrated into the broader marine management context, and managed within an ecosystems-based management framework. A key tool proposed to achieve this is MSP.

The second of these publications, *Turning the Tide*, explores the utility of MSP as an approach to strengthen marine management in New Zealand. The report summarises recent international literature on MSP and investigates six leading overseas marine plans. *Turning the Tide* also conducts an in-depth review of the Sea Change Tai Timu Tai Pari MSP project (Sea Change) undertaken for the Hauraki Gulf Marine Park, and distils lessons learnt from this process.

The Sea Change marine spatial plan was developed through a multi-stakeholder collaborative process, led by a Crown-iwi co-governance structure. It was fully integrated, including all important activities within catchments and the sea, thereby enabling a focus to be placed on key drivers of environmental decline in the Hauraki Gulf. It also integrated mātauranga Māori and scientific approaches thereby drawing on a rich knowledge base. The final plan represented the agreement of mana whenua and the stakeholder working group on a common action plan for the Hauraki Gulf.

In its review of Sea Change, *Turning the Tide* found the process had some notable strengths and also some weaknesses. The two greatest strengths were the power of the collaborative process and integration of mātauranga Māori. The noted weaknesses included the drop-off in public involvement in the second half of the project and, on completion of the plan, the lack of a formal multi-agency or stakeholder implementation mechanism to take the plan forward. There was also poor agency involvement in the plan making process, leading to difficulties encountered down the track as agencies looked to implement the plan.

These learnings provide a useful basis on which New Zealand can move forward to implement MSP more broadly to other areas of the country.

Overall, *Turning the Tide* found that MSP has a lot to offer New Zealand. It enables integration across jurisdictional boundaries and between land and the sea. It provides an effective mechanism to harness scientific, local and indigenous knowledge in order to implement ecosystems-based management. It enables focus to be placed on protecting the underlying productivity of the marine environment while providing greater certainty for marine users. In addition, it enables the expression of kaitiakitanga and helps to build social capital and trust, which in turn enable complex issues to be better addressed.

An overarching finding of *Turning the Tide* was that if MSP is to be progressed more widely in New Zealand, it needs to be embedded more formally within New Zealand's marine management system. The current report explores how this might be achieved.

What is MSP?

When developing a framework for MSP in New Zealand, it is important to have some clarity around what MSP actually is, and therefore what it can be expected to deliver. MSP has become increasingly popular with marine planners internationally, with UNESCO identifying such planning initiatives (at various stages of progress) in around 70 countries.¹ All member states of the European Union (EU) are required to establish MSP by 2021, which has resulted in a plethora of planning activity in that region.²

Various definitions have been proposed for MSP. This is partly a reflection of the evolving application of the tool over the last 30–40 years and the different drivers of, and outcomes sought from, MSP in various contexts.³ For New Zealand's purposes, for reasons explained below, a useful way of thinking about MSP is as a tool enabling a move towards ecosystem-based management of our marine environment.⁴

Ecosystem-based management is an integrated approach to management that considers the entire ecosystem, and considers humans an integral part of that ecosystem. The goal of ecosystem-based management is to maintain an ecosystem in a healthy, productive and resilient condition so that it can provide the goods and services humans want and need. Ecosystem-based management differs from current approaches, which usually focus on a single species, sector, activity or concern; it considers instead the cumulative impacts of different sectors.⁵

Ecosystem-based management is now an underpinning principle in legislation for marine management internationally,⁶ and New Zealand has recently embraced the approach in making it the focus of the Sustainable Seas National Science Challenge. The Challenge is now halfway through a 10-year research programme and has been tasked with both enhancing the utilisation of our marine resources

within environmental and biological constraints, and improving decision-making and the health of our seas through applying ecosystem-based management.⁷

Ecosystem-based management is a principle underpinning MSP, but the question remains: What is MSP? UNESCO's 2009 publication *Marine Spatial Planning: A Step-by-Step Approach towards Ecosystem-based Management* provides the following definition:

*'Marine spatial planning (MSP) is a public process of analyzing and allocating the spatial and temporal distribution of human activities in marine areas to achieve ecological, economic, and social objectives that are usually specified through a political process.'*⁸

In 2010 a group of 21 scientists offered a definition which emphasises the delivery of ecosystem services:

*'Ecosystem-based MSP is an integrated planning framework that informs the spatial distribution of activities in and on the ocean in order to support current and future uses of ocean ecosystems and maintain the delivery of valuable ecosystem services for future generations in a way that meets ecological, economic, and social objectives.'*⁹

This definition is likely to be more relevant to New Zealand than the UNESCO definition as it expressly recognises the need to maintain ocean ecosystem services, and therefore brings a focus to the underlying health and productivity of marine ecosystems, consistent with ecosystem-based management.

In terms of the 'nuts and bolts' of MSP plan making, international jurisdictions have applied MSP in varying ways, tailoring it to differing circumstances. That said, in the review of international practice undertaken in *Turning the Tide*, broad similarities between MSP initiatives were evident.

Projects have been typically led by government agencies and take around 3–4 years. The planning processes differed between countries but all included a mix of stakeholder engagement and scientific assessments. While stakeholder advisory groups were frequently established to engage with key interest groups, no MSP project examined went so far as to include a full iwi/hapū and stakeholder-driven collaborative process similar to that undertaken for the Sea Change project.¹⁰

Science was always a key part of international marine spatial plan development, and most processes undertook an initial stocktake of available information. Many sought to fill key gaps during the planning process by commissioning new research. Science advisory groups were often used to help manage scientific input.

In terms of content, most of the plans did not include hard zoning, but many identified important ecological areas that required protection and areas suitable



Harataonga, Aotea

for new activities.¹¹ Only one plan examined (Haida Gwaii Marine Plan 2015, British Columbia) made provision for traditional use and management, with the plan being developed by a provincial government and a Haida Nation partnership body.¹²

The plans reviewed had varying approaches to monitoring of the state of the environment and the performance of the plan. The Massachusetts plan has the most extensive monitoring process. It is accompanied by a 'progress assessment and monitoring process' which takes note of decisions, captures lessons learned, highlights achievements, documents policy and makes management adaptations.

Implementation has been achieved in several ways. Some plans have statutory effect through being directly applied to permitting decisions. Others are formally identified as 'matters to be considered' when decisions are made. Yet other non-statutory plans are implemented by various government agencies through strong political leadership and multi-agency groupings.

In some jurisdictions, agencies have first engaged in MSP by undertaking non-regulatory pilot projects. In some such cases, pilot projects have led to a statutory framework being developed – such as with the Belgian North Sea Master Plan 2003 and Scotland's Pentland Firth and Orkney Waters Pilot Plan 2016.

New Zealand has its own pilot MSP project to learn from in the form of the aforementioned Sea Change. Completed in 2016, Sea Change provides a rich learning ground which future projects can benefit from. A summary of the lessons learnt from Sea Change is set out in Chapter 4.

For the purposes of this report, which ultimately seeks to develop a framework for MSP in New Zealand, we adopt the following modified definition of MSP proposed by Foley et al (2010), due to its consistency with the ecosystem-based management approach to marine management New Zealand is seeking to embed:

MSP in New Zealand is an integrated, strategic planning approach which guides the management of activities that cumulatively impact on the marine environment in order to maintain and restore healthy ecosystems while providing for kaitiakitanga and future uses.¹³

Methodology

This report has drawn on several key information sources: expert interviews, a review of overseas framework legislation for MSP, and an in-depth review of New Zealand's current marine management legislation. In addition, the review of Sea Change provided in *Turning the Tide* is heavily referenced in this report and provided a major impetus for undertaking this project.

Fifteen in-depth interviews were conducted with individuals (or in some cases several individuals) with expertise in marine policy, marine science, mātauranga

Māori, planning and governance. A semi-structured interview sheet was developed to help guide the interviews, with questions focused on what the 'nuts and bolts' of such a framework might be, including the purpose of MSP, content and scope of plans, provision for iwi and hapū use and management, role of various government agencies, stakeholder engagement, science provision, implementation and legislative options.

The interviews were undertaken on a confidential basis. The final list of interviewees included persons from regional councils and unitary authorities, three universities, a science consultancy, a law firm, an industry group, and three relevant government agencies.

A review of seven overseas jurisdictions that have put in place framework legislation for MSP also provided a key source of information. These were Massachusetts (USA), Canada, Victoria (Australia), the EU, Denmark, England and Scotland. The review was based on publicly available material and relevant legislation, policy documents, and marine spatial plans for these countries or states.

The in-depth review of New Zealand's current marine management legislation describes the extent to which existing legislation provides for, or is compatible with, MSP. This review sets out the jurisdiction of the legislation, its purpose, the extent to which it provides for integrated management, and the extent to which its measures have a spatial planning component.



Melbourne Docklands

Report structure

The report is structured into eight chapters as follows:

- **Chapter 1** introduces the report.
- **Chapter 2** describes current marine management challenges facing New Zealand.
- **Chapter 3** sets out New Zealand's current marine management legislation and describes the extent to which existing legislation provides for, or is compatible with, MSP.
- **Chapter 4** summarises key lessons from Sea Change.
- **Chapter 5** reviews seven overseas jurisdictions that have put in place framework legislation for MSP and identifies key features, differences and similarities between the statutory frameworks.
- **Chapter 6** is focused on what a MSP framework could deliver for New Zealand. It sets out the limitations of undertaking MSP through existing legislative or non-statutory processes, outlines how a framework for MSP could benefit New Zealand, and proposes a set of functions that a new framework for MSP would need to perform.
- **Chapter 7** is concerned with what a framework for MSP in New Zealand could look like. It makes recommendations on key design elements for implementing MSP in New Zealand. It then proposes three options for establishing a framework for MSP.
- **Chapter 8** presents the report's conclusions.

KEY MESSAGES

- MSP has become increasingly popular with marine planners internationally, with UNESCO identifying MSP initiatives in around 70 countries. Various definitions have been proposed for MSP, reflecting the diverse range of approaches by countries worldwide.
- Ecosystem-based management is now an underpinning principle in legislation for marine management internationally, and New Zealand has recently embraced the approach in making it the focus of the Sustainable Seas National Science Challenge.
- The goal of ecosystem-based management is to maintain ecosystems in a healthy, productive and resilient condition so they can provide the goods and services humans want and need. Ecosystem-based management differs from current approaches, which usually focus on a single species, sector, activity or concern; it instead considers the cumulative impacts of different sectors.
- As New Zealand seeks to embed ecosystem-based approaches, a useful way of thinking about MSP is as a tool enabling a move towards ecosystem-based management of our marine environment.
- For the purposes of this report, we define MSP in the following way: *MSP in New Zealand is an integrated, strategic planning approach which guides the management of activities that cumulatively impact on the marine environment in order to maintain and restore healthy ecosystems while providing for kaitiakitanga and current and future uses.*

Endnotes

- 1 UNESCO, nd
- 2 EU Directive on Maritime Spatial Planning 2014/89/EU (23 July 2014)
- 3 For a history of the development of MSP worldwide, including in-depth case studies, see Peart, 2018(a) and Hauraki Gulf Forum, 2011
- 4 See, for example, Ehler and Douvère, 2009, 7
- 5 Ehler and Douvère, 2009
- 6 See, for example, EU Directive and Marine and Coastal Act 2018 (Victoria, Australia)
- 7 National Science Challenges, 2018. The Sustainable Seas National Science Challenge has recently proposed seven principles to underpin marine ecosystem-based management in New Zealand reflecting international experience and the essential role of Māori in New Zealand society (see Hewitt et al, 2018)
- 8 Ehler and Douvère, 2009, 18
- 9 Foley et al, 2010
- 10 Peart, 2018(a), 7
- 11 Peart, 2018(a), 7
- 12 Peart, 2018(a), 55
- 13 Foley et al, 2010

Current marine management challenges

Coromandel Coast

In designing a framework for MSP, it is important to understand the marine management challenges in New Zealand that MSP could help to address. This chapter describes six categories of marine management challenges. In identifying these challenges, the authors drew on findings from the interviews with experts undertaken for this project, the review of New Zealand's current marine management legislation (provided in Chapter 3) and their own experience.

The first two challenges – poor environmental outcomes and the complex nature of the marine environment – provide important context for the remaining four challenges, which include legislative and administrative challenges; a lack of statutory mandate for pursuing positive outcomes; poor management of cumulative effects; and other issues with marine management in practice.

Poor environmental outcomes

New Zealand's marine environment faces increasing pressures from human activities taking place globally, within catchments, and in the sea. Globally induced ocean acidification and ocean warming from climate change are considered to present the most serious threat to New Zealand marine habitats and are highly likely to intensify throughout this century.¹

Human activities taking place in catchments also pose serious threats. For New Zealand's inshore marine habitats, sedimentation is considered to be the most serious of these because of its wide spatial extent.² Sewage discharge, increased nitrogen and phosphorus loadings, heavy metal and plastics pollution are also important stressors.³ In the marine environment itself, fishing, invasive species, coastal engineering and aquaculture have impacts, with the most extensive threat arising from bottom trawling.⁴

The state of environment reports produced by the Ministry for the Environment and Statistics New Zealand provide national level information for understanding the health of the marine and coastal environment. The recent synthesis report, *Environment Aotearoa 2019*, and the earlier, marine-focused report *Our Marine Environment 2016* provide evidence of poor environmental outcomes with respect to a number of indicators.

In relation to the health of our fisheries, *Environment Aotearoa 2019* found that in 2017 about half our fish stocks lacked sufficient information to assess their status. Of those which are routinely assessed, 84 per cent were considered within safe limits, with 16 per cent overfished, meaning that these stocks are depleted. Among the overfished stocks are snapper stocks in eastern Northland, the Hauraki Gulf and the Bay of Plenty. Ten stocks had collapsed, including scallop fisheries in Tasman Bay and Golden Bay, which were closed to fishing in 2016.⁵

Environment Aotearoa 2019 also reports on the threat status of marine species. Ninety per cent of seabirds, 80 per cent of shorebirds and 26 per cent of native marine mammals are either threatened with, or at risk of, extinction. The latest estimates suggest that only 63 adult individuals of the endemic Māui dolphin remain.⁶

These indicators only provide a partial understanding of the health of our marine environment. Gaps in national data for the marine environment make it hard to draw firm conclusions in some important areas. For example, we cannot quantify the state of marine habitats at a national level, or the full ecological impacts of commercial, recreational and customary fishing on coastal and open ocean ecosystems.⁷

Environmental outcomes for the marine environment are also described in regional and local level assessments. For example, in the Marlborough Sounds, Marlborough District Council has been monitoring different estuaries since 2012, and from 2015 the council and Department of Conservation (DOC) have been monitoring and surveying significant subtidal sites comprising biogenic habitats (those formed by living organisms such as horse mussels, tubeworms and bryozoans).



Flesh-footed shearwater

The overall findings of this monitoring are that several large subtidal habitats have been significantly reduced in size, most likely as a result of seabed disturbance caused by dredging or bottom trawling. The habitats are vulnerable to physical contact, and are slow to recover if they can at all, given repeated disturbance. Smothering of estuaries by fine silt as a consequence of land activities is also occurring.⁸

Another example is the Hauraki Gulf Forum's *State of the Environment of the Hauraki Gulf/Tikapa Moana/Te Moana-nui-a-Toi* reports. The Forum's 2017 report uses 11 environmental indicators to assess the state of the Gulf. Some indicators, such as heavy metals in Auckland's estuaries and nutrient loads from the Hauraki Plains, showed stable or slowly decreasing trends. Other indicators point towards the suppression of environmental values at low levels or progressive environmental decline. For example, fishing has reduced crayfish and snapper biomass by around 70–80 per cent in the Gulf, with the consequence that, in fished areas, the lack of snapper and crayfish predation has led to a reduction in kelp forest cover and lower reef productivity.⁹

'Business as usual' marine management is struggling to improve these poor environmental outcomes and new tools and approaches will be needed if we are to protect and restore coastal and marine ecosystems.

The complex nature of the marine environment

The complexity of coastal and marine ecosystems also contributes to marine management challenges:

*'Coastal ecosystems are among the most complex ecosystems on Earth. They contain numerous organisms and materials that interact through physical, chemical, and biological processes. Many of these processes are not well understood, posing considerable difficulties in determining the state of the environment and predicting change in response to natural or anthropogenic factors ...'*¹⁰

Such difficulties are heightened where there are multiple anthropogenic and natural stressors operating on the same marine ecosystems. In such cases, it can be difficult (and often impossible) to link a specific activity or stressor with adverse effects on ecological health. For example, the direct effects of a fish farm on dissolved nitrogen levels in seawater cannot easily be measured as the nitrogen is quickly taken up by phytoplankton. In addition, as nitrogen discharges are typically flushed away faster than they are taken up into the food web, any increased phytoplankton production occurs some distance away from the farm. By this stage other anthropogenic or natural stressors, such as land-derived organic matter or upwelling of nutrient-rich waters, are also in play, creating cumulative effects.¹¹

As technology develops, we can expect to see new activities being proposed for the marine environment. In recent years the first applications to mine in the exclusive economic zone (EEZ) have been made under the Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012. These related to iron ore extraction in the South Taranaki Bight (in 2013) and mining of phosphorite nodules on Chatham Rise (in 2014).¹² Offshore aquaculture is also being explored, with New Zealand King Salmon Limited applying for resource consent to investigate 13 exposed sites around the east coast of the South Island for salmon farming in 2019, followed by an application for consent for a salmon farm in Cook Strait.¹³ Assessing new activities such as these is complicated by uncertainty about the baseline environment, the nature and extent of adverse effects on the environment, and impacts on existing interests (eg fisheries).¹⁴

When there are also limited policy frameworks in place for such activities, marine managers are put in the invidious position of having to make consenting decisions on an ad hoc basis. Currently, unlike the Resource Management Act 1991 (RMA), the EEZ Act is not supported by guiding documents such as national environmental standards, policy statements or plans. With respect to aquaculture, marine managers have not anticipated aquaculture being proposed in offshore locations, and regional coastal plans do not contemplate the activity or provide a planning framework to manage it.¹⁵

Legislative and administrative challenges

A detailed description of the legislation relevant to marine management in New Zealand is set out in Chapter 3. This legislation splits marine management between the Ministry for Primary Industries (MPI) (fisheries, biosecurity), DOC (protected habitats and species, coastal marine area), and regional councils (most activities in catchments and the territorial sea including, for example, marinas and aquaculture but excluding wild fisheries harvest, marine reserves and marine mammal sanctuaries). In addition, the Ministry for the Environment is responsible for developing national policy statements and national environmental standards, which can have relevance to marine management. In essence, there are many pieces of marine legislation, some significantly dated, with no overarching mechanism to ensure they are interacting coherently.

Having multiple statutes to manage activities is not in itself problematic. In fact, there are several good reasons in theory to have separate statutes.¹⁶ However, in the marine environment, this fragmented approach is thought to be one of the contributing factors to the range of poor environmental outcomes outlined above.¹⁷

Firstly, gaps are evident between statutes, which has ultimately led to a lack of appropriate marine management tools. A particularly obvious gap is in marine

conservation legislation. The Marine Reserves Act 1971 provides for marine reserves within the territorial sea, with there being no similar legislation applying within the EEZ.¹⁸ The legislation is dated, with its purpose being for '*preserving them [areas of the sea] in their natural state as the habitat of marine life for scientific study*' as opposed to a means to achieve broader environmental or ecosystem objectives.¹⁹

Secondly, the fragmented nature of the legislation has led to management approaches that lack alignment in some fundamental ways. Decision-making under the Fisheries Act 1996, for example, is at odds with other environmental legislation, particularly in relation to provision for the involvement of local communities and the wider public. Peart et al (forthcoming) state:

*'The Fisheries Act does not provide for anything like the same level of public participation as in the RMA or even the EEZ Act [Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012]. There is no legislative provision for public submissions, hearings or appeal rights. There is no statutory provision for the development of fisheries policies or standards (although some non-statutory standards have been developed) and a poorly developed framework for fisheries plans. This means there is little opportunity for public input into setting the broader statutory management framework.'*²⁰

Public participation has much to offer fisheries management, supporting better decisions and promoting transparency and fairness. In practice, Fisheries New Zealand does go beyond the strict legislative requirements, providing the opportunity for public consultation (but not a public hearing) on many proposals, but the legislative misalignment remains.

Thirdly, fragmented marine management legislation has been one of the factors leading to the lack of 'joined-up' action on cross-cutting issues. Effectively addressing marine management challenges will frequently require a collaborative effort by multiple agencies. In Pelorus Sound, for example, a wide range of factors have been identified as likely drivers of the loss of extensive intertidal and subtidal green-lipped mussel reefs and biogenic habitats. These include overfishing of shellfish stocks, contact fishing methods such as shellfish dredging and finfish trawling, and increased sedimentation from forestry harvesting and changing land use.²¹ If protection of marine habitat in places like Pelorus Sound is to be achieved, a joint response by central government and local government agencies will likely be required.

MPI has a clear role with respect to habitat protection. The Fisheries Act contains the environmental principle that '*habitat of particular significance for fisheries management should be protected*'.²² In practice, however, this role is still to be fully realised. *Voices from the Sea* notes that while some preliminary research has been

undertaken, habitats of particular significance for fisheries management have yet to be formally identified, let alone protected, and other countries have made much greater progress in this area.²³

A common view of interviewees working in regional councils or unitary authorities was that a mechanism which would encourage the MPI, DOC and councils to share information, and ultimately to develop joined-up approaches to managing marine issues, would be welcome. Examples were provided by interviewees of where this had occurred and was working well, such as Marlborough District Council's joint programme with DOC to monitor and survey significant marine sites.

The variable success agencies have had in dealing with cross-cutting issues like habitat protection may point to the need for greater clarity about the roles of various agencies, as well as identifying which agency has overall leadership in addressing issues where there are multiple stressors and/or multiple agencies involved.

A lack of statutory mandate for pursuing positive outcomes

EDS's ongoing Resource Management System Reform project has noted that the RMA's existing reactive, effects-based character is concerned with preventing 'bads', not pursuing positive outcomes. The authors have called for a future resource management system where public authorities have clear mandates, linked to predictable sources of funding and resources, to pursue positive outcomes – not just prevent or manage potentially negative ones.²⁴

A key component of pursuing positive outcomes in the coastal marine area is enhancing and restoring degraded habitats to an acceptable state. There is currently direction for this approach in the New Zealand Coastal Policy Statement (NZCPS), in Policy 14 'Restoration of natural character' and Policy 21 'Enhancement of water quality'. The lack of widespread implementation of these policies indicates this requirement may need to be more clearly mandated in legislation and be supported by dedicated planning and funding.

Poor management of cumulative effects

The RMA definition of 'effect' is broad and includes any '*cumulative effect which arises over time or in combination with other effects*'.²⁵ Consent applications are required to include an assessment of environmental effects of the proposed activity (including cumulative effects) on the neighbourhood, wider community and ecosystems.²⁶

In addition, the NZCPS requires that policies be included in regional policy statements and plans which manage adverse cumulative effects on coastal

processes, resources or values under threat. This includes setting thresholds (including zones, standards or targets) or setting acceptable limits to change, to assist in determining when activities causing adverse cumulative effects are to be avoided.²⁷

This requirement – to not assess RMA effects in isolation and to strategically manage them – is critical in the marine environment where there are growing global, catchment and marine-based human stressors.

Despite this legislative recognition, failure to manage cumulative effects stands out as a key failing of current marine management, and is manifest in the poor environmental outcomes outlined earlier. Evaluations of cumulative effects management pin this failure on a common set of issues, including a lack of effective strategic oversight of decision-making often coupled with a lack of political will and low agency capacity to undertake necessary tasks.²⁸ As Brown et al (2016) state:

'It is fundamentally very difficult to manage cumulative effects on a case by case basis. While Regional Policy Statements and other high level instruments have often set strategic goals, implementation of them has generally been weak – too weak to constrain cumulative effects in many respects. There are clear signals that our implementation of strategy is the subject of concern and fairly so.'

There is a need to support better implementation of high level instruments, such as national and regional policy statements, through to operational solutions in order to manage cumulative effects – including through providing practical implementation tools that can be used in day-to-day environmental management such as resource consenting.²⁹

While this discussion has so far focused on cumulative effects managed under the RMA, some stressors in the marine environment lie outside the jurisdiction of the RMA and therefore the direct control of councils. This is because they are either spatially distinct (eg activities in the EEZ) or involve other regulatory responsibilities (eg natural weather-induced events or fishing activity).

Other marine legislation is less well suited to managing cumulative effects. Although recognising such effects, the EEZ Act is poorly configured to proactively address them due to its weak policy and planning framework and focus on case-by-case decision-making. The Fisheries Act includes a direction in its purpose statement to ensure sustainability by avoiding, remedying or mitigating any adverse effects (which include cumulative effects) of fishing on the aquatic environment.³⁰ In practice, the Act's purpose and environmental principles (section 9) remain underutilised due to the focus on managing harvest levels from individual fish stocks as opposed to managing interactions with other species in the food web and with marine habitat more broadly.



Cape Colville

Issues with marine management in practice

Marine management challenges also arise from various barriers to managing the marine environment in practice. A strong theme from the interviews was that the RMA and NZCPS provide councils with almost all the direction and tools needed to manage the marine environment in an integrated and strategic way (within the constraints of their jurisdiction), but for some regions such management has not eventuated, or is at best nascent.

The concept of integrated management of natural and physical resources is indeed embedded in the foundation of policy and planning documents promulgated under the RMA, and the NZCPS has specific policies requiring integrated management and strategic planning.³¹ Under the RMA these concepts are implemented by councils primarily through regional coastal plans and regional policy statements. Chapter 4 provides a detailed description of these RMA provisions.

Interviewees brought our attention to some regions where implementation of the NZCPS was still outstanding some nine years after its promulgation and despite the clear requirement to amend regional policy statements and plans to give effect to the provisions of the NZCPS '*as soon as practicable*'.³² A number of councils have particularly dated first-generation regional coastal plans that were made operative well before 2010 when the revised NZCPS was promulgated.

Various reasons were provided for this by interviewees. In some councils, the limited science and planning capability available has been dedicated to implementing the National Policy Statement for Freshwater Management rather than the NZCPS. This was thought to be due to greater pressure for action on freshwater (eg from rate payers and central government) and the specific implementation timeframes that the policy statement requires.

One view expressed was that we can only do strategic planning for activities where there is good biophysical information about the marine environment, but this is currently lacking in many regions. Without dedicated funding for science to assess, map or monitor the marine environment, the hope of improving this information base was considered slim in some regions.

Enforcement was another area of concern for interviewees. Some expressed the view that if councils are to take on expanded responsibilities in the marine environment such as identifying and protecting ecologically significant marine sites (and potentially using rules to exclude fishing from them), there would need to be a dedicated funding stream for enforcing those plan provisions. Another view was the cost of councils developing this capacity in the marine area would be significant and that it would not make sense to duplicate a relatively specialised compliance function already performed by DOC and MPI.

Despite such barriers, there are a number cases in which councils have sought to take a more strategic approach to managing the marine environment. Marlborough District Council's Proposed Environment Plan has identified areas or habitats assessed as having significant ecological values within the coastal marine area. Fishing activity that uses a technique that disturbs the seabed within any of the 'Ecologically Significant Marine Sites' is a prohibited activity under the proposed plan.³³

Marlborough District Council also has plans to obtain a dedicated funding stream for managing its coastal marine area by charging some activities for occupation of coastal space. Any coastal occupancy charges collected will be used for monitoring, research, education, habitat and natural character restoration and enhancement, marine biosecurity threats, and maintaining and enhancing public access.³⁴

The six challenges identified in this chapter are not an exhaustive list. They do, however highlight some of the challenges considered crucial to overcome if we are to improve marine management. These challenges are revisited later in the report when we discuss how a framework for MSP could benefit New Zealand and consider the functions a new framework for MSP would need to perform (Chapter 6).



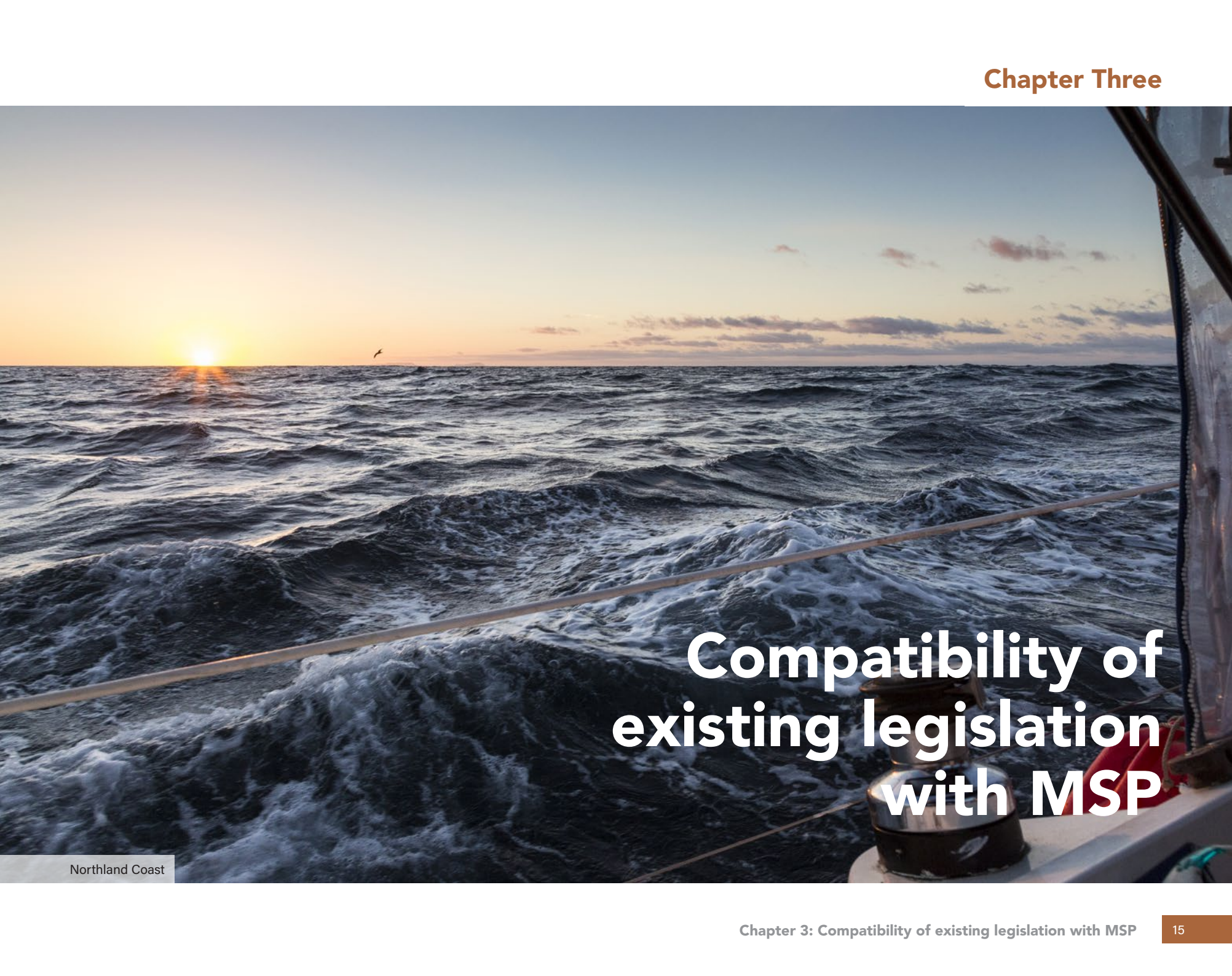
Waikawa

KEY MESSAGES

- New Zealand confronts a range of challenges in managing the marine environment. Key challenges identified in this chapter are poor environmental outcomes; the complex nature of the marine environment; legislative and administrative challenges; a lack of statutory mandate for pursuing positive outcomes; poor management of cumulative effects; and issues with marine management in practice.
- Poor environmental outcomes are evident in national level state of environment reports and in regional and local assessments. There are growing pressures on some values (eg global threats of ocean acidification and ocean warming from climate change are highly likely to intensify throughout this century) while other values remain suppressed at low levels (eg crayfish and snapper biomass in the Hauraki Gulf).
- The complex nature of the marine environment means it can be difficult, and often impossible, to link a specific activity with adverse effects on ecological health. There can be a particular paucity of science to assess adverse effects when new activities are proposed (eg offshore aquaculture). When there are also limited policy frameworks in place for such activities, marine managers are put in the invidious position of having to make consenting decisions in an ad hoc manner.
- Legislative and administrative challenges arise due to New Zealand's large number of fragmented and, in some cases dated, pieces of marine legislation. Marine management falls through the gaps between various legislative frameworks, lacks fundamental alignment across regimes, and often fails to join up action by agencies on cross-cutting issues (such as marine habitat protection).
- There is a lack of statutory mandate for pursuing positive outcomes in the marine environment, including enhancing and restoring degraded habitats to an acceptable state.
- Cumulative effects caused by multiple stressors from multiple activities in the marine environment are poorly managed.
- Challenges for marine management arise from limited marine science and planning capability in some agencies, limited biophysical information, and a lack of dedicated funding for marine management functions.

Endnotes

- 1 MacDiarmid et al, 2012
- 2 MacDiarmid et al, 2012
- 3 MacDiarmid et al, 2012
- 4 MacDiarmid et al, 2012
- 5 Ministry for the Environment and Statistics New Zealand, 2019, 84
- 6 Ministry for the Environment and Statistics New Zealand, 2019, 17
- 7 Ministry for the Environment and Statistics New Zealand, 2016, 8
- 8 Marlborough District Council, 2017, 59
- 9 Hauraki Gulf Forum, 2018, 119
- 10 Giles, 2019, 25
- 11 Giles, 2019, 36
- 12 Details of these applications are available at <http://www.epa.govt.nz>
- 13 Angeloni, 2019
- 14 Ellis et al, 2017
- 15 Peart, 2019, 54
- 16 See, for example, Severinsen and Peart, 2018, 124
- 17 See, for example, Brown et al, 2016
- 18 Marine Reserves Act 1971, s 3(1)
- 19 Marine Reserves Act 1971, s 3(1)
- 20 Peart et al, forthcoming
- 21 Handley, 2015
- 22 Fisheries Act 1996, s 9(c)
- 23 Peart, 2018, 68
- 24 Severinsen and Peart, 2018, 9
- 25 RMA, s 3
- 26 RMA, schedule 4, cl 7
- 27 NZCPS, policy 7
- 28 Brown et al, 2016, 55
- 29 Giles, 2019, 33
- 30 Fisheries Act 1996, s 8(2)
- 31 NZCPS, policies 4 and 7
- 32 RMA, s 55
- 33 Marlborough District Council, nd, vol 2, 16.7: Prohibited Activities. The law as it stands at the time of writing is that regional coastal plans can include provisions which control the externalities of fishing on the wider environment and can exclude fishing from spatially defined areas for the purpose of maintaining indigenous biodiversity. See *Attorney-General v Trustees of the Motiti Rohe Moana Trust* [2017] NZHC 1886. This is subject to an appeal to the Court of Appeal, with a decision pending
- 34 Marlborough District Council, nd, vol 1, policy 5.10.8



Compatibility of existing legislation with MSP

Northland Coast

The existing legislative environment is a critical consideration when designing a MSP framework for New Zealand. This chapter reviews the legislation currently applicable to New Zealand's marine area and examines the extent to which it provides for, or is compatible with, MSP. The sections below consider the RMA, EEZ Act, Fisheries Act, regional marine legislation, various pieces of conservation legislation, the Marine and Coastal Area (Takutai Moana) Act 2011 (MCAA) and the Maritime Transport Act 1994. The implications of the Treaty of Waitangi/Te Tiriti o Waitangi for MSP and marine management more broadly are considered alongside relevant Treaty settlement legislation.

Resource Management Act 1991

The RMA contains a number of concepts integral to successful MSP, including the integrated management of natural and physical resources and recognition of cumulative effects. These concepts are implemented primarily through regional coastal plans, with support from higher order national and regional policy documents. The RMA also addresses the interface with other planning documents. Another very important interface is between management under the RMA and the Fisheries Act, and this is discussed separately below.

Integrated management of natural and physical resources

The concept of integrated management is embedded in the foundation of policy and planning documents promulgated under the RMA. Regional coastal plans are the primary instrument responsible for ensuring that the sustainable management purpose of the RMA is achieved within the coastal marine area.¹ The area is defined to include the foreshore² and seabed, all coastal waters,³ and the air space above those waters between the line of mean high water springs and 12 nautical miles offshore. It is therefore all encompassing for the territorial sea but does not include catchments or the EEZ.

Regional coastal plans must be prepared in accordance with the functions of regional councils as set out in section 30 of the RMA. Section 30(1) requires that regional councils establish, implement and review provisions to achieve integrated management of the natural and physical resources of the region.⁴ 'Natural and physical resources' are wide ranging and include land, water, air, soil, minerals and energy; all forms of plants and animals (whether native to New Zealand or introduced); and all structures.⁵

In *New Zealand Shipping Federation of New Zealand v Marlborough District Council* (2006), the Environment Court stated that the council's integrated management function under the RMA appears to relate to generic integration of broadly defined resources at a wide regional level.⁶ It recognises that the protection of one resource may have positive or negative effects on another.⁷

The council's function to prepare a regional coastal plan is underpinned by two higher order policy documents; the NZCPS and the relevant regional policy statement. A regional coastal plan must 'give effect to' these policy instruments.⁸ This is the highest level of direction afforded by the RMA and, as the Supreme Court in *Environmental Defence Society v New Zealand King Salmon Company* (2014) held, it simply means 'implement'. The Court added that '[o]n the face of it, it is a strong directive, creating a firm obligation on the part of those subject to it'.⁹

The purpose of regional policy statements is to achieve the purpose of the RMA by providing (relevantly) policies and methods to achieve integrated management of the natural and physical resources of the whole region.¹⁰ They cover both catchments and the territorial sea and so can serve to integrate management across the land-sea boundary.

Policy 4 of the NZCPS requires that councils provide for the integrated management of natural and physical resources in the coastal environment, and activities that affect that environment. This is to be achieved through coordinated management or control of activities within the coastal environment and through working collaboratively with other bodies and agencies with responsibilities and functions relevant to resource management.¹¹

Policy 7(1) of the NZCPS addresses strategic planning and requires that when preparing regional policy statements or plans regional councils must consider where, how and when to provide for future development and other activities in the coastal environment at a regional and district level. This includes identifying areas that are either appropriate or inappropriate for particular activities and forms of subdivision, use and development. It therefore envisages spatial planning of the marine area.

From the above it can be seen that the RMA places importance on the need to integrate the management of resources within the coastal marine area. To date, case law has only limited a regional council's management of natural and physical resources within the coastal marine area with respect to fisheries and fishing resources.

Cumulative effects

The term 'effect' is widely defined by the RMA and includes any '*cumulative effect which arises over time or in combination with other effects*'.¹² This requirement – to not assess RMA effects in isolation – is important to an integrated MSP system.

Policy 7 of the NZCPS requires that policies be included in regional policy statements and plans which manage adverse cumulative effects on coastal processes, resources or values under threat. This includes setting thresholds (including zones, standards or targets) or setting acceptable limits to change to

assist in determining when activities causing adverse cumulative effects are to be avoided.

It is arguable that effects arising from activities permitted or granted under other marine Acts are relevant for the purpose of assessing cumulative effects under the RMA. As the Environment Court in *West Coast Environmental Network Inc v West Coast Regional Council* (2013) acknowledged in the context of a coal mining licence,¹³

‘[F]or present purposes, we are prepared to find that a legal consent under other legislation, authorising mining activity with no further consents or permissions necessary (particularly under the Resource Management Act), could constitute another manifestation of the “existing environment” which would trigger the need to take account of cumulative effects potentially arising from another proposal ...’

Other plans and documents

The RMA seeks to ensure consistency between plans developed under its ambit. For example, when preparing or changing its regional coastal plan, a regional council must have regard to the extent to which the regional plan needs to be consistent with the regional policy statements and plans of adjacent regional councils.¹⁴ Further, a regional coastal plan must not be inconsistent with any other regional plan for the region.¹⁵ Likewise, a district plan must not be inconsistent with a regional plan.¹⁶

In addition, when preparing or changing its regional coastal plan a regional council must, to the extent that its content has a bearing on resource management issues of the region, have regard to any management plans and strategies prepared under other Acts.¹⁷ In particular, it must take into account any relevant planning document recognised by an iwi authority and recognise and provide for or take into account (as applicable) the matters in a planning document prepared by a customary marine title group.¹⁸

Control of fishing

The extent to which regional councils can control fishing in policy and planning documents has been examined by the Courts in a number of cases relating to the Bay of Plenty proposed Regional Coastal Environment Plan.

The first line of court proceedings stemmed from an application to the Environment Court for a declaration on whether it is lawful for the regional council to include provisions in its plan that avoid, limit or discourage fishing methods to achieve a resource management purpose. The Environment Court’s declaration decision¹⁹ was first appealed to the High Court²⁰ and then to the Court of Appeal (decision pending).²¹

The second line of proceedings is an Interim Decision of the Environment Court (issued after the High Court’s declaration decision above) determining whether it is appropriate to include a control in the plan which prohibits the damage, destruction or removal of flora and fauna (which includes fish) within marked areas of the Motiti Natural Environment Management Area.²²

The core issue for the Courts in both proceedings was the interface between the Fisheries Act and the RMA. In the declaration proceedings, the Environment Court held that fisheries might be controlled under the RMA for reasons other than managing fisheries or fishing resources.²³ It cited a Select Committee report on the Fisheries Bill which noted:²⁴

‘The current interface reflects acceptance that fishing, like other activities, can be curtailed under the RMA and other statutes on the basis of effects on matters such as intrinsic and amenity values.’

The Court held that provided the control properly reflected an RMA purpose, then it would not be for the purpose of managing fisheries.²⁵ Not only is clarity of purpose essential, but so too is a rational connection between that purpose and the particular control adopted.²⁶

On appeal, the High Court accepted that the RMA and the Fisheries Act envisage overlapping control of fishing and the effects of fishing.²⁷ It held that regional policy and plan documents can only control the externalities of fishing on the wider environment, for example, to address effects on intrinsic values, wāhi tapu, navigation, natural landscape and non-fishing commercial or recreational activity.²⁸ They cannot regulate fishing for the purpose of managing the utilisation of fisheries resources or the effects of fishing on the biological sustainability of the aquatic environment as a resource for fishing needs²⁹ – these two matters being the jurisdiction of the Fisheries Act only.

Further, the High Court held that, notwithstanding the above, a regional council may perform its function to maintain indigenous biodiversity within the coastal marine area, but only to the extent strictly necessary to perform that function.³⁰ It could not do so for the ulterior purpose of controlling fishing. This means that the council will need to be satisfied that the control imposed is demonstrably necessary to maintain indigenous biodiversity per se.³¹

As noted above, the High Court’s determinations have been appealed to the Court of Appeal, which is currently considering the following questions of law:³²

- Does section 30(2) of the RMA only prevent a regional council from controlling activity in the coastal marine area if the purpose of those controls is either to manage the utilisation of fisheries resources or to maintain the sustainability of the aquatic environment as a fishing resource?

- To what extent, if any, does section 30(2) of the RMA prevent a regional council from performing its function to maintain indigenous biodiversity under section 30(1)(ga)? In answering this question, is it correct to say that it is only appropriate for a regional council to exercise this function if it is strictly necessary to achieve that purpose?

Turning to the proceeding focused on the Motiti Natural Environment Management Area, in its interim decision the Environment Court rejected submissions that the Fisheries Act takes precedence over other legislation in the same space. It noted that the RMA, Wildlife Act 1953, Reserves Act 1977 and other legislation all, to some extent, overlap in the marine space.³³ It concluded that the functions of the RMA and the Fisheries Act are intended to be complementary and interlinked, with actions under each intended to take into account and respect the other Act.³⁴

In that regard, the Court accepted that the regional coastal plan had a lacuna in relation to protection and enhancement of areas of significant indigenous biodiversity, outstanding natural character and outstanding features and landscapes within the Motiti area.³⁵ This was despite both the NZCPS and the regional policy statement seeking to avoid adverse effects on those areas, which include flora and fauna.³⁶ Accordingly, the Environment Court directed that the plan be amended by including a control prohibiting the damage, destruction or removal of flora and fauna (which includes fish) within marked areas of the Motiti area.³⁷

Overall, this means that the current law is (subject to the Court of Appeal's decision) that regional coastal plans *can* include provisions which control the externalities of fishing on the wider environment and can exclude fishing from spatially defined areas for the purpose of maintaining indigenous biodiversity.

Interplay with MSP

The above review indicates that the RMA is very compatible with a MSP regime. Within the confines of its jurisdiction, the Act already achieves, or seeks to achieve, integrated management of resources and sectors in the marine environment and across marine and land boundaries.

The limited jurisdiction of the RMA with respect to fisheries prevents implementation of a fully integrated approach under the Act to marine management, as envisaged by MSP. Some legislative linkages have been created between decision-making processes, such as the requirement for the Minister of Fisheries to consider RMA planning documents when making fisheries sustainability decisions and the requirement that regional councils consider plans and strategies prepared under other Acts and fisheries regulations when developing

regional policy statements. These provisions have not proved effective in practice, and there has been little interaction between the RMA and fisheries regimes.³⁸

The current law providing for regional coastal plans to include provisions which control the externalities of fishing on the wider environment represents progress in terms of integrated management under the RMA, but it does not provide for greater interaction between the RMA and fisheries regimes in a routine or systematic way.

Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012

The purpose of the EEZ Act is to promote the sustainable management of the natural resources of the EEZ and continental shelf and protect the environment from pollution from discharges or dumping.³⁹ It is very similar in structure to the RMA, but applies to the marine environment beyond the coastal marine area, that is, the EEZ and the continental shelf. The EEZ comprises all areas of the sea, seabed and subsoil which is 200 nautical miles seaward of the outer boundary of the territorial sea.⁴⁰ The EEZ Act also applies to areas of the continental shelf that extend beyond this area. The Act cannot be used to control lawful fishing under the Fisheries Act⁴¹ or the discharge of harmful substances under the Maritime Transport Act.⁴² Although the term 'integrated management' does not appear in the EEZ Act, the concept underpins a number of its provisions.

Management of effects

The EEZ Act has a wide ambit in terms of managing effects. Like the RMA, its definition of 'effect' includes '*cumulative effect that arises over time or in combination with other effects*'.⁴³ When developing regulations the Minister must take into account '*any effects on the environment or existing interests of allowing an activity with or without a marine consent, including (i) cumulative effects; and (ii) effects that may occur in New Zealand or in the waters above or beyond the continental shelf beyond the outer limits of the exclusive economic zone*'.⁴⁴ The effect of (ii) is to make effects arising from activities within the EEZ Act's jurisdiction, but which present themselves outside of its jurisdiction, relevant. This is reinforced by section 27 of the Act, which states that regulations can be made that prescribe requirements, methods or technical standards for the effects of restricted activities, including effects that occur in the territorial sea or in the sea above and beyond the continental shelf.⁴⁵

When developing regulations the Minister must also take into account the '*effects on the environment or existing interests of other activities undertaken in the exclusive economic zone or in or on the continental shelf*', including the effects of activities not regulated by the Act and extra-jurisdictional effects.⁴⁶ This would

include the effects of fishing activity. Finally, the effects of the activity on the biological diversity and integrity of marine species, ecosystems and processes⁴⁷ must also be taken into account when developing regulations.

Together, the above provisions ensure that the effects of an activity are not artificially constrained within the limits of an Act; rather they are assessed within the wider context of a marine environment, which is highly interconnected.

Spatial planning

The EEZ Act provides for spatial delineation of the marine area. Regulations made under Act may spatially define areas of the EEZ or continental shelf that⁴⁸

- Are important or especially vulnerable because of their biophysical characteristics
- Are important for specific uses
- Must be managed in coordination with other marine management regimes
- Are, or are likely to be, the subject of competition or conflict arising from the incompatibility of different activities
- Are experiencing, or likely to experience, cumulative adverse environmental effects

This includes closing an area to all activities restricted by the EEZ Act.⁴⁹ Current EEZ regulations recognise 'authorised locations' within which certain activities can occur, such as sea burials.⁵⁰ However, they do not undertake MSP in the sense of integrated management of resources. This is through a lack of implementation rather than ability, as EEZ regulations have the potential to operate like regional coastal plans and include requirements, methods or technical standards for specified areas.

Coordination between marine management regimes

The EEZ Act's ability to regulate beyond the EEZ could result in an EEZ Act regulation and an RMA planning instrument both being applicable to the management of the same effect. In theory, however, such an outcome should not result in conflicting management approaches, given that the EEZ Act specifically provides for management in coordination with other marine management regimes. These regimes are listed in the EEZ Act and include all of the Acts traversed in this report.⁵¹ Examples of coordinated management include the Minister being required to take into account the nature and effect of other marine management regimes when developing regulations⁵² and the requirement to manage regulations in coordination with policies, rules and functions under other regimes.⁵³

In addition, applications related to the same proposal can be processed and heard together under the EEZ Act.⁵⁴ Similarly, cross-boundary activities which require consent under both the RMA and the EEZ Act can be heard and processed together.⁵⁵ These processes further support an integrated MSP regime.

Interplay with MSP

Like the RMA, the EEZ Act is highly compatible with a MSP regime. Its provisions recognise the dynamic nature of the marine environment and the interconnectedness of resources and ecosystems. It seeks to coordinate management of effects across boundaries and it provides for spatial planning. It too, however, is limited in scope by the spatial extent of its jurisdiction.



Mahurangi Harbour

Fisheries Act 1996

The purpose of the Fisheries Act is to provide for the utilisation of fisheries resources while ensuring sustainability.⁵⁶ The Act defines 'utilisation' to mean '*conserving, using, enhancing, and developing fisheries resources to enable people to provide for their social, economic, and cultural well-being*'.⁵⁷ Fisheries resources means stocks or species of fish, aquatic life, or seaweed.⁵⁸ Aquatic life includes any species of plant or animal that inhabits water at any stage of its lifecycle, whether living or dead. It also includes seabirds (whether or not in the aquatic environment).⁵⁹

The Act defines 'ensuring sustainability' to mean '(a) *maintaining the potential of fisheries resources to meet the reasonably foreseeable needs of future generations and (b) avoiding, remedying, or mitigating any adverse effects of fishing on the aquatic environment*'.⁶⁰ 'The aquatic environment' means the natural and biological resources comprising any aquatic ecosystem. It includes all aquatic life and the oceans, seas, coastal areas, intertidal areas, estuaries, rivers, lakes, and other places where aquatic life exists.⁶¹

The Act's jurisdiction is spatially expansive. It applies to all marine areas out to the seaward boundary of the EEZ and all fresh and estuarine waters where fisheries resources are found.⁶² The Act focuses on managing fish harvesting activity and does not address non-fishing activities such as subdivision, use or development (whether land- or marine-based) that may adversely affect fish or their environment, with these being managed under the RMA.

Sustainability measures and integrated management

The Fisheries Act provides for a range of fisheries management tools to be deployed for the purpose of ensuring sustainability, which are collectively referred to under section 11 as 'sustainability measures'. The primary measure utilised is the setting of a total allowable catch for 'stocks' defined as '*a harvested species (or a group of species) within a spatially defined quota management area*'.⁶³ Commercial harvest is constrained by a total allowable commercial catch (TACC). In most cases the Act requires the harvest cap to be set at a level that maintains a stock at or above a level that can produce the maximum sustainable yield (MSY), having regard to the interdependence of stocks.⁶⁴ When considering how to move a stock towards that level the Minister must have regard to such social, cultural or economic factors as he or she considers relevant.⁶⁵

Other sustainability measures that may be deployed include restricting the size, sex or biological state of the species harvested; restricting the areas from which any species may be harvested; restricting the fishing methods that can be used; restricting the fishing seasons that apply; and other methods not specifically described which are aimed at ensuring sustainability.⁶⁶

In addition to the direction to ensure sustainability in the purpose statement, the Fisheries Act addresses the impacts of fishing on the wider marine environment through the incorporation of a set of environmental principles in section 9. These refer to associated and dependent species being '*maintained above a level that ensures their long-term viability*', maintaining the biological diversity of the aquatic environment, and protecting habitat of particular significance for fisheries management.

Although the Fisheries Act provides a range of tools to implement its purpose and environmental principles, the relevant provisions remain underutilised. Management of commercial fishing has largely focused on the setting and (in some cases) adjusting of TACCs. Management of recreational fishing has largely focused on imposing bag limits and minimum harvest sizes, followed by closures when stocks collapse.

There has been a notable lack of action with respect to implementation of environmental principle 9(c), '*habitat of particular significance for fisheries management should be protected*'. To date, no such habitats have been formally defined or protected.⁶⁷

With respect to marine habitat protection more generally, in the EEZ some measures have been put in place to protect benthic habitats. In 2000, 18 seamount areas covering 81,000 square kilometres of the EEZ were protected from bottom trawling and dredging. In 2007, Benthic Protection Areas covering 1.1 million square kilometres (30%) of the EEZ were closed to dredging and bottom trawling (while allowing monitored mid-water trawling).⁶⁸ The level of biodiversity protection provided by these areas is an issue of scientific debate, and their selection criteria have been criticised.⁶⁹

In the territorial sea, greater habitat protection in recent years has been achieved through implementation of marine protected areas (MPA) policy. As a result of the New Zealand Subantarctic marine protection process, in 2014 the territorial sea around Moutere Hauriri/Bounty Islands and Motu Ihupuku/Campbell Island was protected from Danish seining, adding to existing protections from bottom trawling and dredging in this area. As a result of the South Island West Coast marine protection process, in 2015 areas bordering the Hautai and Punakaiki Marine Reserves were protected from mobile and bottom-impacting commercial fishing methods.⁷⁰

Despite these efforts, habitat protection under the Fisheries Act in the territorial sea remains fairly limited. In coastal waters (less than 250 metres deep) 5 per cent of the seafloor area is not available to trawling, thereby providing protection to benthic habitats. This figure includes trawling prohibitions arising from marine

reserves, cables and pipelines, so the areas protected under Fisheries Act measures are even smaller.⁷¹

One reason for poor implementation of the environmental principles of the Fisheries Act may be the apparent conflict between the narrow MSY, stock-based fisheries approach mandated in one part of the Fisheries Act and the broader environmental principles provided for in another. The focus of MSY is on managing harvest levels from individual fish stocks, whereas the environmental principles address interactions with other species in the food web and with marine habitat more broadly.

Fisheries planning

The Fisheries Act provides for the promulgation of fisheries plans which can take a more forward-looking management approach. Such plans can relate to more than one species, fishing years or areas, or a combination of those things.⁷² They can include fisheries management objectives to support the purpose and principles of the Act, including rules to manage the interaction between different fisheries sectors.⁷³ Before setting any sustainability measure (including catch limits) or making any decision to regulate or control fishing, the Minister of Fisheries must 'take into account' fisheries plans.⁷⁴ This is a weaker direction than the RMA's 'give effect to' for national policy but remains an assertive statement that fisheries plans must be specifically considered. Further, it could be argued that if a fisheries plan contained directive rules, these could hold greater weight than more generic objectives. The fisheries plans that have thus far been created fall well short of their potential. They are very broad and high level and do not include a developed approach to environmental issues.⁷⁵

Customary fisheries

The Fisheries Act provides for customary fishing in a number of ways, all of which would need to be recognised by, and integrated into, a new MSP regime. The creation of taiāpure local fisheries and mātaimai reserves, as well as temporary closures, provide mechanisms through which fishing activity can be spatially managed by iwi and hapū.

Taiāpure-local fisheries are created by Order in Council for areas that have customarily been of special significance to any iwi or hapū as a source of food, or for spiritual or cultural reasons. The area is managed by a committee comprising members of the local Māori community.⁷⁶ Regulations can be promulgated for the conservation and management of fish, aquatic life, or seaweed within the taiāpure.⁷⁷

Mātaimai reserves are declared by the Minister of Fisheries through a Gazette notice where there is a special relationship between tangata whenua and the

area.⁷⁸ The Minister appoints a Tangata Kaitiaki/Tiaki to manage the area, who is then empowered to make bylaws (subject to approval by the Minister) restricting fishing activity. Regulations establishing such reserves can include general restrictions and prohibitions on the taking of fish, aquatic life or seaweed.⁷⁹ Commercial fishing is not normally permitted in a mātaimai reserve.

In addition to the above two mechanisms, the Minister of Fisheries can temporarily close any area of New Zealand's fisheries waters to fishing, or prohibit the use of any fishing method in an area.⁸⁰ Such closures or prohibitions can only occur if they will make provision for the use and management practices of tangata whenua in the exercise of non-commercial fishing rights,⁸¹ and in the case of the South Island they must also be likely to assist in replenishing the stock or species.⁸²

Integration with other Acts

Section 9 of the Fisheries Act codifies its relationship with the RMA. In summary, it states that no provision in a regional plan or coastal permit is enforceable if it allocates fisheries resources to particular sectors or if it confers a right to occupy land or marine space to a fisher to the exclusion of other fishers. This means, for example, that a regional coastal plan could not exclude commercial fishing in an area to give preference to recreational fishing. In addition, the Fisheries Act envisages specific integration with other legislation, as illustrated below:

- Before setting any sustainability measure the Minister of Fisheries shall have regard to any regional policy statement or plan prepared under the RMA, any management strategy or management plan under the Conservation Act 1987, sections 7 and 8 of the Hauraki Gulf Marine Park Act 2000, regulations made under the EEZ Act, and planning documents lodged by a customary marine title group under MCAA.⁸³
- The Minister of Fisheries shall take all reasonable steps to ensure that population management plans approved under the Wildlife Act or the Marine Mammals Protection Act 1978 are met (although no such plans have been approved as yet) and that the adverse effects of fishing on protected species are avoided, remedied or mitigated.⁸⁴
- The circumstances within which a coastal permit for aquaculture activities granted under the RMA may commence are dictated by the outcome of an Aquaculture Decision made by the Minister of Fisheries.⁸⁵ The decision determines whether the aquaculture activity will have an undue adverse effect on customary, recreational or commercial fishing.

Interplay with MSP

Of all the marine management regimes operating in New Zealand, fisheries management would probably need the most care when integrating it into a MSP regime. This is due to the current narrow management focus on individual species and the lack of strategic management of the impacts of fishing activity on marine habitats and ecosystems. Where environmental impacts have been addressed in coastal areas, these have largely focused on the bycatch of protected species such as seabirds and dolphins. In contrast, there has been a notable lack of action to identify and protect habitats of importance to fisheries.⁸⁶ While some work has been done to move New Zealand towards an ecosystems approach to fisheries management,⁸⁷ established fisheries management approaches have created considerable barriers to its uptake.⁸⁸

Having said that, there are no legislative proscriptions preventing MSP. To the contrary, the Fisheries Act includes some provisions which, in theory, support a wider assessment of effects than is commonly adopted. Furthermore, fisheries plans have the potential to give effect to integrated management and spatial planning, potentially bridging the gap between approaches.

Regional marine legislation

New Zealand has three pieces of regional marine legislation which provide additional recognition to areas of the coast with special environmental attributes. Of the three Acts, the Hauraki Gulf Marine Park Act has the most 'teeth' in an RMA context, as two of its provisions have effect as a national policy statement.

Hauraki Gulf Marine Park Act 2000

This Act relates to the coastal marine area on the east coast of the Auckland and Waikato regions.⁸⁹ Its purpose is to integrate the management of the natural, historic and physical resources of the Hauraki Gulf, its islands and catchments.⁹⁰ It aims to achieve this by creating the Hauraki Gulf Marine Park and establishing the Hauraki Gulf Forum.⁹¹

Within the Hauraki Gulf Marine Park, any person holding, controlling or administering land, foreshore, seabed, marine reserve, a taiāpure-local fishery or a mātaihai reserve must recognise and give effect to the purpose of the Park.⁹² The purpose includes recognition and protection of various natural and physical resources, and the relationship of tangata whenua with the Gulf, as well as sustaining the life-supporting capacity of resources within the Gulf.⁹³

The purpose of the Hauraki Gulf Forum is to integrate the management of resources in the Gulf and recognise the relationship of tangata whenua with the area.⁹⁴ It comprises representatives of iwi, councils and central government

departments. The Forum acts as an 'information centre' for the Park, preparing, receiving, sharing and monitoring relevant information. It also liaises on matters relevant to the exercise of the Forum members' statutory functions in the Gulf.⁹⁵ Notably, the Forum was instrumental in the development of Sea Change, New Zealand's first marine spatial plan, thereby indicating how regional approaches can result in innovation.

The Forum's functions are underpinned by its mandate to promote sections 7 and 8 of the Act,⁹⁶ which must also be treated as a NZCPS.⁹⁷ This means that all regional coastal plans must 'give effect to' these sections and resource consent applications must 'have regard to' them.⁹⁸ Section 7 recognises the national significance of the Hauraki Gulf, and section 8 sets out management objectives, which include a list of matters that should be protected, maintained or enhanced. All regional policy statements and plans that apply to the Hauraki Gulf, its islands and its catchments must not conflict with sections 7 and 8 of the Act.⁹⁹ However, if there is a conflict between these and the NZCPS, the NZCPS will prevail.¹⁰⁰

Kaikōura (Te Tai o Marokura) Marine Management Act 2014

This Act applies to a coastal marine area (the 'Te Whata Kai o Rakihouia i Te Tai o Marokura—Kaikōura Marine Area') around the Kaikōura Peninsula.¹⁰¹ Its purpose is to recognise the importance of that area due to its unique coastal and marine environment and distinctive biological diversity and cultural heritage.¹⁰² The Act aims to provide measures which will assist in the preservation, protection and sustainable integrated management of the coastal and marine environment and biological diversity of Kaikōura.¹⁰³ It also acknowledges the importance of kaitiakitanga and local leadership.¹⁰⁴

Practically, the Act establishes the Kaikōura Marine Guardians,¹⁰⁵ a group tasked with providing advice on any biosecurity, conservation or fisheries matters related to the Kaikōura Marine Area.¹⁰⁶ It also establishes a marine reserve, a whale sanctuary, a New Zealand fur seal sanctuary, three mātaihai reserves and two taiāpure-local fisheries. In this way, the Act was used to bypass the normal statutory processes to create these areas under various other pieces of legislation (Marine Reserves Act, Marine Mammals Protection Act and Fisheries Act).

Fiordland (Te Moana o Atawhenua) Marine Management Act 2005

This Act relates to a coastal marine area termed the Fiordland (Te Moana o Atawhenua) Marine Area. The purpose of the Act is to implement measures to assist in the preservation, protection and sustainable management of the marine environment and biological diversity of the Fiordland Marine Area; to facilitate and promote cooperation between the Fiordland Marine Guardians and management agencies; and to acknowledge the importance of kaitiakitanga.¹⁰⁷

Practically, the Act establishes eight marine reserves (in accordance with the Marine Reserves Act) within the Fiordland Marine Area¹⁰⁸ and the Fiordland Marine Guardians.¹⁰⁹ The Guardians have a number of functions but, in summary, they are responsible for providing advice on fisheries management, biosecurity, sustainable management, and marine preservation and protection.¹¹⁰ Of particular note, the Guardians are tasked with facilitating and promoting the integrated management of the Fiordland Marine Area.¹¹¹

The Act also includes a schedule of provisions which are deemed to be part of the Southland Regional Coastal Plan.¹¹² The provisions acknowledge the new marine reserves as well as 23 'China Shops' (10 of which are within the boundaries of the new marine reserves), which are areas with outstanding biodiversity. They also provide specific guidance and regulations on discharges, structures, anchorages, moorings and diving.¹¹³ If there is any inconsistency between the Fiordland legislation and other legislation such as the Fisheries Act or RMA, the other Acts prevail.¹¹⁴

In *Cruising Milford Sound Ltd v Southland Regional Council* (2005)¹¹⁵ the Environment Court took a rather dim view of the Fiordland legislation.¹¹⁶ While

acknowledging that the Act was a relevant consideration for the Court under section 104(1)(c) of the RMA,¹¹⁷ the Court then commented that it appeared to be no more than a specific restatement of the RMA.¹¹⁸ Given that the RMA prevails in the event of conflict, the Court stated that the status of the Fiordland legislation when considering an application under the RMA was not clear.¹¹⁹

Interplay with MSP

The above three Acts all support an integrated management approach and are compatible with a MSP regime. They align closely with the RMA and other conservation legislation. Within a wider MSP framework, they could form special zones, each with their own specific management objectives. The areas within each Act afforded particular protection (ie the reserves and sanctuaries) would need to be recognised in any wider plan, but that would also be true for analogous areas existing elsewhere around the coast. Depending on the structure of any MSP regime, the different groups established under each Act could form part of the regulator for that particular area, or operate as non-statutory interest groups with special participatory and information-gathering and -sharing roles.



Doubtful Sound

Marine conservation legislation

Relevant conservation legislation includes the Conservation Act and the earlier Marine Reserves Act and Marine Mammals Protection Act, which now operate within its ambit. The Conservation Act does not, in and of itself, have jurisdiction over the coastal marine area. Rather, its focus is on 'land' held for conservation purposes.¹²⁰

Notwithstanding its jurisdiction, the Conservation Act is relevant to the coastal marine area. The Director-General of Conservation is responsible for preparing and processing conservation management strategies and plans which must be approved by the Conservation Authority.¹²¹ Conservation management strategies seek to integrate all resources controlled by DOC, including those in marine areas. Conservation management planning is applied to marine reserves and marine mammal protection matters.

Marine reserves

The Marine Reserves Act provides for the establishment of marine reserves which preserve areas of New Zealand containing underwater scenery, natural features or marine life of such distinctive quality, or so typical, beautiful or unique that their continued preservation is in the national interest.¹²² A marine reserve can comprise an area of seabed within the territorial sea or New Zealand's internal waters, or the foreshore of New Zealand's coast, and applies to the waters above those areas.¹²³ It does not apply to the EEZ. The overall legislative purpose of marine reserves is for the scientific study of marine life, thereby reflecting the original promoters of the legislation (marine scientists) and the age of the legislation (it is now close to 50 years old).¹²⁴

Once a marine reserve is established through the procedure set out in the Act, the Director-General of Conservation is tasked with managing it in accordance with management planning documents approved under the Conservation Act.¹²⁵ In the exercise of any powers vested in the Director-General, he or she must ensure that reserves are maintained so far as possible in a state of nature and that reserves are available for the purpose of scientific research.¹²⁶ The public can access and use reserves¹²⁷ but fishing is banned unless authorised by the Minister of Conservation.¹²⁸ The New Zealand Conservation Authority has a watchdog role and must alert the Director-General of any matters arising concerning the welfare of marine reserves.¹²⁹

Under the Marine Reserves Act, the purpose of conservation management strategies is to establish objectives for the integrated management of marine reserves.¹³⁰ In effect, this seeks to ensure that marine reserves are managed in an integrated manner with other matters managed by DOC under other Acts.

The purpose of conservation management plans is to establish objectives for the management of each marine reserve.¹³¹

Marine mammal protection

The Marine Mammals Protection Act provides a range of tools to manage human interactions with marine mammals including prohibiting activities such as hunting and harassment without a permit, managing fisheries bycatch through the development of population management plans, and providing for the establishment of marine mammal sanctuaries (which can provide spatial protection for the animals). A sanctuary cannot be established in any national park, or in any reserve, including a marine reserve.¹³² The Minister can restrict activities within the sanctuary that can impact marine mammals such as fishing and seismic testing.¹³³ However, in practice, fishing within marine mammal sanctuaries has often been controlled under the Fisheries Act instead of the Marine Mammals Protection Act.

The Minister can grant permits to hold or take any marine mammal, or to import or export marine mammals or their products.¹³⁴ When considering a permit application, the Minister must have regard to the need to conserve, protect or manage any marine mammal; any international agreement to which New Zealand is a party; and any submissions received.¹³⁵ Regulations under the Act also provide for the permitting of marine mammal tourism operations which may seek to view and/or swim with the animals.¹³⁶

Similar to the case with marine reserves, the Director-General of Conservation has marine mammal management roles.¹³⁷ Such functions must be undertaken in accordance with statements of general policy and any conservation management strategies or plans in force.¹³⁸ The purpose of conservation management strategies under the Marine Mammals Protection Act is to establish objectives for the integrated management of marine mammals.¹³⁹ In effect, this seeks to ensure that marine mammals are managed in an integrated manner with other matters managed by the DOC under other Acts. The purpose of conservation management plans is to establish objectives for the management of marine mammal sanctuaries.¹⁴⁰

Interplay with MSP

Conservation legislation provides for the establishment of marine mammal sanctuaries and marine reserves – both important protective tools relevant to a broader MSP process. The management of these areas is to be integrated with other resources managed by DOC through the development of conservation planning documents.

Marine reserves are currently limited in several important ways. Spatially, they only apply in the territorial sea, leaving a legislative gap for the establishment of similar protective measures in the EEZ. In addition, if MSP is to meet ecological, economic and social objectives, the narrowly framed purpose of marine reserves – for the scientific study of marine life – is likely to be inadequate, limiting the range of outcomes that marine protected areas could potentially achieve when implemented as part of a wider MSP process.¹⁴¹

Treaty of Waitangi and settlement legislation

The Treaty of Waitangi/Te Tiriti o Waitangi is New Zealand's founding constitutional document, being signed between Māori and the Crown in 1840. There are two versions of the Treaty – the English language version (the Treaty) and Māori language version (Te Tiriti). The two texts are not direct translations of each other (neither English to Māori, nor Māori to English) and there is considerable debate over the meanings of the texts and the differences between them.¹⁴²

The Treaty/Te Tiriti consists of a preamble and three articles. This chapter focuses on the text of the second article because of its direct relevance to fisheries and marine management.

Article 2 of the Treaty guarantees to Māori *'the full exclusive and undisturbed possession of their Lands and Estates Forests Fisheries and other properties which they may collectively or individually possess so long as it is their wish and desire to retain the same in their possession'*.

Article 2 of Te Tiriti guarantees Māori *'te tino rangatiratanga o ō rātou wenua ō rātou kāinga me ō rātou taonga katoa'*. 'Te tino rangatiratanga' has been defined as including (but not confined to) possession, ownership, authority, self-regulation and autonomy.¹⁴³ Under this article te tino rangatiratanga was guaranteed to Māori over their lands, their villages and all their treasured possessions. While Article 2 of Te Tiriti doesn't explicitly mention fisheries, the Waitangi Tribunal has confirmed the foreshore, sea¹⁴⁴ and fisheries¹⁴⁵ are among the taonga referred to in that article.

The primary way the Treaty of Waitangi (hereafter referred to as the Treaty) has legal effect in New Zealand is through incorporation in legislation.¹⁴⁶ References to the Treaty appear in a large number of statutes, and it has had significant influence on the operation of resource management law, conservation law and fisheries law, among other areas.

Principles of the Treaty of Waitangi

One of the ways the Treaty has received legal recognition is through reference to the 'principles' of the Treaty in legislation, rather than to the Treaty texts. The earliest recognition of the Treaty principles was in the Treaty of Waitangi Act 1975.

This Act establishes the Waitangi Tribunal, which makes recommendations on claims relating to the practical application of the Treaty and to determine whether actions of the Crown are consistent with the principles of the Treaty.¹⁴⁷

Treaty principles are embedded in the marine management legislation described elsewhere in this chapter:

- The RMA states: *'In achieving the purpose of this Act, all persons exercising functions and powers under it, in relation to managing the use, development and protection of natural and physical resources shall take into account the principles of the Treaty of Waitangi (Te Tiriti o Waitangi).'*¹⁴⁸
- The Conservation Act states: *'This Act shall be so interpreted and administered as to give effect to the principles of the Treaty of Waitangi.'*¹⁴⁹
- The provisions of Part 3 of the Hauraki Gulf Marine Park Act *'must be so interpreted and administered as to give effect to the principles of the Treaty of Waitangi (Te Tiriti o Waitangi).'*¹⁵⁰

A pivotal case involving judicial consideration of the principles of the Treaty was the 1987 'Lands case' in which the New Zealand Māori Council asked the Court of Appeal whether the government's plans to transfer land to state-owned enterprises breached the principles of the Treaty.¹⁵¹ The Court described the Treaty as a document signifying a partnership.¹⁵² The duty to act in good faith was found to be a primary obligation of such a partnership.¹⁵³ The Court also recognised that the Crown has a duty to compensate or make reparation for breaches of the Treaty. In other words, there exists a Treaty principle of redress.¹⁵⁴

Since then, there has been a rich explanation and analysis of Treaty principles in the Courts and by the Waitangi Tribunal. There is no definitive list of principles produced by the Waitangi Tribunal or the Courts, reflecting the fact that Treaty obligations are ongoing.

The Court of Appeal has stated Treaty obligations *'will evolve from generation to generation as conditions change'*¹⁵⁵

Treaty claims and settlements

Since the Treaty was signed in 1840, Māori have made claims that the terms of the Treaty have not being upheld by the Crown. By establishing the Waitangi Tribunal in 1975, Parliament provided a legal process by which Māori Treaty claims could be investigated. Waitangi Tribunal inquiries have contributed to the resolution of Treaty claims and to the reconciliation of outstanding issues between Māori and the Crown. Successive New Zealand governments have attempted to make reparations for Treaty breaches. Such reparations have been made both at a New

Zealand-wide level and to individual iwi. New Zealand-wide Treaty settlements relating to fisheries and aquaculture are described below.

While settlements for individual iwi vary, they all give three kinds of redress to the claimant group:¹⁵⁶

- An historical account of the Treaty breaches, and Crown acknowledgement and apology
- Cultural redress
- Commercial and financial redress

One of the cultural redress measures adopted in a number of settlements has been the establishment of new 'co-governance' structures for natural resource management. Co-governance arrangements see iwi and the Crown cooperating together in a power-sharing capacity to make decisions about natural resources and areas. Examples of co-governance entities which have been established from Treaty settlements include Te Waihora Co-Governance Group, the Waikato River Authority, Te Urewera Board, Tūpuna Maunga o Tāmaki Makaurau Authority, Te Oneroa-a-Tōhē Board and Te Maru o Kaituna (Kaituna River Authority).¹⁵⁷

Fisheries settlement

During the 1980s, the government introduced a quota management system (QMS) based on individual transferable quota (ITQ) to manage fisheries. The idea of creating ITQ as a key tool for fisheries management first emerged during the mid-1950s in response to overfishing of the marine 'commons'. It was based on the idea that overfishing could be effectively addressed if private property rights were created in fish stocks.¹⁵⁸ New Zealand instituted a fully tradeable QMS system in 1986.

The allocation of ITQ was first challenged by Far North Muriwhenua iwi at the Waitangi Tribunal. The claimants contended the Crown was transferring to private fishing interests fishing rights that the Muriwhenua people had not relinquished.¹⁵⁹ In 1987, while the Tribunal was still considering the claim, Muriwhenua iwi went to the High Court and successfully obtained an injunction to stop the allocation of squid and jack mackerel quota in the Northland area, on the basis that granting ITQ for these additional species would prejudice the outcome of their claim. The Ngāi Tahu Māori Trust Board took similar legal action to stop the expansion of the QMS in the south. The Tribunal's subsequent 1988 report on the Muriwhenua claim concluded that the QMS fundamentally conflicted with the Treaty's principles and terms.¹⁶⁰

With the government's programme to further roll out the QMS blocked by the Courts, Crown and Māori negotiators met to reach a solution. An interim settlement was reached and implemented through the Māori Fisheries Act 1989.

This established a Māori Fisheries Commission to which the Crown agreed to transfer \$10 million and 10 per cent of existing quota. The government instituted a programme of buying up quota to meet the 10 per cent obligation. Where the requisite quota could not be obtained on the open market, the Crown provided cash to Māori in lieu.¹⁶¹

A final settlement of Māori commercial fisheries claims was reached with the 1992 Fisheries Deed of Settlement. The Crown undertook to pay \$150 million to promote Māori commercial fishing, thus assisting Māori in a joint venture purchase of Sealord Products Limited. Under the Deed, Māori would be entitled to 20 per cent of new species quota (in addition to the 10 per cent of previous quota as agreed in 1989). The Deed also provided for Māori representation on statutory bodies for fisheries management and the restructuring of the Māori Fisheries Commission. The Māori Fisheries Commission became the Treaty of Waitangi Fisheries Commission – also known as Te Ohu Kaimoana – to manage the assets on behalf of Māori and to facilitate their allocation to iwi.

By the Deed, Māori agreed that the settlement would discharge and extinguish all commercial fishing rights and interests of Māori, and satisfy all current and future claims to commercial fishing.¹⁶²

The 1992 Deed formed the basis of the Treaty of Waitangi (Fisheries Claims) Settlement Act 1992. All claims (current and future) by Māori in respect of commercial fishing are finally settled by the Act.¹⁶³ However, non-commercial fisheries continue to attract Treaty rights and obligations.¹⁶⁴ The Act expressly recognises that traditional fisheries are of importance to Māori and that the Crown has a Treaty duty to develop policies to help recognise use and management practices, and to provide protection and scope for the exercise of rangatiratanga in respect of traditional fisheries.¹⁶⁵ The Fisheries (Kaimoana Customary Fishing) Regulations 1998 were negotiated between Māori and the Crown as part of the recognition of non-commercial customary fishing rights arising from the settlement.

The enactment of the Māori Fisheries Act 2004 completed implementation of the agreements set out in the Deed of Settlement between the Crown and Māori in respect of Māori claims to commercial fisheries. It makes provision for a framework for the allocation and management of settlement assets.¹⁶⁶

Aquaculture settlement

The 1992 fisheries settlement is silent in relation to aquaculture. In 2002, the government introduced new legislation which created a fundamentally different regime for aquaculture. This included requiring aquaculture to be located within Aquaculture Management Areas identified in regional coastal plans. The Act

placed a two-year moratorium on the grant of coastal permits for aquaculture to enable councils to put in place the new planning regime.¹⁶⁷ Māori had undertaken significant initiatives to secure access to aquaculture, which were thereby frozen.

A number of iwi made claims in the Waitangi Tribunal alleging that they had been prejudicially affected by the Crown proposals and that Crown actions were in breach of the principles of the Treaty of Waitangi. There were concerns that the 1992 Deed of Settlement and customary fisheries should not be affected by any reforms; the ongoing seabed and foreshore litigation should not be prejudiced by any reforms; there should be greater Māori participation in decision-making affecting coastal marine areas; and Māori kaitiakitanga, mana, and tino rangatiratanga over coastal areas should not be further reduced. There was also a concern that local authorities had generally not performed adequately in considering and addressing Māori concerns in the coastal area, and the ability to take on any devolved powers from the Crown was questioned.¹⁶⁸

The Waitangi Tribunal found that Māori traditionally undertook aquaculture and enhancement of wild stocks and have an interest in marine farming that forms part of the bundle of Māori rights in the coastal marine area, which represents a taonga protected by the Treaty of Waitangi. It found further consultation with Māori was needed to ascertain what should be done to ensure that their Treaty interests are adequately provided for.¹⁶⁹

In response to these claims, the Māori Commercial Aquaculture Claims Settlement Act 2004 was passed with a purpose of settling all Māori claims in respect of commercial marine aquaculture arising after 1992.¹⁷⁰ Amendments were made to the settlement mechanisms through the Māori Commercial Aquaculture Claims Settlement Amendment Act 2011, when the regime applying to aquaculture was substantially changed by the government in 2011. This removed the requirement around Aquaculture Management Areas.

There are now three phases of the settlement, and for iwi these can be characterised by their delivery mode: past, present or future:

- *Aquaculture approved under the regime operating from 22 September 1992 to 31 December 2004 (just prior to the commencement of the Settlement Act) – referred to as **the pre-commencement phase**.* The Settlement Act provided for iwi to receive settlement assets equivalent to 20 per cent of the representative value of all space approved during through the pre-commencement phase through either the approval of space after 2004 under the new regime from that time, purchase of marine farms or cash. There were several practical obstacles preventing settlement obligations being in the form of space and so all pre-commencement phase obligations were taken as cash.

- *Aquaculture approved under the regime operating from 1 January 2005 until 30 September 2011 – referred to as **the interim Aquaculture Management Area phase**.* In this phase iwi were to receive authorisations to apply for resource consents for a representative 20 per cent of aquaculture space in any approved Aquaculture Management Area at the same time as its approval.
- *Aquaculture approved after 1 October 2011 – referred to as **the new space phase**.* In this phase, the iwi of a region are to receive settlement assets equivalent to the value of 20 per cent of the representative value of all aquaculture development in a region through entering into Regional Aquaculture Agreements with the Crown. The amount of assets is based on forecasts of national development of demand for aquaculture by species. In this phase, iwi in a region have a choice as to how they will receive the settlement assets – as authorisations for space inside an Aquaculture Settlement Area (if established, these areas give iwi the exclusive right to apply for consent for aquaculture activities within that space), cash or a combination of both. These provisions are supporting the greater involvement of iwi in the aquaculture industry, although the uncertainty of future space provision has meant that some groups have accepted money in lieu of space.

Interplay with MSP

The Treaty of Waitangi (Fisheries Claims) Settlement Act, Māori Fisheries Act and Māori Commercial Aquaculture Claims Settlement Act collectively address Treaty claims to commercial fisheries and aquaculture. However, Māori customary rights and those under the Treaty in the marine area have yet to be fully resolved, complicating broader-scale legislative reform of marine management.

Support for MSP processes among iwi and hapū will be fundamental to their success. This support may be undermined if tangata whenua have outstanding Treaty grievances and are involved in settlement negotiations – engaging in a collaborative process with a stakeholder group may be considered prejudicial to negotiations.

This challenge was faced by the Sea Change process. At the time the project was proposed, many Treaty claims in the Hauraki Gulf area were still under negotiation, including those for Hauraki tribes. These unsettled Treaty claims complicated the plan making process, but did not prevent the Sea Change project reaching a successful conclusion. A proviso was included in the plan to the effect that implementation should preserve the integrity and value flowing from current and future Treaty settlements. While this demonstrates that MSP can be undertaken notwithstanding unsettled Treaty grievances, MSP processes may find greater support from iwi and hapū that have settled.

In addition, the outcomes of Treaty settlements themselves could be of significant value to MSP projects and improve marine management more generally. Treaty settlements are proving to be the major catalyst for recognising and protecting kaitiaki interests in mātauranga Māori and taonga Māori.¹⁷¹ For example, recent Treaty settlements have resulted in several natural areas being designated as legal entities that effectively own themselves but are governed and managed by a Board comprised of Crown and iwi representatives.¹⁷² Ultimately Treaty settlements are providing greater opportunities for Māori involvement in marine management.

Marine and Coastal Area (Takutai Moana) Act 2011

The MCAA applies to the 'marine and coastal area', which is the area between mean high water springs and 12 nautical miles offshore¹⁷³ and includes the beds of rivers that are part of the coastal marine area (within the meaning of the RMA). It also includes the air and water space above those areas and the subsoil/bedrock under them.¹⁷⁴ The MCAA does not, however, include the water within the marine and coastal area.¹⁷⁵ Within this area is the 'common marine and coastal area', which excludes freehold land, Crown land in the form of conservation areas, national parks or reserves and the bed of the Te Whaanga Lagoon in the Chatham Islands.¹⁷⁶

The purpose of the MCAA is to establish a durable scheme to ensure the protection of the legitimate interests of all New Zealanders in the marine and coastal area of New Zealand.¹⁷⁷ It recognises the mana tuku iho exercised in the area by iwi, hapū and whānau as tangata whenua.¹⁷⁸ To that end, it repeals the Foreshore and Seabed Act 2004 and restores customary interests in the common marine and coastal area that were extinguished by that Act, affording them legal expression.¹⁷⁹ It also recognises, through the protection of public rights of access, navigation and fishing, the importance of the common marine and coastal area for its intrinsic worth and for the benefit, use and enjoyment of the New Zealand public.¹⁸⁰ The exercise of existing lawful rights and uses of the marine and coastal area are protected.¹⁸¹

The common marine and coastal area is afforded special status under the MCAA and no one can own it.¹⁸² However, certain legal rights and powers are retained, including the recognition of customary interests.¹⁸³ If a portion of the area becomes a conservation area, national park or reserve land, it is vested in the Crown,¹⁸⁴ although no such area may be accorded such status if it is customary marine title area.¹⁸⁵

Within the common marine and coastal area, the MCAA preserves the Crown's ownership of minerals,¹⁸⁶ the rights of owners of structures¹⁸⁷ and certain proprietary

interests (such as leases, licences and permits).¹⁸⁸ Further, everybody has the right to access and recreationally use the area,¹⁸⁹ to navigate by ship (including to anchor, moor and temporarily remain),¹⁹⁰ and to exercise any fishing rights.¹⁹¹ These rights are subject to any wāhi tapu condition(s) relevant to the area.¹⁹²

Customary interests

The MCAA provides for the exercise of customary interests in the common marine and coastal area through protected customary rights and customary marine titles. A protected customary right must have been exercised since 1840, continue to be exercised in accordance with tikanga, and not be extinguished as a matter of law.¹⁹³ A protected customary right must be a physical activity or use of a resource (as opposed to spiritual or cultural) but does not include:¹⁹⁴

- Activities regulated by the Fisheries Act
- Commercial aquaculture activities
- Activities that involve the exercise of Māori fishing rights or interests subject to the Treaty of Waitangi (Fisheries Claims) Settlement Act 1992
- Activities that relate to wildlife or marine mammals

Once legally recognised in a protected customary rights order or agreement, a protected customary right may be exercised despite any prohibition, restriction or imposition under the RMA.¹⁹⁵ However, the Minister can place controls on any such right if he or she determines that exercising the right has, or is likely to have, a significant adverse effect on the environment.¹⁹⁶

Customary marine title can exist in a specified area if the applicant group holds the area in accordance with tikanga and has done so since 1840 without substantial interruption.¹⁹⁷ A customary marine title group can use, benefit from or develop (including commercially) any title area in accordance with a title order or agreement, but it is not exempt from obtaining any relevant resource consent, permit or approval required under other Acts.¹⁹⁸

A customary marine title group has a right to prepare a planning document in accordance with its tikanga.¹⁹⁹ The plan can include any matter that can be regulated under the Conservation Act, Heritage New Zealand Pouhere Taonga Act 2014, Local Government Act 2002 or the RMA.²⁰⁰ On receipt of a customary marine title plan, a regional council must decide whether to amend its regional coastal plan to 'recognise and provide for' matters relating to the title area or to 'take into account' the matters that relate to the common marine and coastal area outside of that area.²⁰¹ The council can decide not to amend its plan if the matters raised are already provided for, would not achieve the purpose of the RMA, or would be more effectively and efficiently addressed in another way.²⁰²

Customary plans also place obligations on local authorities, Heritage New Zealand Pouhere Taonga, the Minister of Fisheries and the Director-General of Conservation with respect to decisions made under their respective functions.²⁰³

Customary marine title groups can be conferred RMA or conservation permission rights. A RMA permission right applies to activities that are to be carried out under a resource consent within a customary marine title area.²⁰⁴ A conservation permission right applies to applications to declare or extend a marine reserve or a conservation protected area, or for a concession within a title area.²⁰⁵ A title group holding a permission right can give or decline, for any reason, permission to the relevant activity.²⁰⁶ The title group's decision is final and cannot be appealed.²⁰⁷ However, the Minister of Conservation or the Director-General may proceed with a conservation protection measure within a customary marine title area if he or she is satisfied that the proposal is of national importance.²⁰⁸

Finally, customary marine title groups can include recognition of wāhi tapu or wāhi tapu areas in their title order or agreement.²⁰⁹ Wāhi tapu conditions can affect fishing rights but not to the extent that the conditions prevent fishers from taking their lawful entitlement in a quota management area or fisheries management area.²¹⁰

The MCAA affords iwi, hapū and whānau the right to participate in processes for the declaration or extension of marine reserves and mammal sanctuaries, publicly notified concessions, and permits authorising marine mammal tourism activities.²¹¹ When making a decision on such processes, the Director-General must have particular regard to the views of affected iwi, hapū or whānau.²¹² Further, the Minister of Conservation must seek and consider the views of all registered customary marine title groups when proposing to prepare, issue, change, review or revoke a NZCPS.²¹³

Interplay with MSP

Registered customary rights are likely to have significant implications for MSP. Consultation with, and consideration of the views of, customary marine title groups and groups with protected customary rights will be required when promulgating any national MSP document and regional marine spatial plans. Planning documents made by a customary marine title group will need to be closely considered when preparing marine spatial plans and care taken to ensure that customary rights are acknowledged and respected.



Kennedy Bay

Maritime Transport Act 1994

This Act is pertinent to MSP mostly because it regulates shipping movements and some aspects of marine pollution.

Shipping movements

Although the Maritime Transport Act is the primary legislation responsible for navigational safety, it relies on bodies established under other legislation to undertake some of its navigational safety functions. For example, the Act states that regional councils can appoint harbourmasters and promulgate navigational bylaws, although these cannot be inconsistent with the RMA.²¹⁴ The RMA supports the Maritime Transport Act to the extent that regional council functions under the RMA include the control of activities in relation to the surface of water.²¹⁵

At a central government level, the Minister can make maritime rules that regulate the conduct of ships to secure safe navigation and also port and harbour safety, amongst other things.²¹⁶ Part 91 of the Maritime Rules 2016 relates to navigational safety. The rules apply everywhere in New Zealand waters and regulate general safety, interactions between different recreational users of the water and, most interestingly for MSP, mandatory and voluntary ship routing, including 'areas to be avoided' and rules relating to access lanes and reserve areas.²¹⁷ Two 'areas to be avoided' have been created in New Zealand around the Three Kings and Poor Knights Islands where large ships are excluded to reduce the risk of pollution and damage to the marine environment in the event that there was a shipping accident.

At a regional level, councils can include provisions in their regional coastal plans regulating ports, harbours and other waters, as well as maritime-related activities.²¹⁸ They can also, in consultation with the Director of Maritime New Zealand, make bylaws to:²¹⁹

- Regulate and control the use or management of ships
- Regulate the placement of moorings
- Prevent nuisances arising from the use of ships and seaplanes and the actions of persons and things on or in the water
- Reserve the use of any waters for specified persons, ships or seaplanes
- Regulate and control the use of anchorages

Marine pollution

The Maritime Transport Act operates conjointly with the EEZ Act (and the RMA within the coastal marine area) to comprehensively regulate marine pollution. The Act regulates discharges of harmful substances into the sea or onto the seabed

from ships.²²⁰ It also provides a system for managing oil spills²²¹ and the exchange of ballast water.²²² The Minister has made marine protection rules to regulate, among others, harmful substances, dumping of waste and oil spills.

In addition, the EEZ Act regulates discharges from structures, submarine pipelines and ships (if it is a mining discharge).²²³ It also prohibits the dumping of radioactive and toxic or hazardous waste, and regulates the disposal of other waste including human remains (other than ashes). The RMA regulates dumping and incineration of waste in the coastal marine area, the discharge of harmful substances from ships or offshore installations, and discharge of radioactive waste in the coastal marine area.²²⁴

Interplay with MSP

The Maritime Transport Act places no particular constraint on MSP. It does provide some potentially useful implementation tools which including ship routing measures, reserved areas and maritime rules.



Port of Tauranga

Summary table

Legislation	Compatibility with MSP
Resource Management Act 1991	The RMA is highly compatible with MSP. The concept of integrated management is embedded in the foundation of policy and planning documents promulgated under the RMA. Integrated management relates to the integration of broadly defined resources at a wide regional level.²²⁵ Regional council jurisdictional boundaries are largely based around water catchments and include the adjacent coastal marine area. This provides a catchment-to-the sea management interface, which is advantageous for progressing MSP. The RMA does not apply in the EEZ, leaving this area of New Zealand waters subject to a less developed management framework under the EEZ Act (described below). The NZCPS is particularly compatible with MSP, providing for integrated management, strategic planning, and management of cumulative effects in the coastal environment, among other things. While some legislative linkages have been created between decision-making processes under the RMA and Fisheries Acts, these provisions have not proved effective in practice, and there has been little interaction between the RMA and fisheries regimes, preventing a fully integrated approach to marine management as envisaged by MSP.²²⁶ The current law is that regional coastal plans can include provisions which control the externalities of fishing on the wider environment and can exclude fishing from spatially defined areas for the purpose of maintaining indigenous biodiversity.²²⁷ While this represents progress in terms of integrated management under the RMA, it does not provide for greater interaction between the RMA and fisheries regimes in a routine or systematic way.
Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012	The EEZ Act is highly compatible with MSP. The Act provides for management in coordination with other marine management regimes (eg through joint RMA/EEZ hearings for cross-boundary activities). There is acknowledgment of the interconnected nature of the marine environment, (eg effects arising from activities within the EEZ Act's jurisdiction, but which present themselves outside of its jurisdiction, are relevant when developing regulations). The EEZ Act also provides for spatial planning through regulations which have the potential to operate like regional coastal plans and include requirements, methods or technical standards for specified areas. Implementation of regulations to date has not realised this potential.
Fisheries Act 1996	Of all the marine management Acts applicable to New Zealand, the Fisheries Act would need the most care when integrating into an MSP regime. The Act provides for both the narrow management of individual fish stocks within the framework of MSY, and the management of the wider impacts of fishing activity on marine species, habitats and biodiversity, with the former dominating in practice. Fisheries plans have the potential to give effect to integrated management and spatial planning, potentially bridging the gap between approaches.

Legislation	Compatibility with MSP
Kaikōura (Te Tai o Marokura) Marine Management Act 2014, Hauraki Gulf Marine Park Act 2000, Fiordland (Te Moana o Atawhenua) Marine Management Act 2005	These three regional marine Acts align closely with the RMA and other conservation legislation, and support the integrated management of their respective marine areas. In this sense, they are compatible with a MSP regime. A key strength of the management regimes established by these Acts are the groups or 'Guardians' which oversee the management of marine areas. Depending on the structure of any MSP regime, these groups could form a key part of plan development with special participatory and information-gathering and -sharing roles. They could also play an important function in plan implementation and enforcement.
Conservation Act 1987, Marine Reserves Act 1971, Marine Mammals Protection Act 1978	Conservation legislation provides for the establishment of marine mammal sanctuaries and marine reserves – both important protective tools relevant to a broader MSP process. Marine reserves, however, are limited by their spatial application, only applying in the territorial sea, which leaves a legislative gap for the establishment of similar protective measures in the EEZ. In addition, if MSP is to meet ecological, economic and social objectives, the narrowly framed purpose of marine reserves – for the scientific study of marine life – is likely to be inadequate, limiting the range of outcomes that marine protected areas could potentially achieve when implemented as part of a wider MSP process.
Treaty of Waitangi/Te Tiriti o Waitangi Treaty of Waitangi (Fisheries Claims) Settlement Act 1992 Māori Fisheries Act 2004 Māori Commercial Aquaculture Claims Settlement Act 2004	The Treaty of Waitangi/Te Tiriti o Waitangi has significant influence on the operation of resource management law, conservation law and fisheries law, among other areas. MSP processes will need to ensure Treaty rights of Māori are upheld. The Treaty of Waitangi (Fisheries Claims) Settlement Act 1992, Māori Fisheries Act 2004 and Māori Commercial Aquaculture Claims Settlement Act 2004 collectively address Treaty claims to fisheries and aquaculture. However, claims in relation to Māori customary rights and those under the Treaty in the marine area have yet to be fully resolved, complicating broader-scale legislative reform of marine management. Support for MSP processes among iwi and hapū will be fundamental to their success. This support may be undermined if tangata whenua have outstanding Treaty grievances and are involved settlement negotiations – engaging in a collaborative process with a stakeholder group may be considered prejudicial to negotiations. The unsettled Treaty claims in the Hauraki Gulf complicated the Sea Change plan making process, but did not prevent the project reaching a successful conclusion. A proviso was included in the plan to the effect that implementation should preserve the integrity and value flowing from current and future Treaty settlements. While this shows MSP can be undertaken notwithstanding unsettled Treaty grievances, MSP processes may find greater support from iwi and hapū that have settled. In addition, the outcomes of Treaty settlements themselves could be of significant value to MSP projects, and improve marine management more generally.

Legislation	Compatibility with MSP
Marine and Coastal Area (Takutai Moana) Act 2011	Registered customary rights are likely to have significant implications for MSP. Consultation with, and consideration of the views of, customary marine title groups and groups with protected customary rights will be required when promulgating any national MSP document and regional marine spatial plans. Planning documents made by a customary marine title group will need to be closely considered when preparing marine spatial plans and care taken to ensure that customary rights are respected. In addition, it will take time for existing applications made under MCAA to be resolved, which adds uncertainty to an MSP process and will require involvement of applicant groups in MSP processes.
Maritime Transport Act 1994	The Maritime Transport Act places no particular constraint on MSP. It does provide some potentially useful tools which could be used to implement MSP, including ship routing measures and maritime rules.



Port of Auckland

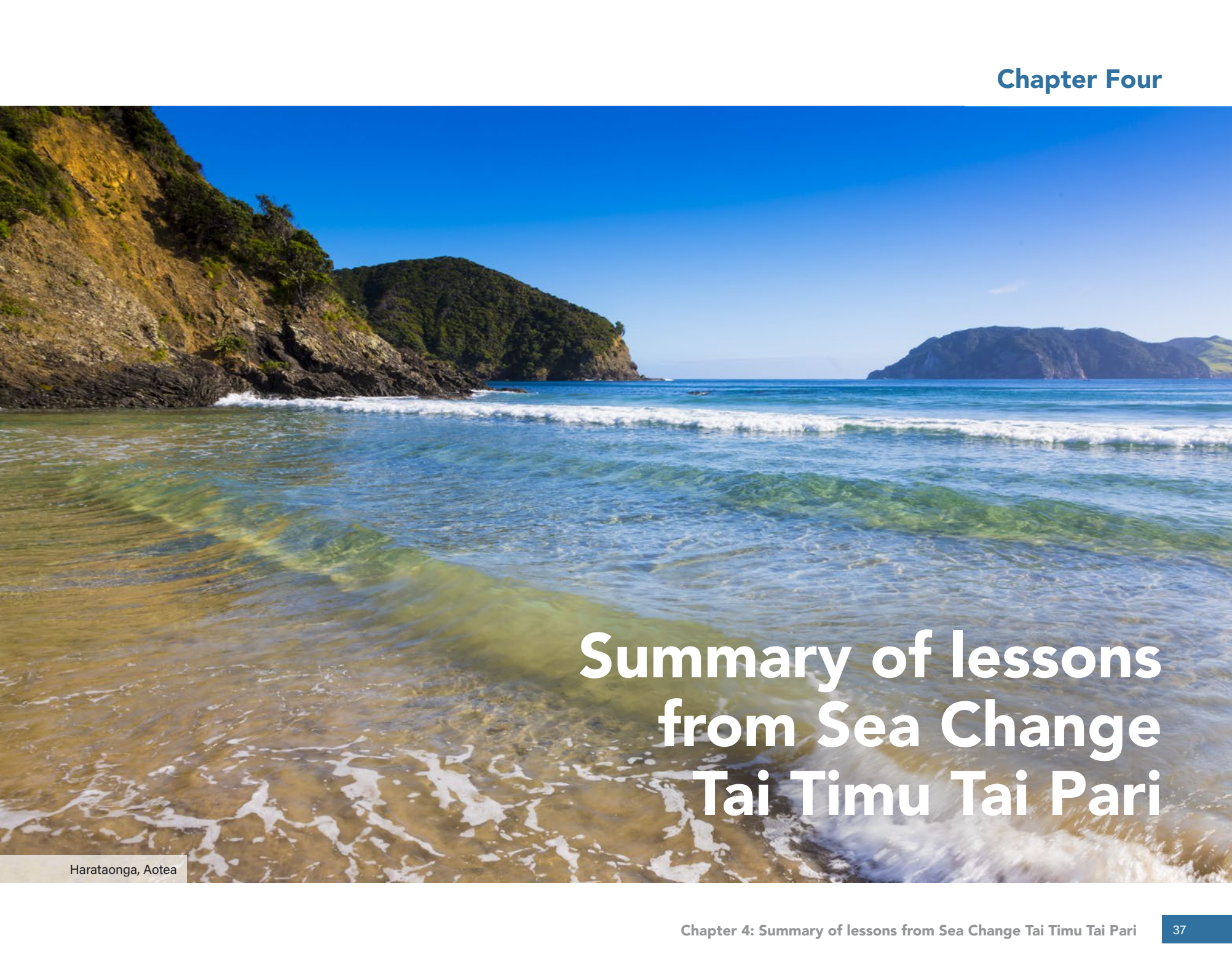
KEY MESSAGES

- New Zealand's legislative framework currently provides for MSP, or provides processes and tools to support MSP – to an extent.
- Integrated planning and management in the marine environment is an explicit or implicit objective in much of New Zealand's legislation. Examples include the catchment-to-the-sea management interface of regional councils; the function of regional councils to establish, implement and review provisions to achieve integrated management of broadly defined natural and physical resources; strong requirements in the RMA and EEZ Act to manage cumulative effects; direction in the NZCPS for integrated management and strategic planning; and strong provisions for coordinated management between (some) legislation (eg between the RMA and EEZ Act).
- Existing legislation provides tools for the spatial distribution of activities in and on the ocean (within the jurisdictional scope of that legislation). There is also recognition in most legislation of the need to maintain the delivery of valuable ecosystem services for future generations, particularly through the principles of sustainable management and utilisation (eg in the purpose statements of the RMA, EEZ Act and Fisheries Act).
- Of all the marine management regimes operating in New Zealand, fisheries management would probably need the most care to successfully integrate into a MSP regime, due to the current narrow management focus on individual fish stocks. That said, there is no legislative barrier to adopting a MSP approach, with the Fisheries Act providing for the management of wider impacts of fishing on the marine environment, and for the preparation of fisheries plans.
- The current law is that regional coastal plans can include provisions which control the externalities of fishing on the wider environment and can exclude fishing from spatially defined areas for the purpose of maintaining indigenous biodiversity.²²⁸ While this represents progress in terms of integrated management under the RMA, it does not provide for greater interaction between the RMA and fisheries regimes in a routine or systematic way. If the RMA is to be relied on to manage the broader ecosystem impacts of fishing, action under the legislation would need to be significantly expanded to address this lacuna.
- Marine reserves only apply in the territorial sea, leaving a legislative gap for the establishment of similar protective measures in the EEZ. In addition, if MSP is to meet ecological, economic and social objectives, the narrowly framed purpose of marine reserves – for the scientific study of marine life – is likely to be inadequate, limiting the range of outcomes that marine protected areas could potentially achieve when implemented as part of a wider MSP process.
- MSP processes will need to ensure Treaty rights of Māori are upheld. Support for MSP processes among iwi and hapū will be fundamental to their success. This support may be undermined if tangata whenua have outstanding Treaty grievances and are involved in settlement negotiations. The outcomes of Treaty settlements themselves could be of significant value to MSP projects, and improve marine management more generally.

Endnotes

- 1 RMA, s 63(2)
- 2 RMA, s 2 defines 'foreshore' to include any land covered and uncovered by the flow and ebb of the tide at mean spring tides
- 3 RMA, s 2 defines 'coastal water' to include seawater within the outer limits of the territorial sea, including seawater with a substantial fresh water component and seawater in estuaries, fiords, inlets, harbours or embayments
- 4 RMA, s 30(1)
- 5 RMA, s 2
- 6 *New Zealand Shipping Federation of New Zealand v Marlborough District Council* W038/2006 at [106]
- 7 *Ibid* at [106]
- 8 RMA, ss 67(3)(b) and (c)
- 9 *Environmental Defence Society v New Zealand King Salmon Company* (2014) 17 ELRNZ 442 at [77]
- 10 RMA, s 59
- 11 NZCPS, policies 4(a) and (b)
- 12 RMA, s 3
- 13 *West Coast Environmental Network Inc v West Coast Regional Council* [2013] NZEnvC 42 at [43]
- 14 RMA, s 66(2)(d)
- 15 RMA, s 67(4)(b)
- 16 RMA, s 75(4)(b)
- 17 RMA, s 66(2)(c)(i)
- 18 RMA, s 662A
- 19 *Trustees of the Motiti Rohe Moana Trust v Bay of Plenty Regional Council* [2016] NZEnvC 240
- 20 *Attorney-General v Trustees of the Motiti Rohe Moana Trust* (2017) 20 ELRNZ 1
- 21 *Attorney-General v Trustees of the Motiti Rohe Moana Trust* [2018] NZCA 67
- 22 *Motiti Rohe Moana Trust v Bay of Plenty Regional Council* [2018] NZEnvC 067
- 23 *Trustees of the Motiti Rohe Moana Trust v Bay of Plenty Regional Council* [2016] NZEnvC 240 at [52]
- 24 *Ibid* at [13]
- 25 *Ibid* at [51]
- 26 *Ibid* at [53]
- 27 *Attorney-General v Trustees of the Motiti Rohe Moana Trust* [2017] NZHC 1886 at [21]
- 28 *Attorney-General v Trustees of the Motiti Rohe Moana Trust* (2017) 20 ELRNZ 1 at [114]
- 29 *Ibid* at [111]
- 30 *Ibid* at [134]
- 31 *Ibid* at [129(c)]
- 32 *Attorney-General v Trustees of the Motiti Rohe Moana Trust* [2018] NZCA 67
- 33 *Motiti Rohe Moana Trust v Bay of Plenty Regional Council* [2018] NZEnvC 067 at [117]
- 34 *Ibid* at [156]
- 35 *Ibid* at [154]
- 36 *Ibid* at [121] and [148]
- 37 *Ibid* at [203]
- 38 Peart, 2017
- 39 EEZ Act, s 10(1)
- 40 Territorial Sea, Contiguous Zone, and Exclusive Economic Zone Act 1977, s 9
- 41 EEZ Act, s 20(5)(c)
- 42 EEZ Act, s 20A(3)
- 43 EEZ Act, s 6(1)(d)
- 44 EEZ Act, s 33(3)(a)
- 45 EEZ Act, s 27(1)(b)
- 46 EEZ Act, s 33(3)(b)
- 47 EEZ Act, ss 33(3)(b)(i) and (3)(d)
- 48 EEZ Act, s 28(1)
- 49 EEZ Act, s 28(2)
- 50 Exclusive Economic Zone and Continental Shelf (Environmental Effects—Burial at Sea) Regulations 2015, s 4(2)
- 51 EEZ Act, s 7
- 52 EEZ Act, s 33(3)(i)
- 53 EEZ Act, s 28(1)(c)
- 54 EEZ Act, s 44(1)
- 55 EEZ Act, subpart 3
- 56 Fisheries Act 1996, s 8(1)
- 57 Fisheries Act 1996, s 8(2)
- 58 Fisheries Act 1996, s 2 definition of 'fisheries resources'
- 59 Fisheries Act 1996, s 2 definition of 'aquatic life'
- 60 Fisheries Act 1996, s 8(2)
- 61 Fisheries Act 1996, s 2 definition of 'aquatic environment'
- 62 Fisheries Act 1996, s 2 definition of 'New Zealand fisheries waters'
- 63 Fisheries Act 1996, s 11(3)(a)
- 64 Fisheries Act 1996, s 13(2)(a)
- 65 Fisheries Act 1996, s 13(3)
- 66 Fisheries Act 1996, s 11
- 67 MPI, 2017
- 68 Cryer et al, 2016
- 69 Leathwick et al, 2006
- 70 Fisheries (Southland and Sub-Antarctic Areas Commercial Fishing) Amendment Regulations 2014, Fisheries (Benthic Protection Areas) Regulations 2007, Fisheries (Challenger Area Commercial Fishing) Amendment Regulations 2015
- 71 Baird et al, 2015
- 72 Fisheries Act 1996, s 11A(2)
- 73 Fisheries Act 1996, s 11A
- 74 Fisheries Act 1996, ss 11(2A) and (3)
- 75 Peart, 2018(a)
- 76 Fisheries Act 1996, s 184
- 77 Fisheries Act 1996, s 185
- 78 Fisheries Act 1996, s 186(2)(b)
- 79 Fisheries Act 1996, s 186(2)(c)
- 80 Fisheries Act 1996, s 186A(1)
- 81 Fisheries Act 1996, s 186A(2) and 186B(1)
- 82 Fisheries Act 1996, s 186B(2)
- 83 Fisheries Act 1996, s 11(2)
- 84 Fisheries Act 1996, s 15
- 85 Fisheries Act 1996, part 9A
- 86 Peart, 2017
- 87 See, for example, Ministry of Fisheries, 2005, and DOC, 2016
- 88 Peart, 2017
- 89 Hauraki Gulf Marine Park Act 2000, s 4
- 90 Hauraki Gulf Marine Park Act 2000, s 3
- 91 Hauraki Gulf Marine Park Act 2000, s 15
- 92 Hauraki Gulf Marine Park Act 2000, s 37(1)
- 93 Hauraki Gulf Marine Park Act 2000, s 32
- 94 Hauraki Gulf Marine Park Act 2000, s 15
- 95 Hauraki Gulf Marine Park Act 2000, ss 15 and 17
- 96 Hauraki Gulf Marine Park Act 2000, s 17(1)
- 97 Hauraki Gulf Marine Park Act 2000, s 10
- 98 RMA, ss 67(3)(b) and 104(1)(b)(iv)
- 99 Hauraki Gulf Marine Park Act 2000, s 9(2)
- 100 Hauraki Gulf Marine Park Act 2000, s 10(2)
- 101 Kaikōura (Te Tai o Marokura) Marine Management Act 2014, schedule 1
- 102 Kaikōura (Te Tai o Marokura) Marine Management Act 2014, s 3(a)
- 103 Kaikōura (Te Tai o Marokura) Marine Management Act 2014, s 3(b)
- 104 Kaikōura (Te Tai o Marokura) Marine Management Act 2014, s 3(c)
- 105 Kaikōura (Te Tai o Marokura) Marine Management Act 2014, s 6
- 106 Kaikōura (Te Tai o Marokura) Marine Management Act 2014, s 7(1)
- 107 Fiordland (Te Moana o Atawhenua) Marine Management Act 2005, s 3
- 108 Fiordland (Te Moana o Atawhenua) Marine Management Act 2005, ss 7 and 8
- 109 Fiordland (Te Moana o Atawhenua) Marine Management Act 2005, s 12
- 110 Fiordland (Te Moana o Atawhenua) Marine Management Act 2005, ss 13 and 3(c)
- 111 Fiordland (Te Moana o Atawhenua) Marine Management Act 2005, s 13(1)(b)
- 112 Fiordland (Te Moana o Atawhenua) Marine Management Act 2005, s 11
- 113 Fiordland (Te Moana o Atawhenua) Marine Management Act 2005, schedule 12
- 114 Fiordland (Te Moana o Atawhenua) Marine Management Act 2005, s 28 and schedule 13
- 115 *Cruising Milford Sound Ltd v Southland Regional Council* C165/05
- 116 None of the marine reserves or China Shop Areas identified in the Fiordland legislation were applicable to the case. It is unclear if the Court's opinion of the Act would have been different if they had been.
- 117 *Cruising Milford Sound Ltd v Southland Regional Council* at [15]
- 118 *Ibid* at [46]
- 119 *Ibid*
- 120 Conservation Act 1987, ss 6 and 2
- 121 Conservation Act 1987, ss 17F and 17G
- 122 Marine Reserves Act 1971, s 3(1)
- 123 Marine Reserves Act 1971, ss 2 and 4(1)
- 124 Marine Reserves Act 1971, s 3(1)
- 125 Marine Reserves Act 1971, s 9
- 126 Marine Reserves Act 1971, s 12
- 127 Marine Reserves Act 1971, s 2(d)
- 128 Marine Reserves Act 1971, s 3(3)
- 129 Marine Reserves Act 1971, s 13
- 130 Marine Reserves Act 1971, s 7(1)
- 131 Marine Reserves Act 1971, s 8(1)
- 132 Marine Mammals Protection Act 1978, s 22(4)
- 133 Marine Mammals Protection Act 1978, s 22(3)

- 134 Marine Mammals Protection Act 1978, s 4
- 135 Marine Mammals Protection Act 1978, s 5(7)
- 136 Marine Mammals Protection Regulations 1990
- 137 Marine Mammals Protection Act 1978, s 3A
- 138 Marine Mammals Protection Act 1978, s 3A(a) and (b)
- 139 Marine Mammals Protection Act 1978, s 3C(1)
- 140 Marine Mammals Protection Act 1978, s 3D(1)
- 141 Marine Reserves Act 1971, s 3(1)
- 142 Jackson, 2013
- 143 Waitangi Tribunal, 2004, 16
- 144 Waitangi Tribunal, 2004, 28
- 145 Waitangi Tribunal, 1988, 174
- 146 Palmer, 2001
- 147 Treaty of Waitangi Act 1975, preamble
- 148 RMA, s 8
- 149 Conservation Act 1987, s 4
- 150 Hauraki Gulf Marine Park Act 2000, s 6
- 151 *New Zealand Māori Council v Attorney-General* [1987] 1 NZLR 641
- 152 Ibid at 664
- 153 Ibid at 664, 675, 680, and 681
- 154 Ibid at 693
- 155 *Te Runanga o Muriwhenua Inc v Attorney-General* [1990] 2 NZLR 641 at 656
- 156 New Zealand Government, nd
- 157 See Peart and Cox (2019) for a full description of purpose and functions of these bodies
- 158 Peart, 2019
- 159 Waitangi Tribunal, 1988, at 1.1.3
- 160 Waitangi Tribunal, 1988, at 12.2.3
- 161 Lock and Leslie, 2007, 29
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- 183 MCAA, s 11(5)
- 184 MCAA, s 12(1) and (2)
- 185 MCAA, s 12(2)
- 186 MCAA, s 16
- 187 MCAA, s 18
- 188 MCAA, s 21
- 189 MCAA, s 26
- 190 MCAA, s 27
- 191 MCAA, s 28
- 192 MCAA, s 79
- 193 MCAA, s 51(1)
- 194 MCAA, s 51(2)
- 195 MCAA, s 52(1)
- 196 MCAA, s 56
- 197 MCAA, s 58(1)
- 198 MCAA, s 60(2)(a)
- 199 MCAA, s 85(1)
- 200 MCAA, s 85(5)
- 201 MCAA, s 93(6)
- 202 MCAA, s 93(10)
- 203 MCAA, ss 88–91
- 204 MCAA, s 66(1)
- 205 MCAA, s 71(3)
- 206 MCAA, ss 66(2) and 71(1)
- 207 MCAA, ss 68(2) and 73(3)(b)
- 208 MCAA, s 74
- 209 MCAA, s 78(1)
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- 211 MCAA, s 47(3)
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Summary of lessons from Sea Change Tai Timu Tai Pari

Harataonga, Aotearoa

Initiated in 2013, Sea Change was the first fully integrated MSP project in New Zealand, spanning the entire Hauraki Gulf Marine Park as well as its catchment areas, and embracing all activities within the Park, including fisheries and marine protection.

Sea Change brought together several strands of evolving natural resource management practice in New Zealand, including the establishment of a Crown-iwi co-governance structure, the use of a multi-stakeholder collaborative process, and the integration of mātauranga Māori and scientific approaches.

The completion of the Sea Change plan in 2016 was a major achievement. Mana whenua and stakeholders reached agreement on a roadmap for action for the most contested area of marine space in New Zealand. Sea Change was also ground-breaking internationally. As far as we know, the completion of a marine spatial plan through a consensus process has yet to be achieved overseas. Its success in this regard has led to interest being shown in the plan from overseas governments.

While the plan envisaged rapid implementation, with a series of dates for actions, modest implementation of the plan is evident two and a half years after its release. That said, recent ministerial announcements indicate a renewed effort by central government agencies to implement the plan with the appointment of a new Ministerial Advisory Committee of nine members to help shape the government's response to the plan.¹ In addition to difficulties with implementation, other key weaknesses were inadequate public engagement and communication, and poor agency involvement in the plan making process.

Sea Change has provided a rich learning ground. Future projects can benefit from this by building on the project's strengths and putting in place mechanisms to address its weaknesses. Sea Change provides a useful basis on which New Zealand can move forward to implement MSP more broadly. From the in-depth review of Sea Change undertaken in *Turning the Tide*, the following key lessons were distilled.

Impetus

The impetus for Sea Change was growing concern about the ecological decline of the Hauraki Gulf, as well as growing conflicts over its use. Efforts to obtain new waterspace for both marine protection and aquaculture had been stymied by strong opposition. In addition, iwi and hapū had been frustrated by a lack of opportunity to exercise kaitiakitanga over the Gulf. There was a strong constituency for change, with project initiation driven by the Hauraki Gulf Forum, EDS and staff at both Auckland Council and Waikato Regional Council.

The Sea Change experience suggests support for MSP is more likely if there are serious and well-articulated problems which current management efforts are failing to address and clear opportunities to achieve positive change. In addition, it is important that strong agency and political champions are engaged throughout the planning process and retained into the implementation phase.

Project structure and resourcing

The project structure of Sea Change was complex and is described in full in *Turning the Tide*. Elements included the governance body (referred to as the Project Steering Group) which oversaw the process and a Project Board consisting largely of agency staff, which oversaw the nuts and bolts of the project including budgets, resourcing and timeframes. The actual plan making process was undertaken by the Stakeholder Working Group under the guidance of an Independent Chair.

Despite substantial resources being made available to the project, Sea Change experienced a number of staffing and resourcing issues, which hindered progress. These included staff turnover (exacerbated by short-term contracts and council restructuring processes), some agency staff only having a small portion of their time assigned to the project, and some staff lacking the requisite skill set.

Future MSP projects would benefit from a clear identification of the skill set required to successfully deliver the project upfront. This could potentially include a principal planner, a chief scientist, an economist, and a public engagement expert. There should be a core project team dedicated solely to the project. Members could be sourced from relevant agency staff seconded to the project full-time and/or contracted from external sources. Staff should be encouraged to commit for the duration of the project. In addition, the project structure should be as streamlined as possible with clear decision-making roles and accountabilities.

Project scope and timeframe

A broad geographical and functional scope for marine spatial plans (as was the case with Sea Change) is desirable as it enables the development of an integrated and ecosystem-based plan. It also can allow innovation in response to intractable problems.

When a broad brief is given to MSP initiatives, effort needs to be put into managing expectations amongst the sponsoring and implementing agencies. These should be explicit and agreed amongst agencies from the outset.

Sea Change was initially given a short timeframe of 18 months to deliver a plan. This timeframe contributed to a weakening of relationships and the project was

paused for several months before continuing in a reconfigured form. The final plan was delivered three years after commencement.

A project timeframe of 3–4 years is the norm for international MSP projects. If future New Zealand initiatives use a collaborative plan making process, and seek to integrate mātauranga Māori (both processes requiring longer timeframes to succeed), three years would likely be the minimum timeframe appropriate.

Co-governance

The governance body for Sea Change (Project Steering Group) was a mix of mana whenua, local government politicians and central government officials. The Project Steering Group's role was to provide overall leadership and high level oversight of the plan making process, to approve the plan on completion, and to advocate implementation by the respective agencies.

The co-governance approach of Sea Change – bringing together agency sponsors of the plan in partnership with mana whenua – was an integral part of the Sea Change project and was a strength of the plan. The approach reflects New Zealand's growing experience in co-governance of natural resources (eg the Waikato River Authority) and co-governance arrangements put in place for the Whanganui River and the Te Urewera National Park, amongst other places.²

The Project Steering Group was disestablished once the plan was publicly launched, and no formal governance structure was retained, or put in place, to oversee implementation, monitoring and review of the plan. Future MSP projects in New Zealand need to design-in implementation structures and processes (including monitoring and reporting on effectiveness) at the outset of the project.

Selection of Stakeholder Working Group members

The Sea Change Stakeholder Working Group had a total of 14 members. Four mana whenua members were selected through a hui-ā-iwi process, and 10 stakeholder representatives were selected from seven interest groupings (agriculture, aquaculture, commercial fishing, infrastructure, recreation, environment/conservation and communities). The members of the Stakeholder Working Group were constructive and able to effectively collaborate.

The selection process came under some criticism. Some sectors were not well represented (eg forestry) and people were not clear ahead of time how the selection process was going to operate. Membership of the Stakeholder Working Group was largely dependent on being physically present at a single meeting. Future MSP projects will need to refine the selection processes to address these issues.

Collaborative process

A major achievement of Sea Change was the completion of a marine spatial plan through a collaborative process, involving mana whenua and stakeholder consensus. A close relationship developed between the Stakeholder Working Group members, and this social capital has beneficially flowed into other Gulf initiatives since the plan was completed. Stakeholder members shifted their positions considerably during the process to enable consensus to be reached. Future MSP projects would do well to consider incorporating collaboration into the plan making process.

In contrast to the approach taken in other collaborative processes, such as the Land and Water Forum, where agency staff participated as 'active observers', in Sea Change agency staff were largely kept apart from the deliberations. This caused some difficulties and plan implementation challenges.

Future MSP projects will need to design a more effective interface between the Stakeholder Working Group members and agency staff. This could consist of agency staff being around the Stakeholder Working Group table as 'active observers' or being more closely integrated as members of working groups. In addition, a well-constructed community engagement mechanism is important to ensure public and local communities do not feel alienated from the process.

Roundtables

Sea Change established six roundtables to focus on specific aspects of the plan and to involve a broader range of stakeholders in the plan development. The roundtables met monthly for six months and then reported back to the Stakeholder Working Group, after which they were disestablished.

Overall, the roundtables were seen as a very positive element of the project. They should be considered for incorporation into future MSP projects. They could be improved through bringing all the groups together from time to time to discuss overlaps and synergies. The groups could also be retained to act as sounding boards later on in the project, as the plan provisions are developed, and could review draft output. They could also serve as advocates for plan implementation.

Mātauranga Māori

It was agreed from the outset that mātauranga Māori would be incorporated into the Sea Change plan. There are around 26 iwi and hapū groups with an interest in the Hauraki Gulf, and it was difficult for the four mana whenua members of the Stakeholder Working Group to fully represent them. It took some time for an effective mātauranga Māori support structure to be put in place, and with the

initial 18-month timeframe for the completion of the plan, effective integration of mātauranga Māori was challenging.

The establishment of the Mātauranga Māori Roundtable with specialist technical support was a positive step, as was engaging a Māori writer, designer and GIS expert to assist the plan writing and production team. Overall, interviewees thought that mātauranga Māori had strengthened the plan considerably and that Sea Change had made more progress in this area than other planning exercises in New Zealand.

Future MSP projects would benefit from designing-in a mātauranga Māori support structure from the outset and should consider resourcing the development of mātauranga Māori material prior to the formal plan making process commencing.



Rangitoto

Science

The science underpinning Sea Change was generally regarded to be of very high quality. Many scientists, who were senior experts in their field, presented their work directly to the Stakeholder Working Group and roundtables. The science needs of the project were largely identified by the Stakeholder Working Group with assistance from the project team. Scientific material was sometimes gathered on request between monthly meetings, rather than in accordance with a coherent science programme being constructed in advance.

At times, some of the Stakeholder Working Group members and roundtable members felt swamped with science, with too little time to digest it adequately. On the other hand, several of those members commented very positively on what they had learnt from the scientific presentations.

Future MSP projects could benefit from including a strong science lead to help curate and interpret the science for Stakeholder Working Group members. This could be in the form of a chief scientist, one or more science conduits, or a scientific advisory body.

Public engagement and communication

Sea Change had varying success at public engagement and communications. During the early phases of the project significant effort was made to engage the public through 'Listening Posts', surveys, outreach at public events, maintaining an active website and public meetings.

The effort wound down during the later stages and the communications function was disestablished after the plan was publicly launched. There was no public consultation on the draft plan due to financial constraints and insufficient time to plan for an effective launch.

Communications and public engagement is a crucial part of any future MSP project. It needs to be carefully planned ahead of time, be consistent throughout the entire project, and continue through into the implementation phase. A senior communications person should be a dedicated part of the project team from the outset. The process for engaging sectoral groups and members of the public in the project should be decided and communicated upfront, including when consultation will take place and whether draft plan material will be made available for public comment.

The plan and implementation

The final Sea Change plan is structured around four parts or kete (baskets) of knowledge: 1) kaitiakitanga and guardianship; 2) mahinga kai – replenishing

the food baskets; 3) ki uta ki ta – ridge to reef or mountains to the sea; and 4) kotahitanga – prosperous communities.

The plan's actions are wide-ranging, including new initiatives for biodiversity and habitat restoration, sediment reduction, and co-governance of local marine areas. It provides for the expansion aquaculture and marine protection. It proposes new management settings for fish stocks and a strategy to transition commercial fishing to a higher value and less environmentally damaging model, amongst many other things.

However, no marine spatial plan is perfect and some interviewees identified weaknesses in coverage in areas such as infrastructure, biosecurity and climate change. Others thought that the plan lacked detail and could have been more spatially referenced. Yet others felt that some of the recommendations were impractical, unfeasible or technically unachievable.

Implementation is one of the most important phases of a MSP project and there is broad consensus that Sea Change has encountered difficulties in this area. As noted above, limited implementation of the plan is evident two and a half years after its release.

Recent ministerial announcements indicate renewed effort to progress the plan, however. In November 2018 the Ministers of Conservation and Fisheries announced their intention to establish a Ministerial Advisory Committee to assist with implementation of the plan and in July 2019 a nine-member committee was appointed. The committee will act as a sounding board for Crown agencies as they review the proposals, and will provide independent advice to ministers.³ Staff from MPI and DOC are to review and test the plan's conservation and fisheries proposals and develop an implementation strategy to present to the Ministers of Conservation and Fisheries.⁴

A number of factors contributed to the lack of implementation and will need to be addressed in future MSP projects. They include:

- Insufficient time to fully test draft plan provisions with agencies, key stakeholder sectors and the general public prior to plan finalisation
- Lack of prioritisation of actions
- Lack of specific budgetary provision for the implementation of the plan
- Local government elections being held just prior to the plan's release with central government elections the following year
- The disestablishment of the Project Steering Group and Stakeholder Working Group on plan completion with no formal multi-agency or stakeholder implementation mechanism put in place

- Lack of time for effective communications when the plan was publicly released and a discontinuance of communications activities shortly after release
- No one agency or Minister being given overarching responsibility for the implementation of the plan
- The lack of champions for the plan amongst implementation agencies (with many of the initial champions having moved on and a failure to effectively develop new champions)

KEY MESSAGES

- **Sea Change was the first fully integrated MSP project in New Zealand. It spanned the entire Hauraki Gulf Marine Park and catchment areas, and embraced all activities within the Park, including fisheries and marine protection.**
- **Sea Change brought together several strands of evolving natural resource management practice in New Zealand, including the establishment of a Crown-iwi co-governance structure, the use of a mana whenua and stakeholder collaborative process, and the integration of mātauranga Māori and scientific approaches.**
- **The completion of the Sea Change plan in 2016 through a consensus process broke new ground in New Zealand and internationally. As far as we know, the completion of marine spatial plan through a consensus process has yet to be achieved overseas.**
- **While the plan envisaged rapid implementation, modest implementation of the plan is evident two and a half years after its release (although recent ministerial announcements indicate a renewed effort by central government agencies to implement the plan). In addition to difficulties with implementation, other key weaknesses were inadequate public engagement and communication, and poor agency involvement in the plan making process.**
- **Sea Change provides a rich learning ground. Future projects can benefit by building on the project's strengths and putting in place mechanisms to address its weaknesses.**

Endnotes

- 1 Minister of Conservation and Minister of Fisheries, 2019
- 2 Iorns Magallanes, 2015
- 3 Minister of Conservation and Minister of Fisheries, 2018 and 2019
- 4 MPI, 2019

A wide-angle photograph of the Melbourne Docklands waterfront at sunset. The sky is filled with dramatic, dark clouds, with the sun low on the horizon creating a bright glow and rays of light. In the foreground, two people are walking along a concrete pier. The water reflects the sunset light. In the background, several modern buildings are visible, including a prominent one with a curved, wavy facade. A large ship is docked at a pier in the middle ground.

Review of international jurisdictions

Melbourne Docklands

This chapter reviews seven statutory frameworks for MSP from overseas jurisdictions. Overarching findings from each of the frameworks and differences and similarities between them are described.

The frameworks reviewed are:

- United States: (Massachusetts) Oceans Act 2008
- Canada: Oceans Act 1996
- Australia: (Victoria) Marine and Coastal Act 2018
- EU: Directive on Maritime Spatial Planning 2014
- Denmark: Act on Maritime Spatial Planning 2016
- UK: Marine and Coastal Access Act 2009
- Scotland: Marine (Scotland) Act 2010

For each statutory framework, the following elements are described:

- Purpose and principles
- Scope (geographical and sectoral)
- Responsible agency/Minister for plan preparation
- Process for plan preparation
- Use of science
- Stakeholder and public participation
- Plan approval process
- Legal status of the plan
- Interface with other legislation
- Provisions for monitoring and review

Oceans Act 2008 (Massachusetts)

The Massachusetts Oceans Act was passed into law in May 2008, a time when Massachusetts ocean resources were facing unprecedented pressure from recreation, tourism, fishing, shipping and trade, and scientific research. In addition, new proposals for renewable energy, deepwater aquaculture and offshore sand mining highlighted the need for Massachusetts to more effectively manage the protection and use of its ocean waters.

The Oceans Act required a draft ocean management plan to be issued by June 2009 and a final plan to be in place by December 2009. To assist the planning process, the Act created two new advisory bodies: an Ocean Advisory Commission and an Ocean Science Advisory Council.

The Massachusetts Ocean Management Plan 2009 was promulgated in accordance with the statute, 18 months after the passing of the Oceans Act. It designated the vast majority of the planning area as a 'Multi-Use Area', open to all uses, activities and facilities subject to siting and management standards defined in the Plan. A 'Prohibited Area' was established where certain uses are prohibited (eg those associated with the generation, transmission and distribution of electric power). The Plan also identified several 'Renewable Energy Areas', including two designated 'Wind Energy Areas'.

The Massachusetts Ocean Plan 2009 has now been superseded by the Massachusetts Ocean Management Plan 2015. The 2015 version of the Plan retained the three categories of management areas (Prohibited Areas, Renewable Energy Areas and Multi-Use Areas), but made some revisions to the mapped extent of these areas, as well as their specific management standards based on new information. The 2019–2020 plan review and update process is currently underway.

Purpose and principles

The Oceans Act includes 15 directives for the Ocean Management Plan. The Plan is required to:

- Set forth the Commonwealth's goals, siting priorities, and standards for ensuring effective stewardship of its ocean waters held in trust for the benefit of the public
- Adhere to sound management practices, taking into account the existing natural, social, cultural, historic, and economic characteristics of the planning areas
- Preserve and protect the public trust
- Reflect the importance of the waters of the Commonwealth to its citizens who derive livelihoods and recreational benefits from fishing
- Value biodiversity and ecosystem health
- Identify and protect special, sensitive, or unique estuarine and marine life and habitats
- Address climate change and sea-level rise
- Respect the interdependence of ecosystems

- Coordinate uses that include international, federal, state, and local jurisdictions
- Foster sustainable uses that capitalize on economic opportunity without significant detriment to the ecology or natural beauty of the ocean
- Preserve and enhance public access
- Support the infrastructure necessary to sustain the economy and quality of life for the citizens of the Commonwealth
- Encourage public participation in decision-making
- Adapt to evolving knowledge and understanding of the ocean environment
- Identify appropriate locations and performance standards for activities, uses, and facilities allowed under the Ocean Sanctuaries Act

Scope

The geographic coverage of the Ocean Management Plan includes waters and associated submerged lands of the ocean, including the seabed and subsoil, between the nearshore boundary, which generally follows the contour of the Massachusetts coast approximately 0.5 kilometres from shore, and the seaward boundary, generally 3 nautical miles offshore. It therefore excluded catchments, the immediate land-sea interface, and deeper ocean. The total surface area is 5549 square kilometres.¹ The sectors and activities covered by the Plan are wide-ranging but explicitly exclude fisheries management.²

Responsible agency/Minister

The Massachusetts Secretary of Energy and Environmental Affairs is responsible for developing the Ocean Management Plan.³ In practice, the Office of Coastal Zone Management (a state government agency) has led the planning processes on the Secretary's behalf, in close collaboration with other government agencies.

When developing the 2009 Ocean Management Plan, the Secretary designated an interagency ocean management team chaired by the Office of Coastal Zone Management and comprising of personnel from the Department of Environmental Protection's Wetlands and Waterways Program, the Department of Fish and Game's Natural Heritage and Endangered Species Program and Division of Marine Fisheries, and the Massachusetts Environmental Policy Act Office. This interagency team served as a coordinating body, offering assistance and advice to the Secretary.

The interagency team has continued to serve as a coordinating body, offering project review, recommendations for validation and synthesis of data used in the plan, and ocean-related policy and research support.

Process for plan preparation

The development of the first Ocean Management Plan in 2009 proceeded in three phases: information gathering, draft plan development, and formal public review of the draft plan/plan finalisation. Throughout these stages there was an extensive public participation program, as described below.

The Act also establishes a 17-member Ocean Advisory Commission to assist the Secretary in developing the Plan. The Commission is a mix of stakeholders appointed by the Governor of Massachusetts (8 people), along with senior officials in various agencies and elected members of the state senate and house of representatives (9 people). Members are appointed for terms of three years.⁴

The Commission is to meet at least quarterly and is to make recommendations to the Secretary '*for the proper management and development of the plan*'. The Secretary is required to consider the recommendations of the Commission.⁵ The Office of Coastal Zone Management and Division of Marine Fisheries are required to provide technical support to the Commission.⁶

Use of science

The Oceans Act mandated a 'Baseline Assessment' as part of the first Ocean Management Plan and requires a review and update of this assessment at least every five years. The 2009 Baseline Assessment constituted an extensive cataloguing of the current state of knowledge regarding human uses, natural resources, and other ecosystem components of Massachusetts ocean waters. An updated assessment was developed for the second iteration of the Ocean Management Plan in 2015.

The Act establishes an Ocean Science Advisory Council to assist the Secretary in creating a Baseline Assessment and obtaining any other scientific information necessary for the development of the Ocean Management Plan. The Council is appointed by the Secretary and consists of nine members, all with scientific expertise. Three members must be from academic institutions, three must be from non-profit organisations (including the Massachusetts Fishermen's Partnership) and three from government agencies. The Council meets at least quarterly.⁷

Stakeholder and public participation

In accordance with the Oceans Act, the public must be given the opportunity to comment on the draft plan at least six months before it's finalised. The public

comment period is to include at least four public hearings in at least four different coastal regions and must remain open for at least 60 days from the date of the final public hearing.⁸

Stakeholder involvement in 2009 was significant, including 18 public listening sessions held across the state to gather initial information, five public workshops to introduce the planning approach and solicit feedback before draft plan release, five formal public hearings following the release of the draft plan, and hundreds of meetings with stakeholders such as pilots, fishermen, non-governmental organizations and academia during the development of the draft and final plans.

Plan approval process

The Act sets out a process whereby, after the close of the public comment period, the Secretary issues a final ocean management plan and files the Plan, together with legislation necessary to implement it, if any, in the house of representatives and senate. On behalf of the Executive Office of Energy and Environmental Affairs, the Office of Coastal Zone Management is responsible for the administration, implementation and oversight of the plan.

Legal status of the plan

Upon the Secretary's adoption of the Ocean Management Plan, all licences and approvals for any proposed structures, uses or activities in areas subject to the plan must be consistent, to the maximum extent practicable, with the plan provisions.⁹

The Oceans Act also requires the Secretary to promulgate regulations to implement and administer the Plan.¹⁰ In reality, this turned out to be a significant exercise, spanning several years following release of the 2009 Plan. In 2010, an internal working group of state agencies convened to develop the first preliminary working draft of regulations. The group was comprised of representatives from the Executive Office of Energy and Environmental Affairs, the Office of Coastal Zone Management, Massachusetts Environmental Policy Act Office, Department of Environmental Protection and Department of Fish and Game. It met monthly to work through the process of converting, codifying and clarifying the contents of the Plan into regulatory language.

In August 2011, an advisory group consisting of a broad cross-section of stakeholders and interests was convened to review and provide feedback on a working-draft set of regulations. Chaired by the Office of Coastal Zone Management, the advisory group met for a series of seven meetings to provide the Executive Office of Energy and Environmental Affairs with input and feedback.

In April 2012, the draft rules were presented to and reviewed by the Ocean Advisory Commission, and in August 2013, after a public comment and hearing process, the final stages of rulemaking and formal issuance took place.

The Plan is also to be formally incorporated into the Massachusetts Coastal Zone Program.¹¹ The federal National Oceanic and Atmospheric Administration formally adopted the Ocean Management Plan into the Massachusetts Coastal Management Program in 2011. This enables Massachusetts to review projects that require federal licences and permits to ensure that they abide by state-defined enforceable coastal policies.

Interface with other legislation

The Oceans Act modifies the Ocean Sanctuaries Act to allow the development of 'appropriate scale' renewable energy facilities in ocean sanctuaries (except for the Cape Cod Ocean Sanctuary, where such facilities are not allowed), provided such facilities are consistent with the Ocean Management Plan and other stipulations.¹²

The Act explicitly provides for the continued and exclusive jurisdiction of the Division of Marine Fisheries in relation to the regulation of commercial and recreational fishing. Any regulation relating to fishing must be '*developed, promulgated and enforced by the division of marine fisheries*' in accordance with existing fisheries law. For example, the Director of Marine Fisheries has sole authority for the opening and closing of areas to fishing.¹³

In addition, a component of an Ocean Management Plan which does not have as its primary purpose the regulation of commercial or recreational fishing, but which has an impact on fishing, shall minimise negative economic impacts on commercial and recreational fishing. Advice from the Division of Marine Fisheries must be sought before any such component is included in a Plan. The Division is to '*evaluate the component for its impact on commercial and recreational fishing and, if possible, develop and recommend to the secretary any suggestions or alternatives to mitigate or eliminate any adverse impacts*'.¹⁴

Provisions for monitoring and review

The Oceans Act requires the plan and its implementing regulations to be reviewed every five years and amended as necessary. The Oceans Act also requires the review and update of the Baseline Assessment at least every five years.¹⁵ The Massachusetts Ocean Management Plan is now in its second iteration – the 2009 Plan was replaced with a new plan in 2015. The 2019–2020 plan review and update process is currently underway.

Oceans Act 1996 (Canada)

Canada's Oceans Act was passed in 1996, establishing the federal framework for marine planning in Canada. The Act calls for the Minister of Fisheries and Oceans to lead the development of a national strategy for marine management and develop plans for the integrated management of all activities affecting estuarine, coastal and marine areas in Canada. The Act also performs a range of other functions, including defining Canada's maritime territory in accordance with the United Nations Convention on the Law of the Sea and establishing a framework for development and implementation of a national system of marine protected areas.

Purpose and principles

The preamble to the Oceans Act guides the overall approach to ocean management. It specifically refers to fostering the sustainable development of the oceans and their resources. It also refers to the importance of conservation based on an ecosystem approach and promotes the wide application of the precautionary approach in order to protect ocean resources and preserve the marine environment. In addition, the preamble refers to promoting integrated management of oceans and marine resources, recognising opportunities for economic diversification and the generation of wealth from the oceans, and developing oceans policy in collaboration with affected Aboriginal organisations.

The Minister of Fisheries and Oceans is required to lead and facilitate the development and implementation of a 'national strategy' for the management of marine areas.¹⁶ Canada's Oceans Strategy was released in 2002 and is the national policy statement that defines the vision and policy objectives for implementing the Oceans Act.

The Act includes three 'principles' that the national strategy is to be based on, reflecting some of the concepts stated in the preamble:¹⁷

- Sustainable development, that is, development that meets the needs of the present without compromising the ability of future generations to meet their own needs
- The integrated management of activities in estuaries, coastal waters and marine waters that form part of Canada or in which Canada has sovereign rights under international law
- The precautionary approach, that is, erring on the side of caution

Scope

The Oceans Act is wide in geographic scope, relating to estuarine, coastal and marine waters that form part of Canada or in which Canada has sovereign rights

under international law. This includes the territorial sea, EEZ and extended continental shelf.

The Oceans Strategy and its companion non-statutory document, *Policy and Operational Framework for Integrated Management of Estuarine, Coastal and Marine Environments in Canada*, establish the Canadian government's intent over the long term to establish a system of Large Ocean Management Areas, which will ultimately cover all marine waters within Canadian jurisdiction, and smaller Coastal Management Areas nested within them.¹⁸

Responsible agency/Minister

The Minister of Fisheries and Oceans is required to lead and facilitate the development and implementation of 'integrated management plans' for these marine areas.¹⁹ He or she is required to do so 'in collaboration' with a wide range of stakeholders. These include other ministers, boards and agencies, provincial and territorial governments, affected Aboriginal organisations, coastal communities, and other persons and bodies, including those bodies established under land claims agreements.²⁰



Vancouver, Canada

The federal Department of Fisheries and Oceans (officially Fisheries and Oceans Canada) is the lead agency responsible for preparing the Oceans Strategy, the Policy and Operational Framework and integrated management plans. This mandate is in addition to the Department's other marine responsibilities related to the management of Aboriginal, commercial and recreational fisheries, marine safety and communication, environmental response, and the provision of marine scientific advice and research.

Process for plan preparation

The Oceans Act does not specify the process for preparing integrated management plans. Guidance is provided in the Oceans Strategy and Policy and Operational Framework, which set out a range of process requirements, including the various stages of an integrated management planning process and content requirements for integrated management plans.²¹

For the Large Ocean Management Areas, the Department plays a lead role in the development of integrated management plans as many of the marine issues to be addressed fall within federal jurisdiction and require departmental coordination of federal policies and programmes. These plans also provide the framework for a national network of marine protected areas.

In Coastal Management Areas, many of the management issues to be addressed fall within provincial/territorial or community government jurisdiction. In this case, the role of the Department is more of a facilitator, providing technical and scientific support to community-based initiatives; ensuring that planning takes place within the context of the relevant Large Ocean Management Area plan; and providing guidance on the application of the principles of the Oceans Act.

Use of science

The Minister of Fisheries and Oceans has a range of general science-related functions and powers under the Oceans Act and *'is responsible for coordinating, promoting and recommending national policies and programs with respect to fisheries science, hydrography, oceanography and other marine sciences'*.²²

While there is no explicit provision for use of science in preparing integrated management plans in the Act, the Policy and Operational Framework envisages that integrated planning processes will gather input from scientific and traditional knowledge, vigorous public debate, monitoring, assessment and reporting.²³

Stakeholder and public participation

As mentioned above, the Minister is required to undertake his or her planning role 'in collaboration' with a wide range of stakeholders, although the Act stops short of suggesting any precise mechanism for engagement of these groups.²⁴

The Policy and Operational Framework indicates that the preparation of integrated management plans should be carried out by a multi-stakeholder 'Integrated Management Body' which typically will involve representatives from:

- National, regional and local management authorities
- Aboriginal organisations and communities
- Coastal and ocean industries and resource user groups
- Non-governmental organisations
- Community groups
- Individual citizens
- Representatives from the academic, scientific and research community

Information is to be provided to the public throughout the process, and opportunities provided for input and consultation at all stages of the planning process.²⁵

Plan approval process

Before endorsement of an initial draft plan by the integrated management body, there is to be an opportunity for the participants to seek broader approval of the draft plan. Federal participants, such as Department of Fisheries and Oceans, Transport Canada and Indian and Northern Affairs, may need to seek policy or regulatory approval for specific elements of the plan. The proposed integrated management plan is submitted for review and endorsement by the responsible mandated authority, generally the Department of Fisheries and Oceans.²⁶

Legal status of the plan and interface with other legislation

The Oceans Act intends integrated management plans to be formally implemented by government, specifying that, for this purpose, the Minister of Fisheries and Oceans:²⁷

- Shall develop and implement the specific policies and programs for which he/she has responsibility
- Shall co-ordinate the oceans-related policies and programs of other Ministers, boards and agencies of the Government of Canada
- May establish management or advisory bodies (or recognise existing bodies)
- May establish marine environmental quality guidelines, objectives and criteria and standards

The Policy and Operational Framework addresses implementation, with integrated management bodies potentially assuming part of the responsibility for the implementation of the approved management plan. This may be formalised through a series of agreements with the mandated authorities to implement some of the recommendations.²⁸

Provisions for monitoring and review

The Oceans Act requires that the Standing Committee on Fisheries and Oceans review the Act's administration within three years of it coming into force. The Committee is to undertake a *'comprehensive review of the provisions and operation of this Act, including the consequences of its implementation'* and is required to submit a report to Parliament including any recommended changes to the Act or its administration.²⁹ Integrated management plans are also to be regularly reviewed including ecosystem, institutional and socioeconomic objectives, indicators, and associated management actions.³⁰

Marine and Coastal Act 2018 (Victoria, Australia)

Victoria's Marine and Coastal Act was enacted in 2018 in response to the state government's recognition that it needed to reform marine and coastal management to address new challenges, particularly those arising in the face of climate change, increasing population pressures and ageing coastal infrastructure.³¹ The Act repeals and partially re-enacts its predecessor, the Coastal Management Act 1995.

The Act has a range of purposes, including establishing a tiered system of planning documents comprising a Marine and Coastal Policy, a Marine and Coastal Strategy, and a variety of regional and local plans. The Act also establishes a new Marine and Coastal Council and creates offences and enforcement mechanisms for unauthorised use or development of marine and coastal Crown land.³²

The Act requires development of the first Marine and Coastal Policy to occur by 31 December 2019.³³ The Policy is to be prepared by the Minister for Energy, Environment and Climate Change and is intended to be a long-term state-wide policy document for the marine and coastal environment that guides decision-makers in achieving the objectives of the Act.

A framework for MSP is to be prepared as a compulsory element of the Marine and Coastal Policy (hereafter referred to as 'MSP Framework').³⁴ The MSP Framework is to establish a process for achieving integrated and coordinated planning and management of the marine environment.³⁵ There is little detail provided in the Act on what the MSP Framework should look like. Instead, the

approach taken by the Government of Victoria has been to establish the 'nuts and bolts' of MSP in the Marine and Coastal Policy. In July 2019 a draft Marine and Coastal Policy was released for public consultation, chapter 15 of which contains 'A Marine Spatial Planning Framework for Victoria'. This report refers to the draft MSP Framework because the final Marine and Coastal Policy had not been released at the time of publication.³⁶

Purpose and principles

The Marine and Coastal Act contains seven guiding principles and nine objectives for the planning and management of the marine and coastal environment. Lower policy documents (including the Marine and Coastal Policy and its MSP Framework) must be consistent with these objectives and guiding principles. The guiding principles include integrated coastal zone management, ecosystem-based management, ecologically sustainable development, evidence-based decision-making, precautionary principle, proportionate and risk-based principle and adaptive management.

The objectives for the planning and management of the marine and coastal environment are to:³⁷

- Protect and enhance the marine and coastal environment
- Promote the resilience of marine and coastal ecosystems, communities and assets to climate change
- Respect natural processes in planning for and managing current and future risks to people and assets from coastal hazards and climate change
- Acknowledge traditional owner groups' knowledge, rights and aspirations for land and sea country
- Promote a diversity of experiences in the marine and coastal environment
- Promote the ecologically sustainable use and development of the marine and coastal environment and its resources in appropriate areas
- Improve community, user group and industry stewardship and understanding of the marine and coastal environment
- Engage with specified Aboriginal parties, the community, user groups and industry in marine and coastal planning, management and protection
- Build scientific understanding of the marine and coastal environment.

The MSP Framework contains an additional aspiration statement and set of goals and principles to guide MSP processes. The aspiration is that:³⁸

'Planning and management of Victoria's marine environment is integrated, coordinated, collaborative and evidence based. It promotes healthy, resilient and functioning ecosystems, supporting diverse and ecologically sustainable use that benefits the Victorian community, now and in the future.'

A set of four goals describe the outcomes being pursued for Victoria's marine environment through planning and management, including MSP:³⁹

- Goal 1: Marine ecosystems are healthy, resilient and functional
- Goal 2: Ecologically sustainable use and activity provides social, cultural and economic benefits
- Goal 3: Good governance and inclusivity
- Goal 4: Proactive and adaptive planning and management, supported by evidence and information

Finally, five principles are to guide Victoria's planning and management of the marine environment, including MSP:⁴⁰

- Proactive, future-oriented and iterative
- Inclusion, collaboration and transparency
- Recognition and integration of Sea Country knowledge and practice
- Optimal and equitable use of marine space and resources
- Appropriate and specific in scale, space and time

In addition to these principles, the seven guiding principles set out in the Marine and Coastal Act itself apply to MSP processes.

Scope

The geographical scope of the MSP Framework is Victoria's 'marine environment', which is defined in the Act as the area between the outer limit of Victorian coastal waters (3 nautical miles offshore) and the high water mark of the sea, and includes the land, any water covering the land, and the biodiversity associated with the land and water.⁴¹

While the MSP Framework only applies to the marine environment, the legislation itself is broader in scope, and is concerned with protection and management of Victoria's marine and coastal environment. This includes all of Victoria's marine area and extends 5 kilometres inland from high water.⁴² In addition, a guiding principle of the Act, Integrated Coastal Zone Management, requires planning and management to be coordinated and integrated across the marine and coastal environment and associated catchments.

Consistent with this requirement, the MSP Framework states land planning and catchment management authorities must be informed and invited to participate in the MSP process and the development of any outputs. Similarly, land planning and catchment management authorities must consider relevant marine plans when conducting terrestrial and catchment planning.⁴³

The guiding principle of Integrated Coastal Zone Management also requires planning and management to be coordinated and integrated across industry sectors and users of the marine environment. This requirement is reflected in the MSP Framework, which encompasses the full range of activities and sectors, and notes that while cumulative and synergistic impacts of natural variability and human influence on marine ecosystems can be complex and difficult to assess, ecosystem-based management requires that these interactions be examined and incorporated into marine planning and decision-making.⁴⁴

Responsible agency/Minister

The development of the MSP Framework has been led by the Department of Environment, Land, Water and Planning. As outlined above, it is part of the wider Marine and Coastal Policy which, while prepared by the Department of Environment, Land, Water and Planning, is ultimately approved by the Minister for Energy, Environment and Climate Change under the Act.



Melbourne CBD

The legislation requires that the Minister obtain agreement on the contents of the Marine and Coastal Policy (including the MSP Framework) and the Marine and Coastal Strategy from each responsible Minister of an applicable Act. Applicable Acts include legislation relating to fisheries, petroleum, transport, marine safety, among other things. This provision essentially requires Victoria's overarching Marine and Coastal Policy to be endorsed by all Ministers with portfolios relevant to the marine and coastal environment.⁴⁵

Process for plan preparation

Victoria's Marine and Coastal Act introduced a new (relative to the former Coastal Management Act 1995) planning mechanism in the form of 'regional and strategic partnerships' (RASPs). The purposes of a RASP are to respond to an identified regional issue relating to or affecting the marine and coastal environment and to prepare a 'product'.⁴⁶ The government intends that RASPs will be particularly relevant to the management of issues that cross jurisdictional boundaries.⁴⁷

RASPs come into being when established, by instrument, by the responsible Minister. They consist of two or more partner agencies, which can be government or nongovernment bodies that have an interest in or connection with the marine and coastal environment.⁴⁸ RASPs can be established on direction by the Minister, or following a request to the Minister by the Victorian Marine and Coastal Council (an advisory body established by the Act) or a partner agency. RASPs can only be established with the agreement of each partner agency.

The instrument establishing a RASP must identify a lead partner agency, the terms of reference of the partnership, a statement of whether an implementation plan is necessary for the purposes of the partnership, and the reporting requirements in relation to the partnership. The lead agency is responsible for coordinating the preparation and implementation of the product.⁴⁹

The Act also sets out consultation requirements with key stakeholders and the public, and includes a requirement for inviting and considering public submissions. The product of the RASP ultimately comes into operation when it is approved by the responsible Minister and notice is made in the government Gazette.⁵⁰

The RASP process provides flexibility with respect to the end product that is created from the partnership, with the Act not defining or constraining the nature of the product. In its MSP Framework, the Government of Victoria proposes a RASP be used to complete a MSP process (ie the product of the partnership could include a marine spatial plan, among other things).

The RASP provisions in the Act are suited to MSP in a range of ways. They enable all appropriate partners to be involved in an MSP process, mandate consultation with key stakeholders and the public, and the resulting product of the partnership

– in this case a marine spatial plan – has legal effect under the Act (described below). Use of these provisions for MSP also allow MSP to be proposed and led by government or non-government bodies, and establishes an important role for the Marine and Coastal Council in MSP (described below).

In addition to an MSP process being established by direction of the Minister, or on request by the Marine and Coastal Council or partner agency, the MSP Framework provides for two other avenues for MSP initiation. Undertaking a MSP process can be an action in the Marine and Coastal Strategy or be deemed necessary following the findings of a State of the Marine and Coastal Environment Report.⁵¹

Use of science

A number of provisions in the Marine and Coastal Act establish requirements for the use of science and expert advice in marine planning and management. One of the overarching objectives for the planning and management of the marine and coastal environment is to build scientific understanding of the marine and coastal environment.⁵² A key institution established by the Act to promote this objective is the Marine and Coastal Council.

The Council serves as an independent advisory body to the Minister. When appointing its 7–9 members, the Minister is required to consider a person's qualifications and experience in relation to the functions of the Council.⁵³ Among its specific functions, the Council is to provide guidance and strategic advice to the Minister on the development of the Marine and Coastal Policy. It can request the Minister to establish a RASP (including for MSP purposes) and to provide advice to the parties of a RASP on the preparation of a product (such as a marine spatial plan). It also provides advice to the Minister on matters requiring scientific research.⁵⁴

The Act requires that every five years a State of the Marine and Coastal Environment Report is prepared. The Report must include the condition of the marine and coastal environment, the environmental, social and economic benefits it provides, and threats to it.⁵⁵

The MSP Framework contains specific direction on what scientific information should be used in MSP processes. For example, it states a description and representation of the key environmental features of the area, including mapping of key ecological values and sites of significance is required, along with a description and representation of the extent and distribution of human activities in the marine area with associated socioeconomic data. It also requires an analysis of possible future uses of the marine area, including extent, distribution and possible interactions with other uses and ecosystems, among other things.⁵⁶

Stakeholder and public participation

One of the overarching objectives of the Marine and Coastal Act is to engage with specified Aboriginal parties, the community, user groups and industry in marine and coastal planning, management and protection.⁵⁷ The MSP Framework and resulting marine spatial plans are required to be consistent with this objective.

The use of the RASP provisions of the Act for MSP establish a way for government and non-government bodies to develop a marine spatial plan in partnership. The MSP Framework states partners that should be involved in a MSP process are government and non-government bodies that have an interest in, or connection with, the marine and coastal environment relevant to the particular issue that needs to be addressed, and/or have planning and management responsibility for the marine and coastal environment. There is little guidance in the Act or the MSP Framework about how parties to the partnership are to go about preparing a marine spatial plan in practice. For example, there is no indication of whether consensus on the plan provisions is required or who is responsible for drafting the plan provisions.

The Act requires that in preparing a product (in this case a marine spatial plan), parties to the partnership must consult with:

1. the Victorian Marine and Coastal Council
2. any of the following persons or bodies whose interests may be affected by the marine plan (that are not already parties to the RASP)
 - the responsible Minister of an applicable Act
 - a municipal council
 - a specified Aboriginal party with responsibility for areas in and adjacent to the planning area
 - a public authority.

In addition to consultation with these key stakeholders, broader public consultation is required. Public submissions on a draft marine spatial plan must be invited (for at least a 28-day period) and considered by parties to the RASP before parties finalise the plan.⁵⁸

Plan approval process

The Marine and Coastal Act outlines the formal process for approval of products prepared by a RASP. These provisions are to apply to approval of marine spatial plans. After considering any submissions in relation to a proposed marine spatial plan, the parties to the partnership must submit the proposed plan to the Minister for approval. The Minister must either approve the plan with or without

amendment, or refuse to approve the plan and direct the partnership to amend the product. The Minister must publish notice of the approval of the plan in the government Gazette.⁵⁹

Legal status of the plan and interface with other legislation

Marine spatial plans, as products of regional and strategic partnerships, are statutory documents with legal effect under the Marine and Coastal Act. In determining consent applications on marine and coastal Crown land, the Minister must ensure that the consent is consistent with a marine spatial plan.⁶⁰ Crown land managers must take all reasonable steps to implement marine spatial plans in respect of the land managed on behalf of the Crown.⁶¹

The MSP Framework recognises management approaches identified in the plan may include those that are enforced through other legislation (eg fisheries legislation). In this case the marine plan is to identify agencies or partners responsible for implementing specific actions. However, there is no legal mechanism to achieve recognition or implementation of the plan by agencies operating under other legislation. The approach is to achieve implementation by communication across government supported by clear statements of responsibility in the marine spatial plan itself. Community awareness and understanding of the marine plan is to be increased through information and communications strategies.⁶²

Provisions for monitoring and review

There is no express statement in the Act as to monitoring or review of the MSP Framework or marine spatial plans. The Minister may amend a Marine and Coastal Policy (of which the MSP Framework is a part) at any time with the agreement of other Ministers holding portfolios relevant to marine and coastal management.⁶³

The MSP Framework contains a dedicated section with guidance on monitoring, evaluation, reporting and improvement. Monitoring is to assess the state of the system (eg 'What is the status of current conditions in the marine planning area?'). This includes environmental conditions but also monitoring of use and activity and progress in resolving conflict between uses. Monitoring is also to measure the performance of management approaches (eg 'Are the management approaches we have taken producing the outcomes we desire, and supporting progress in achieving the vision, goals and objectives for the planning area?'). The implementation section of the marine plan should outline appropriate instructions regarding timeframes or thresholds for formal review of the plan, as well as guidance for assigning responsibility for this process.

EU Directive on Maritime Spatial Planning 2014

The EU Directive on Maritime Spatial Planning 2014/89/EU (23 July 2014) requires EU member states (other than those states that are landlocked) to establish and implement MSP.⁶⁴ MSP is seen as a tool which can assist with the implementation of a range of other EU directives and policy initiatives relating to energy, transport, fisheries and the environment in the maritime space. It follows on from the EU's Maritime Strategy Framework Directive, which was adopted on 17 June 2008, and seeks to provide more effective protection for the marine environment across Europe to achieve 'good environmental status' of marine areas by 2020. In that regard, the EU MSP Directive is essentially 'one piece of the puzzle' in terms of EU regulation of the sea.

The domestic laws required to comply with the Directive were to be brought into force by member states by September 2016. Maritime spatial plans are to be established as soon as possible and no later than 31 March 2021.

Purpose and principles

The purpose of the EU Directive is to establish a framework for MSP that must be implemented by member states, with the aim of:

- Promoting the sustainable growth of maritime economies, the sustainable development of marine areas and the sustainable use of marine resources
- Contributing to objectives specified in the Directive [see below] taking into account land-sea interactions and enhanced cross-border cooperation

Each member state remains responsible for designing and determining the format and content of the plans, including institutional arrangements and any apportionment of maritime space to different activities and uses, although the Directive establishes a range of minimum requirements for MSP (discussed below).⁶⁵

'Maritime spatial planning' is defined in the Directive as '*a process by which the relevant Member State's authorities analyse and organise human activities in marine areas to achieve ecological, economic and social objectives*'.⁶⁶ The Directive's preamble says that the main purposes of maritime spatial planning are to promote sustainable development, identify the utilisation of maritime space for different sea uses, manage spatial uses and conflicts in marine areas, and encourage multi-purpose uses. In order to achieve those purposes, the planning process must result in identification of the different uses of maritime space and take into consideration long-term changes due to climate change.⁶⁷

The Directive itself does not contain a statement of purposes or principles (other than to establish an MSP framework), however it does identify two specific objectives, that member states are to:

- In establishing and implementing plans, consider economic, social and environmental aspects to support sustainable development and growth in the maritime sector, applying an ecosystem-based approach, and to promote the coexistence of relevant activities and uses⁶⁸
- Through their plans, aim to contribute to the sustainable development of energy sectors at sea, of maritime transport, and of the fisheries and aquaculture sectors, and to the preservation, protection and improvement of the environment, including resilience to climate change impacts⁶⁹

Member states may also pursue other objectives such as the promotion of sustainable tourism and the sustainable extraction of raw materials.⁷⁰ How these objectives are reflected or weighted in a maritime spatial plan is up to the individual member states.⁷¹

The preamble notes that the aim of applying an ecosystem-based approach is to ensure that the collective pressure of all activities is kept within levels compatible with the achievement of good environmental status and that the capacity of marine ecosystems to respond to human-induced changes is not compromised, while contributing to the sustainable use of marine goods and services by present and future generations.⁷²

Scope

Geographically, the Directive applies to the marine waters of a state, which includes the waters, seabed and subsoil. Member states must take into account land-sea interactions, which may be part of the MSP process; if they are not, the outcome of an alternative process must be reflected in the maritime spatial plan.⁷³ That said, the Directive does not apply to coastal waters that fall within a member state's town and country planning regime, nor to activities whose sole purpose is defence or national security.

The sectoral scope of MSP is broadly cast. Possible activities, uses and interests may include aquaculture areas; fishing areas; installations and infrastructures for the exploration, exploitation and extraction of oil, gas and other energy resources, of minerals and aggregates, and for the production of energy from renewable sources; maritime transport routes and traffic flows; military training areas; nature and species conservation sites and protected areas; raw material extraction areas; scientific research; submarine cable and pipeline routes; tourism; and underwater cultural heritage.⁷⁴

Responsible agency/Minister

Member states are required to designate the authority or authorities responsible for the implementation of the Directive. A list of those authorities must be

provided to the European Commission.⁷⁵ Member states bordering marine waters must cooperate, with the aim of ensuring that maritime spatial plans are coherent and coordinated across the relevant marine area, including taking into account issues of a transnational nature.⁷⁶ Member states must also endeavour, where possible, to cooperate with third countries in relation to maritime spatial planning in accordance with international law and conventions.⁷⁷

Process for plan preparation

The process for preparing maritime spatial plans remains at the discretion of member states, however the Directive prescribes that plans must be prepared with public participation (see below).⁷⁸

While the member states have a broad discretion as to the content of plans, the Directive requires maritime spatial plans to identify the spatial and temporal distribution of relevant existing and future activities and uses,⁷⁹ and to establish procedural steps to contribute to the objectives specified by the Directive. In doing so, they must:⁸⁰

- Take into account land-sea interactions, which may be part of the MSP process, but if not, the outcome of an alternative process must be reflected in the maritime spatial plan
- Take into account environmental, economic and social aspects, as well as safety aspects
- Aim to promote coherence between MSP and the resulting plan or plans and other processes, such as integrated coastal management or equivalent formal or informal practices
- Ensure the involvement of stakeholders
- Organise the use of best available data
- Ensure trans-boundary cooperation between Member States
- Promote cooperation with third countries

Use of science

The Directive requires member states to organise the use of the best available data and decide how to arrange the sharing of information necessary for maritime spatial plans. 'Best available data' may include environmental, social and economic data and marine physical data about marine waters but the Directive does not contain a list of mandatory data to be collected and shared.

The Directive does not otherwise specify the role of science in preparing the plans, other than insofar as it establishes the objective to apply an

ecosystems-based approach and to require that environmental aspects must be taken into account, which must rely on scientific data.

The preamble does provide some additional direction in relation to the application of an ecosystem-based approach, saying that such an approach should be applied in a way that is adapted to the specific ecosystems and other specificities of the different marine regions, will allow for an adaptive management approach, that the member states should take into account the precautionary principle, and that the principle of preventative action should be adopted.⁸¹

Additionally, the EU's Strategic Environmental Assessment Directive 2001/42/EC requires an environmental assessment to be carried out if a maritime spatial plan is likely to have significant environmental effects. The purpose of the assessment is to provide for a high level of protection of the environment and to contribute to the integration of environmental considerations into the plans, with a view to promoting sustainable development.

Stakeholder and public participation

Public participation includes informing all interested parties and consulting relevant stakeholders and authorities and the public at an early stage in the development of the plan in accordance with other EU legislation.⁸² The preamble refers specifically to Article 2(2) of Directive 2003/35/EC, which relates to public participation in the development of environment-related plans, as a good example of public participation. This sets out the following process for public participation:

- The public is informed about the proposal for the plan and relevant information about the proposal is made available to the public, including information about the right to participate in decision making and how questions or comments may be submitted
- The public is entitled to express comments and opinions at the stage where all options are open and before decisions are made
- Decision makers take account of the results of public participation
- The public are advised of the decisions made and reasons for those decisions

Plan approval process

The process for adopting the plan remains at the discretion of member states, but each member state is required to designate the authority or authorities competent for implementation of the Directive and provide the European Commission with this information.⁸³

Legal status of the plan and interface with other legislation

The Directive states maritime spatial plans shall be developed and produced in accordance with the institutional and governance levels determined by member states. It is left to member states to determine how maritime spatial plans interact with other legislation and how they take effect. That said, member states are required to aim to promote coherence between MSP and the resulting plan or plans and other processes, such as integrated coastal management or equivalent formal or informal practices.⁸⁴

Provisions for monitoring and review

Member states are to determine how and when maritime spatial plans are to be reviewed, but the Directive requires that they are reviewed at least every 10 years.⁸⁵ Member states must send copies of the maritime spatial plans, including explanatory material on the implementation of the Directive, to the European Commission and other relevant member states.⁸⁶ The European Commission must then prepare a report for the European Parliament and European Council every four years outlining the progress made in implementing the Directive.⁸⁷

Act on Maritime Spatial Planning 2016 (Denmark)

Denmark enacted its Act on Maritime Spatial Planning in June 2016. The official legislation is in Danish and is the version that has legal validity, but an English translation (without legal validity) is available. This report has been prepared from the English version of the Act.

While marine legislation in other countries covers a range of issues relating to the marine area, including consenting and enforcement, the Danish legislation is solely focused on MSP. The legislation sets out the process whereby a single overall maritime spatial plan for the Danish marine area is prepared.

Purpose and principles

The Act on Maritime Spatial Planning 2016 establishes the framework for the implementation of a maritime spatial plan for the Danish marine area. The purpose of the Act is to:⁸⁸

- Promote economic growth, the development of marine areas and the use of marine resources on a sustainable basis
- Take account of the goals of maritime spatial planning set out in the Act
- Take account of land-sea interaction
- Strengthen cross border cooperation in accordance with UNCLOS 1982



Copenhagen

The Act defines 'maritime spatial planning' as '*a process by which the relevant authorities analyse and organise human activities in marine areas to achieve economic, ecological, and social objectives*' and a 'maritime spatial plan' as '*regulations with associated chartlets established by the Minister for Business and Growth, stipulating the physical and temporal distribution of activities and uses of the maritime space in Danish marine waters*'.⁸⁹

The Act sets out an overarching goal, which is that when implementing MSP account must be taken of economic, social and environmental conditions, as well as safety aspects to support sustainable development and growth in the maritime sector. An ecosystem-based approach must be applied and the coexistence of various relevant activities and uses promoted.⁹⁰

In order to achieve those goals, MSP must aim to contribute to the sustainable development of the energy sector at sea; maritime transport; fishing and aquaculture; the extraction of raw materials from the sea; and the preservation, protection and improvement of the environment, including resilience to the consequences of climate change. MSP may also promote matters such as sustainable tourism, recreational activities and outdoor life.⁹¹ Account must also be taken of any special conditions that apply in a particular region, relevant existing and future activities and uses and their impact on the environment, the interaction between the land and the sea,⁹² and the coexistence between existing and future activities and uses.⁹³

In order to achieve the goals of MSP, the physical and temporal distribution of relevant existing and future activities and uses in the maritime spatial plan must be determined.⁹⁴

Scope

The maritime spatial plan applies in Danish marine waters, which include the territorial waters and the EEZ. The Act does not apply to defence or national security activities, or to uses in coastal waters covered by municipal plans.⁹⁵ Other than these limitations, the definition of MSP encompasses human activities broadly.

Responsible agency/Minister

The agency responsible for implementing MSP is the Ministry for Business and Growth.⁹⁶ Certain functions of the Ministry may be delegated to the Danish Maritime Authority or other relevant Minister, but the Minister for Business and Growth must retain authority for promulgating the regulations in the plan and issuing, revising and amending the plan.⁹⁷

Process for plan preparation

A maritime spatial plan is required to be prepared and implemented by 31 March 2021, in order to comply with EU requirements.⁹⁸ A draft of the plan must be published in advance and a period of six months allowed for comments,⁹⁹ except in special cases.¹⁰⁰ The proposed plan must be prepared in consultation with other affected Ministries and with the involvement of coastal municipalities, coastal regions and any relevant business and interest organisations.¹⁰¹ The Minister for Business and Growth must inform any affected government, regional and municipal authorities, EU member states and third countries, and any other parties whose interests are affected by the plan.¹⁰² The Minister must also cooperate with other EU member states bordering the Danish marine area to ensure that MSP across borders is coherent and coordinated.¹⁰³

Use of science

The Minister for Business and Growth is required to ensure the organisation and use of the best available data and sharing of information necessary for MSP.¹⁰⁴

Stakeholder and public participation

As set out above, the proposed plan must be prepared in consultation with other affected Ministries and with the involvement of coastal municipalities, coastal regions and any relevant business and interest organisations.¹⁰⁵ While a six-month commenting period on the draft plan is required, there is no requirement for a public hearing. Public submissions and the publication of a proposal for a maritime spatial plan and amendments to the maritime spatial plan may be carried out digitally.¹⁰⁶

Plan approval process

The Plan is ultimately approved when the Minister for Business and Growth lays down the regulations which make up the maritime spatial plan (which is to occur following the commenting period and consultation outlined above).

Legal status of the plan and interface with other legislation

As a general rule, government authorities are not allowed to adopt plans or grant permissions for activities which are contrary to the maritime spatial plan, proposed plan or any amendments to the plan which have been published.¹⁰⁷ Exceptions to this rule apply where the proposed plan or activity is intended to ensure compliance with EU legal or international obligations and the adoption of the plan or granting of permission for an activity cannot await amendments to the maritime spatial plan.¹⁰⁸

A decision taken to adopt a plan or grant permission in non-compliance with the maritime plan can be appealed within six months of the decision in accordance with the appeal provisions of the legislation under which the decision was taken.¹⁰⁹ In addition, the Minister may take measures, issue prohibition or enforcement notices, or establish navigation systems and aids to navigation pursuant to legislation relating to safety at sea.¹¹⁰

Provisions for monitoring and review

Maritime spatial plans must be reviewed and updated every 10 years.¹¹¹ There is no provision in the Act for monitoring.

Marine and Coastal Access Act 2009 (UK)

The Marine and Coastal Access Act 2009 establishes a regime for marine planning and regulation of the United Kingdom (UK)'s marine area. It establishes a framework for strategic marine planning as well as a licensing system and a marine conservation regime, and extends to regulation of fisheries, access to the coast, and coastal and estuarine management.

The Act governs the UK marine area, which includes both the territorial (or 'inshore') seas of the UK (out to 12 nautical miles) and the UK's offshore seas (from 12 to 200 nautical miles). In terms of marine planning, the inshore seas of Northern Ireland and Scotland are governed by the Marine Act (Northern Ireland) 2013 and the Scotland (Marine) Act 2010, respectively, under the UK's devolved governance structure.

While the Act itself addresses a wide range of marine-related matters (including the regulation of fisheries), this section only addresses those aspects of the Act that relate to MSP.

Purpose and principles

The Act does not contain any clear statement of its purpose and principles as regards marine planning. Indeed, the introductory text (in relation to marine planning) simply says that it is '*an Act to make provision in relation to marine functions and activities*'. However, it can be assumed from various provisions of the Act that a key purpose of its marine planning aspects is to contribute to the achievement of sustainable development. For example, the duty of the Marine Management Organisation (which is established by the Act to undertake various functions in relation to the marine area and has the authority, delegated by the Secretary of State, to undertake marine planning in England) is to control activities in order to make a contribution to the achievement of sustainable development. In addition, marine policy statements and marine plans (both of which may be prepared under the Act) are to state general policies for contributing to

the achievement of sustainable development in the UK marine area. However, 'sustainable development' is not defined by the Act.

Marine planning framework – overview

The Act provides for a two-tier approach to marine planning,¹¹² which includes the preparation of marine policy statements, which are discretionary, and marine plans, which are mandatory where there is a marine policy statement in place for that area, but which are otherwise discretionary.

A marine policy statement sets out general policies for contributing to the achievement of sustainable development in the UK marine area as well as information relating to them.¹¹³ The Act does not specify any other matters that a marine policy statement must address and makes no specific mention of spatial planning as a requirement or a tool to be used in undertaking the marine planning exercise.

A marine policy statement can be prepared by all of the marine policy authorities acting together (Secretary of State [for England], the Scottish Ministers, the Welsh Ministers and the Department of the Environment in Northern Ireland), by the Secretary of State and another public authority, or by the Secretary of State alone (provided that he or she has first invited the other public authorities to participate).¹¹⁴ In practice, a marine policy statement for the whole of the UK marine area has been agreed and adopted by all of the policy authorities.

A marine plan must be prepared where a marine policy statement exists in relation to the relevant marine planning region, which (as stated above) is currently the case for the whole of the UK marine area.¹¹⁵ A marine plan is required to state policies for the sustainable development of the area, identify (by means of a map or otherwise) the marine plan area that it relates to, and conform with any relevant marine policy statement.¹¹⁶

There is no specific requirement for a marine plan to contain a spatial plan or use spatial planning as a tool. The specific approach to marine planning, and the structure and content of marine plans, is up to each marine plan authority to decide for itself. However, the requirements of the EU Directive to undertake spatial planning apply, and the marine plans that have been developed under the Act specify that they have been prepared in accordance with the Directive, and meet its minimum requirements. The approach taken to spatial planning tends to involve policies relating to the use of the marine area, including where activities can coexist and where new applications should not be approved due to the presence of existing sensitive activities or resources. This is accompanied by a GIS map which, as a minimum, maps the location of existing activities or resources, areas requiring protection, and known applications for future activities.

Scope

Spatially, marine plans can apply to the entire UK maritime jurisdiction. There is no direction in the legislation as to content of marine plans with respect to the activities or sectors, but the EU Directive applies (at the time of writing), and this establishes a broad scope for sectoral coverage (as described above).¹¹⁷

Responsible agency/Minister

The responsibility for preparing marine plans lies with the Welsh and Scottish Ministers, the Secretary of State (for England) and the Department of the Environment in Northern Ireland for their respective areas. These functions may be delegated to a public body, although the decision to adopt and publish a plan, once prepared, remains with the Ministers/Secretary of State/Department of the Environment.¹¹⁸

In England, the Secretary of State's marine planning powers have been delegated to the Marine Management Organisation, which is charged with developing a marine planning system for England. This is an executive, non-departmental public body established by the Act itself which also has broad statutory functions (relating to the UK as a whole) beyond the English marine planning functions delegated by the Secretary of State.

Process for plan preparation

Before beginning plan preparation, the marine planning authority (Marine Management Organisation) must give notice of its intention to do so to related planning authorities, which include the Secretary of State and any regional, local or marine planning authority whose area is adjacent to the marine planning region.¹¹⁹ It must also publish a statement of public participation. This sets out how interested persons (including anyone affected by the proposal and the general public) can be involved in the preparation of the proposed marine plan.¹²⁰

The marine planning authority can seek expert advice or assistance in preparing the marine plan and can convene groups for the purposes of facilitating the involvement of interested persons in the development of proposals and consultation on proposals.¹²¹

Once proposals for the marine plan have been developed, a consultation draft must be published in a manner that the marine plan authority considers appropriate.¹²² In preparing the consultation draft, the marine plan authority must have regard to a number of matters, including:

- Requirements for the marine plan to conform with the marine policy statement and be compatible with other related plans



Durdle Door, Dorset, UK

- Effects of the proposal on related areas
- Any results of a review of an existing marine plan
- The statement of public participation and representations made about matters to be included in the marine plan
- Any expert advice sought and received
- Any other plan relating to or adjacent to the marine plan area
- Any other matters the marine plan authority considers relevant.

A sustainability appraisal must be carried out in relation to any proposals for the plan, and those proposals may only proceed if the results of that appraisal indicate that it is appropriate to do so. The results of the sustainability appraisal must be published at the same time as the consultation draft.¹²³

Representations about the consultation draft may be made by any person, in accordance with the statement of public participation.¹²⁴

The marine plan authority must consider appointing an independent person to investigate the proposals contained in the consultation draft and to report on them. In deciding whether to do so, it must have regard to any representations received on the proposals, the extent to which issues raised by those representations have not been resolved, and any other matters the marine plan authority considers relevant.¹²⁵ The independent investigator must make recommendations and include reasons for those recommendations, which must be published by the authority.¹²⁶

A determination on the final marine plan must consider any recommendations as a result of an independent investigation, the reasons given by the investigator, and any other matters the marine plan authority considers relevant.¹²⁷ Any amendments to the published consultation draft can be made as the marine plan authority thinks fit.¹²⁸

Use of science

There is no specific provision made in the legislation as to the role of science in preparing marine plans although, as noted above, provision is made for obtaining expert advice and appointing an independent investigator. Both are avenues for external investigation of the science, however the advice and recommendations received must be had regard to but are not required to be acted upon.

Stakeholder and public participation

Before preparing a marine plan, the marine plan authority must publish a statement of public participation. This is required to identify the area for which a

plan is being prepared,¹²⁹ invite the making of representations as to matters to be included in the proposed marine plan (ie before a consultation draft is prepared),¹³⁰ and be brought to the attention of interested persons.¹³¹ It must also include a proposed timetable for the preparation and publication of a consultation draft, the making of representations on the draft, the consideration of those representations, and the adoption and publication of the plan.¹³² Provision may be made for public meetings to be held. The marine plan authority must take 'all reasonable steps' to comply with the statement and it must be kept under review.¹³³

Plan approval process

The marine plan is adopted once the marine plan authority has decided to publish the plan. This can only be done with the agreement of the Welsh and Scottish Ministers (for Wales and Scotland respectively), the Secretary of State (for England) and the Department of the Environment in Northern Ireland.¹³⁴ Thus, while a delegated agency may be responsible for preparing the marine plan, it operates within the framework of government policy.

An adopted marine plan must be published as soon as reasonably practicable after its adoption, along with the reasons for any modifications to the consultation draft and reasons for not including any recommendations of the independent investigator.¹³⁵

Legal status of the plan

Marine plans have legal status insofar as any public authority must take any authorisation or enforcement decision 'in accordance with' any appropriate marine plan, and have regard to any appropriate marine plan in taking any decision (which is not an enforcement or authorisation decision) which relates to the exercise of any function affecting the UK marine area.¹³⁶ Having said that, enforcement and authorisation decisions do not have to be made in accordance with the marine plan if relevant considerations indicate that they should not. In that case, reasons for that decision must be stated.¹³⁷

Interface with other legislation

Marine plans must be in conformity with the marine policy statement unless relevant considerations indicate otherwise.¹³⁸ The marine plan authority must also take all reasonable steps to ensure that the marine plan is compatible with that for any other related marine area (ie another marine area which is adjacent, within or is otherwise affected by the area subject to the marine plan) as well as other relevant planning instruments, including terrestrial. There is no reciprocal obligation on terrestrial planners with respect to creating compatibility between terrestrial planning documents and marine plans.¹³⁹ There is also a requirement

when preparing a marine plan to have regard to any other plan prepared by a public or local authority in connection with the management or use of the sea or coast, or of marine or coastal resources in the area in, adjoining or adjacent to the marine plan area.¹⁴⁰

Provisions for monitoring and review

The marine plan authority must keep a range of matters under review, including:¹⁴¹

- The physical, environmental, social, cultural (including historic or archaeological) and economic characteristics of the authority's region and of the living resources which the region supports
- The purposes for which any part of the region is used
- The communications, energy and transport systems of the region
- Any other considerations which may be expected to affect those matters
- Any changes which could reasonably be expected to occur in relation to those matters
- The effect that any such changes may have in relation to the sustainable development of the region, its natural resources, or the living resources dependent on the region

The marine plan authority must also keep the marine plan under review and report to Parliament every three years on the effect of the policies, their effectiveness in securing the objectives of the plan, progress made towards securing the objectives and whether the objectives of the marine policy statement are being met.¹⁴² After a report is published, the marine plan authority must decide whether or not to amend or replace the marine plan.

Marine (Scotland) Act 2010

The Marine (Scotland) Act 2010 is an Act of the Scottish Parliament, which was brought into force in July 2010. The Act establishes a planning, conservation, licensing and enforcement regime for the 'Scottish marine area', which is the area of the inshore waters (out to 12 nautical miles) of the UK adjacent to Scotland and includes the bed and subsoil of the sea.¹⁴³ The offshore waters (from 12 to 200 nautical miles) is governed by the Marine and Coastal Access Act 2009 (UK) described above.

Together, the two pieces of legislation establish a legislative and management framework for Scotland's marine environment. The UK and Scottish Governments have agreed that Scotland would produce one National Marine Plan to address the legislative requirements under both Acts. Thus, while the Marine (Scotland)

Act only controls the marine area out to 12 nautical miles, the National Marine Plan deals with maritime planning out to 200 nautical miles.

The framework and requirements of the UK Marine and Coastal Access Act with respect to marine planning are addressed above. This section addresses the requirements of the Marine (Scotland) Act, while also providing comments on the marine planning that has been undertaken by Scotland to date without necessarily making a distinction between marine planning for the inshore and offshore waters. Further, the Act itself also covers marine licensing requirements and enforcement, marine protected areas, and seal conservation. This description only deals with aspects of the Act relating to MSP.

Purpose and principles

The Act does not contain a specific statement of purpose and principles, but does impose two general duties on the Scottish Ministers and public authorities exercising functions that affect the Scottish marine area, which reflect the general purpose of marine planning in Scotland. The duties are to act in the way best calculated to further the achievement of sustainable development, including the protection and, where appropriate, enhancement of the health of the marine area;¹⁴⁴ and to act in the way best calculated to mitigate, and adapt to, climate change.¹⁴⁵

These duties apply to the authorities making licensing or other decisions under the Act, but also to the government and other public authorities making decisions under other legislation which may affect the Scottish marine area.

Scope

The Act requires the Scottish Ministers to prepare a National Marine Plan in relation to the inshore waters (out to 12 nautical miles).¹⁴⁶ As noted, the Marine and Coastal Access Act also requires the Scottish Government to seek to ensure that a marine plan is in place for the offshore waters when a marine policy statement is in effect. The Act also provides for regional marine plans to be developed as a matter of discretion.¹⁴⁷

The Act was promulgated before the EU MSP Directive was issued. Perhaps as a consequence of this, it only requires the National Marine Plan to establish objectives for the marine area, which will be used to help determine applications to authorise activities in the marine area but does not include any requirement for spatial planning. However, in practice, the National Marine Plan (issued in 2015) was prepared in accordance with, and gives consideration to, the EU MSP Directive, and some spatial planning has been undertaken during the development of it. The plan also indicates that more spatial planning is likely to be undertaken by the Scottish Government (eg in relation to an offshore electricity network), and it is also desirable at the regional level.

Spatial planning relating to various sectors is either reflected in plans attached to the National Marine Plan or in the National Marine Plan Interactive (NMPi) GIS map, which is available online. For example, these identify:

- Salmon and sea trout fisheries
- Oil and gas fields that are producing or inactive, location of hydrocarbon pipelines and significant discoveries not yet developed
- Potential location of marine fish farms, including identifying an area where the presumption is against further marine finfish farm developments
- Planned offshore wind and marine renewable energy developments, along with areas identified potential future sites developed in consultation with the sector
- Existing and potential future submarine cables, including for the purposes of upgrading the national grid and fulfilling policies relating to a digital fibre network for Scotland
- Existing and potential port and harbour sites, including those which may be required in association with renewable energy development due to Scotland's renewable energy policies
- Marine sand and gravel deposits and potential mineral resources which have been inferred from geological data (these are accessible on NMPi but do not form part of the National Marine Plan)
- Areas used by the Ministry of Defence/defence forces, including Firing Danger Areas and Exercise areas

The National Marine Plan also establishes a policy framework in which regional marine plans are encouraged to undertake further, region-specific spatial planning. For example:

- General policies encourage spatial planning to identify areas for preferential use by specific sectors or where it becomes apparent that different activities are incompatible or mutually exclusive.
- General policies also encourage regional marine plans to identify the landscape character types and protected landscapes within the marine area.
- Policies relating to recreation and tourism suggest that marine plans should identify areas of recreational and tourism values and identify where prospects for significant development exist.
- Policies relating to shipping, ports, harbours and ferries suggest that regional marine plans should identify regionally important ports and

harbours along with criteria against which proposed development and use should be evaluated.

The Act does not limit the scope of marine planning (or spatial planning) to particular sectors, and the National Marine Plan covers a wide range of sectors currently using the marine space.

Interestingly, in terms of planning practice, while the Act does not require this approach the Scottish Government has adopted a sectoral marine planning approach towards offshore renewables to facilitate the growth of the sector. Sectoral marine plans are developed in conjunction with stakeholders and contain the policies of the Scottish Government, including a spatial strategy, to steer commercial scale offshore renewable energy development.

Responsible agency/Minister

The Scottish Ministers are responsible for preparing and implementing both the National Marine Plan and regional marine plans. In practice, the entity responsible for those tasks is Marine Scotland, which is a civil service directorate within the Scottish Government. Marine Scotland was formed in 2009 by amalgamating various other entities with responsibilities with respect to the maritime space and not by the Act. It is responsible for the integrated management of Scotland's seas and its purpose is to manage those seas for prosperity and environmental sustainability. Its key responsibilities are to:

- Work towards achieving good environmental status through marine planning, licensing and other functions, to help ensure a healthy and sustainable environment
- Promote sustainable economic growth from the marine renewables industry and other marine and maritime industries through integrated planning and, where appropriate, streamlined regulatory frameworks
- Promote sustainable, profitable and well-managed fisheries and aquaculture industries in Scotland
- Ensure sustainably-managed freshwater and fisheries resources
- Ensure a sound evidence base to inform the development and delivery of marine policy, planning and services
- Ensure effective compliance and enforcement arrangements
- Continue to integrate its functions and resources and develop its organisational skills, competencies and capacity to ensure effective compliance and enforcement arrangements.

As noted above, the Act provides for regional marine plans to be developed as a matter of discretion.¹⁴⁸ While the Act prescribes that the Scottish Ministers are responsible for preparing such plans, it also allows the Ministers to delegate that function to a public authority, or a person (or group) nominated by a public authority with an interest in the relevant marine area.¹⁴⁹

Any group delegated those functions must, so far as reasonably practicable, include representatives of persons with an interest in the protection and enhancement of the regional marine area, the use of the region for recreational purposes, and the use of the region for commercial purposes. If a public authority is delegated these functions, it must consult with representatives of such persons.

The Scottish Government has designated 11 regions under the Act.¹⁵⁰ Functions relating to regional marine plans will be delegated to 'Marine Planning Partnerships', comprising marine stakeholders. The regional marine plans will take account of local circumstances and smaller ecosystem units, and enable local ownership of the planning process. The first regions to develop regional marine plans will be Clyde and the Shetland Isles, followed by the Orkney Islands. Marine Planning Partnerships will be responsible for ongoing monitoring of the effectiveness of planning in the various regions, supported by Marine Scotland.

Process for plan preparation

The process for the preparation of the National Marine Plan for the Scottish inshore sea mirrors that set out in the Marine and Coastal Access Act (UK), which applies to most of the remainder of the UK, including the Scottish outshore. This process has already been described above.

Use of science

The Act itself does not specify the role of science in marine planning, regulation and enforcement. However, it does require that an assessment of the condition of the relevant marine area be prepared. In order to fulfil that requirement, Scotland's 'Marine Atlas' was developed, which is an assessment of the condition of Scotland's seas based on scientific evidence from data and analysis and supported by expert judgement. The Marine Atlas includes an economic assessment and a summary of pressures and human impacts relating to activities in Scottish waters.

Marine Scotland also has a specific scientific division, whose purpose (among other things) is to provide expert scientific, economic and technical advice and provide the evidence to support the policies and regulatory activities relating to the marine area.¹⁵¹

Stakeholder and public participation

As described for the UK MSP process above, a Statement of Public Participation must be prepared, notified and kept under review. This is a statement of policy as to when consultation is likely to take place and with whom, its likely form, and the steps to be taken to involve the general public in the stages of preparation or review of the proposed National Marine Plan or regional marine plans. It is required to contain provision for a number of elements, including an opportunity for the public to make representations about the matters to be included in the proposed National Marine Plan or regional marine plans, and a further opportunity for the public to make representations on a consultation draft.¹⁵²

Plan approval process

Before adopting a marine plan the Scottish Ministers must put a copy of the proposed plan before Parliament. Parliament has 40 days in which it may consider the proposal. If Parliament passes a resolution in relation to the proposed plan, the Scottish Ministers must table a response. A marine plan is adopted by the Scottish Ministers when they decide to publish the plan.¹⁵³



Montrose, Scotland

Legal status of the plan and interface with other legislation

Marine plans have legal status under the Act insofar as any decisions relating to the authorisation of activities that might affect the marine area, and any enforcement decisions, must be made in accordance with the relevant marine plans, unless relevant considerations indicate otherwise.¹⁵⁴ If a public authority makes a decision other than in accordance with the marine plan, the public authority must state its reasons.

Public authorities must also have regard to marine plans in making any other decisions that impact on the marine area. This includes preparation and adoption of terrestrial development plans.¹⁵⁵ Scottish legislation further recognises the importance of alignment between marine and terrestrial plans by requiring all reasonable steps to be taken to ensure that a regional marine plan is compatible with any terrestrial development plan for any adjoining area.¹⁵⁶

Provisions for monitoring and review

The Scottish Ministers must keep a range of matters under review in respect of both the National Marine Plan and regional marine plans, and publish a report on those matters every five years.¹⁵⁷ The matters include the effect of the policies in the plan, their effectiveness in achieving the objectives of the plan, progress made towards achieving the objectives for regional marine plans, and progress towards ensuring they achieve the objectives of the National Marine Plan. The Ministers must then decide whether to amend or replace the marine plan.

In addition to the review of marine plans, the Ministers must also keep under review various matters which may be expected to affect the exercise of their functions relating to the designation of any marine region, or the preparation, adoption, amendment or withdrawal of a marine plan.¹⁵⁸ Those matters include:

- The physical, environmental, social, cultural (including historic or archaeological) and economic characteristics of the relevant marine area and of the living resources which the area supports
- The purpose for which any part of the marine area is used
- The communications, energy and transport systems for the area
- Any changes that could reasonably be expected to occur in relation to the matters set out above
- The effect that any such changes may have in relation to the sustainable development of the relevant marine area, its natural resources or the living resources dependent on the area

Summary of findings from international review

This section brings together findings from each of the seven international statutory frameworks to make some key conclusions with respect to each element. Differences and similarities between the statutory frameworks are also described.

Broad or narrow MSP legislation

It is relevant to first note, by way of context, that three of the statutory frameworks reviewed provide for MSP under legislation that is chiefly focused on MSP (Massachusetts' Oceans Act 2008, the EU Directive on Maritime Spatial Planning 2014 and Denmark's Act on Maritime Spatial Planning 2016). The other four jurisdictions provide for MSP under broader marine and coastal legislation (Canada's Oceans Act 1996, Victoria's Marine and Coastal Act 2018, UK's Marine and Coastal Access Act 2009, and Scotland's Marine [Scotland] Act 2010). In addition to establishing a framework for MSP, this legislation performs other functions, such as establishing an overarching policy or national strategy for the coastal and marine environment, providing for marine protected areas, addressing fisheries management, and establishing licensing and enforcement regimes.

Purpose and principles

All the legislation reviewed contains some statement of the purpose, principles, duties or objectives for undertaking MSP or for the management of the marine and coastal environment more generally.

Under the EU Directive, MSP is aimed at promoting the sustainable growth of maritime economies, the sustainable development of marine areas, and the sustainable use of marine resources. The English translation of the Danish legislation (passed two years after the EU Directive was promulgated) contains objectives which largely repeat the EU Directive's language. While there is reference to an ecosystem approach (without further explanation) and an aim to contribute to the preservation, protection and improvement of the environment, including resilience to climate change impacts, the objectives of MSP are weighted in these jurisdictions towards supporting sustainable development and growth in the maritime sector. This can be contrasted with the more environmentally oriented objectives in Victoria's Marine and Coastal Act and the 'duties' set out in the Marine (Scotland) Act.

Victoria's legislation contains objectives to '*protect and enhance the marine and coastal environment*' and to '*promote the ecologically sustainable use and development of the marine and coastal environment and its resources in appropriate areas*'. Other objectives are to acknowledge traditional owner groups' knowledge, rights and aspirations for land, and to promote the resilience of

marine and coastal ecosystems, communities and assets to climate change (among other things).

The Scottish Act does not contain a specific statement of purpose and principles but imposes two general duties on the Scottish Ministers: to act in the way best calculated to further the achievement of sustainable development, including the protection and, where appropriate, enhancement of the health of the marine area; and to act in the way best calculated to mitigate, and adapt to, climate change.

That said, all the legislation reviewed reflected the need for MSP, or for the management of the marine and coastal environment more generally, to provide for both protection and use of the marine and coastal environment. All seven statutory frameworks refer to 'sustainable' use or development in the statement of purpose, principles, duties or objectives.

What is the geographic and sectoral scope of marine spatial plans?

The geographic scope of marine spatial plans varied, reflecting, among other things, the jurisdiction of the agency responsible for planning. In general, they did not include catchments. Canada's Oceans Act anticipates Integrated Management Plans for estuarine, coastal and marine waters, across Canada's territorial sea, EEZ and continental shelf. The Danish, UK and Scottish MSP frameworks also span the territorial sea and EEZ.

The Massachusetts Oceans Act provides for the establishment of a single Ocean Management Plan with a nearshore boundary approximately 0.5 kilometres from shore and a seaward boundary generally 3 nautical miles offshore, reflecting the limits of the state's jurisdiction. Victoria's Act similarly provides for MSP to the outer limit of Victorian coastal waters (3 nautical miles offshore), but extends more fully into coastal waters (to the high water mark of the sea).

The legislation reviewed generally provides for plans to be developed for all users of the sea. However, in some jurisdictions reviewed there are legislative impediments to achieving a fully integrated planning process across all sectors.

For example, the Massachusetts Oceans Management Plan in one sense 'includes' fishing, highlighting the importance of commercial and recreational fishing by identifying areas of high commercial fishing activity and concentrations of recreational fishing activity. The Plan does not, however, manage fishing activity. The Oceans Act provides for the continued and exclusive jurisdiction of the Division of Marine Fisheries in relation to the regulation of commercial and recreational fishing.

In terms of the land-sea interface, the legislation reviewed typically grants marine spatial plans legal status or powers up to a landward boundary of mean high

water springs (with the exception of Massachusetts Oceans Act, as outlined above). This means plans don't directly control catchment-based development. The EU Directive and Danish legislation explicitly state marine spatial plans do not apply to uses that fall within a member state's town and country planning regime.

That said, most frameworks reviewed specifically require integration of terrestrial planning with MSP. The EU Directive states MSP should aim '*to integrate the maritime dimension of some coastal uses or activities*'.¹⁵⁹ To this end, in establishing and implementing MSP, member states are required to take into account land-sea interactions. This process may be part of the MSP process but if it isn't, the outcome of an alternative process must be reflected in the maritime spatial plan. In addition, the Danish legislation, reflecting the EU Directive, requires MSP to take into account land-sea interactions.

The Marine (Scotland) Act also recognises the importance of alignment between marine and terrestrial plans. Public authorities (including territorial planning authorities) must 'have regard' to marine plans in preparing and adopting terrestrial development plans,¹⁶⁰ and 'all reasonable steps' must be taken to ensure that a regional marine plan is compatible with any terrestrial development plan for any adjoining area.¹⁶¹

Responsible agency/Minister for plan preparation

All the legislation reviewed specifies the responsible Minister or government department tasked with leading or having oversight of marine spatial plan preparation (except the EU Directive, which requires member states to designate the authority responsible for the implementation of the Directive). This was, in all cases a government Minister, and usually a Minister with an environment portfolio, although in Denmark it was the Minister for Business and Growth, and in Canada the Minister of Fisheries and Oceans, who performs this role.

In some jurisdictions, legislation provides for the role of preparing marine spatial plans to be delegated to another public body. In England, the Secretary of State has delegated its marine planning powers to the Marine Management Organisation, which is charged with developing a marine planning system for England. The Scottish Ministers have also delegated plan making functions to Marine Scotland. In each case the decision to adopt and publish a plan, once prepared, remains with the UK Secretary of State and Scottish Ministers, respectively.

Process for plan preparation

The legislation reviewed varied in terms of how prescriptive it was with respect to process for preparation of marine spatial plans.

The Victoria Marine and Coastal Act requires a MSP framework to be included in the state's Marine and Coastal Policy but there is no detail provided in the Act itself on what such a framework should contain, the process for stakeholder involvement, or the status of any subsequent marine spatial plan at law.¹⁶² Instead, these details are set out in the Marine and Coastal Policy – a statutory policy document that is long term and applies state-wide. Canada's Oceans Act is similarly high level with respect to processes for MSP. The Department of Fisheries and Oceans has developed non-statutory policy to flesh out the MSP framework.

These approaches can be contrasted with the more prescriptive legislative approaches of Massachusetts, the UK, Scotland, EU and Denmark. These four jurisdictions all set out specific requirements for process-related matters such as use of advisory bodies, content requirements, and stakeholder and general public participation in the preparation of the marine spatial plans.

Scotland is the only jurisdiction with legislation expressly providing for marine spatial plan preparation to be delegated to a group of marine stakeholders. Stakeholder groups must include representatives of persons with an interest in the protection and enhancement of the regional marine area, the use of the region for recreational purposes, and the use of the region for commercial purposes.

The Scottish Government has decided to implement this approach by designating 11 regions for MSP for which plans will be prepared by 'Marine Planning Partnerships'. Marine Planning Partnerships comprise marine stakeholders and representatives from public agencies and are tasked with driving the development of regional marine plans.

While the Victorian legislation doesn't expressly state marine spatial plan preparation can be delegated to a group of marine stakeholders, this has been the approach proposed in the MSP Framework, through the use of 'regional and strategic partnerships', a statutory mechanism introduced in the Marine and Coastal Act to address regional and issue-based marine and coastal planning in an integrated way.

The Massachusetts Oceans Act expressly requires a stakeholder group be established as part of plan preparation, although (unlike in Scotland) plan preparation is agency-led (by the Office of Coastal Zone Management). This stakeholder group takes the form of an Ocean Advisory Commission, which includes a mix of stakeholders along with senior officials in various agencies and elected members of the senate and the house of representatives.

The UK, EU and Danish legislation does not contain any requirement or option to establish stakeholder groups as a formal part of plan preparation, although the UK legislation allows the marine planning authority to convene groups for the



Fisherrow, Scotland

purposes of facilitating the involvement of interested persons in the development of proposals.¹⁶³

Use of science

All the legislation reviewed contained some provision for MSP or marine management more generally to be informed by data (whether economic, social or environmental) and scientific understanding of the marine area, although the mechanism for this varied.

Several of the international frameworks reviewed contain an express requirement for an assessment of the MSP area as part of plan preparation. The Marine (Scotland) Act requires that, in preparing marine plans, an assessment of the condition of the relevant marine area and a summary of significant pressures on the area be prepared.¹⁶⁴ In order to fulfil that requirement, Scotland's 'Marine Atlas' was developed, which contains an assessment of the condition of Scotland's seas, an economic assessment, and a summary of pressures and human impacts relating to activities in Scottish waters.

The Massachusetts Oceans Act required a 'Baseline Assessment' as part of the first Ocean Management Plan and requires it to be reviewed and updated at least every five years.¹⁶⁵ The 2009 Baseline Assessment constituted an extensive cataloguing of the current state of knowledge regarding human uses, natural resources, and other ecosystem components of Massachusetts ocean waters. An updated Assessment was developed for the second iteration of the Ocean Management Plan in 2015.

Other statutory frameworks for MSP do not expressly require upfront scientific assessments of marine areas but contain other provisions for ensuring MSP or marine management more generally is informed by science. The establishment of expert advisory groups is one such approach, adopted in Victoria with its Marine and Coastal Council and in Massachusetts with its Ocean Science Advisory Council. In Canada there is a requirement that the Minister '*is responsible for coordinating, promoting and recommending national policies and programs with respect to fisheries science, hydrography, oceanography and other marine sciences*'.¹⁶⁶

Stakeholder and public participation

All statutory frameworks for MSP provided for some degree of public participation in the preparation of marine spatial plans.

One of the overarching objectives of the Victoria Marine and Coastal Act is to engage with specified Aboriginal parties, the community, user groups and industry in marine and coastal planning, management and protection.¹⁶⁷ The MSP Framework and resulting marine spatial plans are required to be consistent

with this objective. Consultation with key stakeholders is to occur, and public submissions on a draft marine spatial plan must be invited (for at least a 28-day period) and considered before parties finalise the plan.

In Canada, the Minister of Fisheries and Oceans is required to undertake his or her planning role 'in collaboration' with a wide range of stakeholders, although the Oceans Act stops short of suggesting any precise mechanism for engagement of these groups.¹⁶⁸

In Massachusetts the public must be given the opportunity to comment on the draft plan for at least six months. The public comment period is to include at least four public hearings in at least four different coastal regions and must remain open for at least 60 days from the date of the final public hearing. In Denmark, a six-month commenting period on the draft plan is also required but there is no requirement for a public hearing.

The Marine and Coastal Access Act (UK) and Marine (Scotland) Act contain a requirement for a statement of public participation to be published before preparing marine plans. The legislative provisions are similarly worded, with each Act requiring the public to be given an opportunity to make representations on the matters to be included in the proposed marine plan before a consultation draft is prepared. The statement of public participation must contain a proposed timetable for the preparation and publication of a consultation draft, the making of representations on the draft, and the adoption and publication of the plan. The UK



Ilfracombe, UK

and Scottish marine authorities must take 'all reasonable steps' to comply with the statement of public participation, and it must be kept under review.

Plan approval process

Most of the legislation reviewed requires plans to be ultimately approved by the responsible Minister, following public consultation and other procedural requirements. The exception to this is the EU Directive, which requires member states to designate the authority responsible for implementation of the Directive.

Some jurisdictions required specific adoption procedures. Under the Marine (Scotland) Act, a copy of the proposed plan must be laid before Parliament. Parliament has 40 days in which to consider the proposal. If Parliament passes a resolution in relation to the proposed plan, the Scottish Ministers must table a response with Parliament. A marine plan is adopted by the Scottish Ministers when they decide to publish the plan (with or without amendments resulting from the parliamentary process).¹⁶⁹

Legal status of the plan and interface with other legislation

The Massachusetts, UK, Scottish and Danish legislation sets out the legal status of marine spatial plans and their interface with other legislation.

In Massachusetts, all permissions for any proposed structures, uses or activities in areas subject to the ocean management plan must be consistent, to the maximum extent practicable, with the plan.¹⁷⁰ The plan's management framework is implemented within existing regulatory regimes and the Oceans Act requires the Secretary to promulgate regulations to implement and administer the plan.¹⁷¹

In reality, this turned out to be a significant exercise, spanning several years following release of the first Massachusetts ocean management plan in 2009. An interagency working group met monthly to work through the process of converting, codifying and clarifying the contents of the plan into regulatory language. A stakeholder advisory group was convened to provide feedback, and an additional round of public consultation was required before regulations were finally issued.

In Denmark, as a general rule, government authorities are not allowed to adopt plans or grant permissions for activities which are contrary to the maritime spatial plan.¹⁷² Exceptions to this rule apply where the proposed plan or activity is intended to ensure compliance with EU legal or international obligations *and* the adoption of the plan or the granting of permission for an activity cannot await amendments to the maritime spatial plan.

In the UK and Scotland, marine plans have legal status insofar as any public authority must take any authorisation or enforcement decision in accordance

with marine plans. Decisions other than enforcement or authorisation decisions relating to the UK or Scottish marine area must be made 'with regard' to marine plans. That said, enforcement and authorisation decisions do not have to be made in accordance with the marine plan if relevant considerations indicate otherwise. In that case, reasons for the decision must be stated by the public authority.

In terms of interface with other legislation, the UK and Scottish legislation recognises the importance of alignment between marine and terrestrial plans, requiring all reasonable steps to be taken to ensure that a marine plan is compatible with relevant terrestrial plans for any adjoining area.¹⁷³ In Scotland, several practices are proposed to further align terrestrial and marine plans, including liaison between marine and terrestrial planning authorities, consistency between marine and terrestrial plan policy and proposals, timing of plans, and sharing the evidence base between authorities.¹⁷⁴

In Victoria, marine spatial plans are products of regional and strategic partnerships. This makes them statutory documents with legal effect under the Marine and Coastal Act (even though the Act does not expressly refer to marine spatial plans). In determining consent applications on marine and coastal Crown land, the Minister must ensure that the consent is consistent with a marine spatial plan.¹⁷⁵ Crown land managers must take all reasonable steps to implement marine spatial plans in respect of the land managed on behalf of the Crown.¹⁷⁶

Provisions for monitoring and review

Almost all legislation reviewed contains express provision for review of marine spatial plans or their empowering legislation. The exception was Victoria, which is currently developing the details of its MSP framework and may introduce a provision for review of plans in due course. Timeframes for review of marine spatial plans varied with a 10-year period for Denmark and the EU Directive, a five-year period for Massachusetts and Scotland, and a three-year period for the UK. Canada's Oceans Act requires that within three years of it coming into force the Standing Committee on Fisheries and Oceans review the Act's administration.

The UK and Scottish legislation contains the most comprehensive requirement for monitoring. In both jurisdictions the marine plan authority must keep under review and report on a range of matters relating to the effectiveness of the plan (every three years in the UK and every five years in Scotland). In addition, the marine plan authority must keep under review the physical, environmental, social, cultural (including historic or archaeological) and economic characteristics of the authority's region and of the living resources which the region supports.

KEY MESSAGES

- Statutory frameworks for MSP can be achieved through both MSP-focused legislation and broader marine legislation that performs other functions (eg providing for marine protected areas, addressing fisheries management and establishing licensing and enforcement regimes).
- All legislation reviewed provides for both protection and use of the marine and coastal environment. All seven statutory frameworks refer to 'sustainable' use or development in the statement of purpose, principles, duties or objectives.
- In general, plans don't directly control catchment-based development but most frameworks reviewed specifically require integration of terrestrial planning with MSP.
- In general, plans are developed for all users of the sea. However, in some jurisdictions there are legislative impediments to achieving a fully integrated planning process across all sectors.
- In all jurisdictions a government Minister, and usually a Minister with an environmental portfolio, is responsible for overseeing MSP.
- Scottish legislation expressly provides for MSP to be delegated to a group of marine stakeholders. The Scottish Government has designated 11 regions for MSP for which plans will be prepared by 'Marine Planning Partnerships' comprising marine stakeholders and representatives from public agencies tasked with driving the development of regional marine plans. A partnership approach is also proposed in Victoria's MSP Framework, through the use of 'regional and strategic partnerships' to undertake MSP. These partnerships consist of two or more partner agencies, which can be government or nongovernment bodies that have an interest in or connection with the marine and coastal environment.
- All legislation reviewed contains provision for MSP or marine management more generally to be informed by data (whether economic, social or environmental) and scientific understanding of the marine area.
- All legislation reviewed provides for public participation in the preparation of marine spatial plans. A number of jurisdictions have significant public participation requirements (eg a six-month commenting period and multiple public hearings in Massachusetts).
- Most legislation reviewed sets out the legal status of marine spatial plans, their interface with other legislation and contains express provision for their review.

Endnotes

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- 2 Commonwealth of Massachusetts, chapter 21A of the General Laws, s 4C(k)
- 3 Commonwealth of Massachusetts, chapter 21A of the General Laws, s 4C(a)
- 4 Commonwealth of Massachusetts, chapter 21A of the General Laws, s 4C(c) (i)
- 5 Commonwealth of Massachusetts, chapter 21A of the General Laws, s 4C(c) (ii)
- 6 Commonwealth of Massachusetts, chapter 21A of the General Laws, s 4C(c) (iii)
- 7 Commonwealth of Massachusetts, chapter 21A of the General Laws, s 4C(d)
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- 9 Commonwealth of Massachusetts, chapter 21A of the General Laws, s 4C(e)
- 10 Commonwealth of Massachusetts, chapter 21A of the General Laws, s 4C(h)
- 11 Commonwealth of Massachusetts, chapter 21A of the General Laws, s 23
- 12 Commonwealth of Massachusetts Oceans Act, s 7
- 13 Commonwealth of Massachusetts, chapter 21A of the General Laws, s 4C(k)
- 14 Commonwealth of Massachusetts, chapter 21A of the General Laws, s 4C(k)
- 15 Commonwealth of Massachusetts, chapter 21A of the General Laws, s 4C(h)
- 16 Canada Oceans Act S.C. 1996, c 31, s 29
- 17 Canada Oceans Act S.C. 1996, c 31, s 30
- 18 Fisheries and Oceans Canada, 2002, 15
- 19 Canada Oceans Act S.C. 1996, c 31, s 31
- 20 Canada Oceans Act S.C. 1996, c 31, s 31
- 21 Fisheries and Oceans Canada, 2002, 23 and 29
- 22 Canada Oceans Act S.C. 1996, c. 31, s 43
- 23 Fisheries and Oceans Canada, 2002, 5
- 24 Canada Oceans Act S.C. 1996, c. 31, s 31
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- 27 Canada Oceans Act S.C. 1996, c. 31, s 32
- 28 Fisheries and Oceans Canada, 2002, 22
- 29 Canada Oceans Act S.C. 1996, c. 31, s 52
- 30 Fisheries and Oceans Canada, 2002, 32
- 31 Hansard Marine and Coastal Bill 2017 Second Reading, Ms Mikakos, Thursday, 22 February, 586
- 32 Marine and Coastal Act 2018, s 1
- 33 Marine and Coastal Act 2018, s 24
- 34 Marine and Coastal Act, 2018, s 24
- 35 Marine and Coastal Act 2018, s 24
- 36 The final Marine and Coastal Policy is expected to be released in December 2019
- 37 Marine and Coastal Act 2018, s 7
- 38 Draft Marine and Coastal Policy 2019, 78
- 39 Draft Marine and Coastal Policy 2019, 79
- 40 Draft Marine and Coastal Policy 2019, 81
- 41 Marine and Coastal Act 2018, s 3
- 42 Marine and Coastal Act 2018, s 5
- 43 Draft Marine and Coastal Policy 2019, 84
- 44 Draft Marine and Coastal Policy 2019, 98
- 45 Marine and Coastal Act 2018, s 27
- 46 Marine and Coastal Act 2018, s 42
- 47 Victoria's Marine and Coastal Reforms Transition Plan, 26
- 48 Marine and Coastal Act 2018, s 42
- 49 Marine and Coastal Act 2018, s 43
- 50 Marine and Coastal Act 2018, s 48
- 51 Draft Marine and Coastal Policy 2019, 86
- 52 Marine and Coastal Act 2018, s 7
- 53 Marine and Coastal Act 2018, ss 16 and 17
- 54 Marine and Coastal Act 2018, s 16
- 55 Marine and Coastal Act 2018, s 37
- 56 Draft Marine and Coastal Policy 2019, 96
- 57 Marine and Coastal Act 2018, s 7
- 58 Marine and Coastal Act 2018, s 47
- 59 Marine and Coastal Act 2018, s 48
- 60 Marine and Coastal Act 2018, s 69
- 61 Marine and Coastal Act 2018, s 76
- 62 Draft Marine and Coastal Policy 2019, 96
- 63 Marine and Coastal Act 2018, s 29
- 64 EU Directive, article 4(1)
- 65 EU Directive, article 6
- 66 EU Directive, article 3(2)
- 67 EU Directive, preamble at (19)
- 68 EU Directive, article 5(1)
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- 72 EU Directive, preamble at (14)
- 73 EU Directive, article 6(1) and (2)
- 74 EU Directive, article 8(2)
- 75 EU Directive, article 13
- 76 EU Directive, article 11
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- 78 EU Directive, article 9
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- 80 EU Directive, article 6(1) and (2)
- 81 EU Directive, preamble at (14)
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- 93 Act on Maritime Spatial Planning 2016 (Denmark), s 8
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- 95 Act on Maritime Spatial Planning 2016 (Denmark), s 2(2)
- 96 Act on Maritime Spatial Planning 2016 (Denmark), s 4
- 97 Act on Maritime Spatial Planning 2016 (Denmark), s 21(1)
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- 99 Act on Maritime Spatial Planning 2016 (Denmark), s 10(1)
- 100 Act on Maritime Spatial Planning 2016 (Denmark), s 10(3)
- 101 Act on Maritime Spatial Planning 2016 (Denmark), s 10(4)
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- 105 Act on Maritime Spatial Planning 2016 (Denmark), s 10(4)
- 106 Act on Maritime Spatial Planning 2016 (Denmark), s 13
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- 108 Act on Maritime Spatial Planning 2016 (Denmark), s 15
- 109 Act on Maritime Spatial Planning 2016 (Denmark), s 22
- 110 Act on Maritime Spatial Planning 2016 (Denmark), s 16
- 111 Act on Maritime Spatial Planning 2016 (Denmark), s 10(2)
- 112 See part 3 of the Marine and Coastal Access Act 2009 (UK)
- 113 Marine and Coastal Access Act 2009 (UK), s 44(1)
- 114 Marine and Coastal Access Act 2009 (UK), s 45(2)
- 115 Marine and Coastal Access Act 2009 (UK), s 51(2)
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- 119 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 1(1)
- 120 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 5
- 121 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 8
- 122 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 11
- 123 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 10
- 124 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 12
- 125 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 13
- 126 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 13
- 127 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 14
- 128 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 15(6)
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- 134 Marine and Coastal Access Act 2009 (UK), s 55
- 135 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 15
- 136 Marine and Coastal Access Act 2009 (UK), s 58
- 137 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 58(2)
- 138 Marine and Coastal Access Act 2009 (UK), s 51(6)
- 139 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 3
- 140 Marine and Coastal Access Act 2009 (UK) schedule 6, clause 9
- 141 Marine and Coastal Access Act 2009 (UK), s 54
- 142 Marine and Coastal Access Act 2009 (UK), s 61
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 147 Marine (Scotland) Act 2010, s 5(2)
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 150 In accordance with s 5(5) of the Marine (Scotland) Act 2010
 151 Details can be found at <https://www2.gov.scot/Topics/marine/science>
 152 Marine (Scotland) Act 2010, schedule 1, clause 5
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 154 Marine (Scotland) Act 2010, s 15
 155 Marine (Scotland) Act 2010, s 15
 156 Marine (Scotland) Act 2010, schedule 1, article 3
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 161 Marine (Scotland) Act 2010, schedule 1, article 3
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 163 Marine and Coastal Access Act 2009 (UK), schedule 6, clause 8
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 170 Commonwealth of Massachusetts, chapter 21a of the General Laws, s 4C(e)
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 172 Act on Maritime Spatial Planning 2016 (Denmark), s 14
 173 Marine and Coastal Access Act 2009, schedule 6, article 3; Marine (Scotland) Act 2010, schedule 1, article 3
 174 Scottish Government, 2015
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A full-page underwater photograph showing a diver in a black wetsuit with blue accents swimming horizontally. Below the diver is a massive, dense school of small, silvery fish. The water is clear and blue, with some coral and debris visible near the surface.

What a MSP framework could deliver

This chapter investigates why New Zealand might need a statutory framework for MSP. First, it sets out the limitations in undertaking MSP through existing legislative or non-statutory processes. Second, it outlines how a statutory framework for MSP could benefit New Zealand, with reference to the marine management challenges outlined in Chapter 2. Finally, we consider, at a high level, what specific functions a statutory framework might perform.

Weaknesses in the current system

By way of recap from Chapter 3, New Zealand's legislative framework currently provides for MSP – to an extent.

Integrated planning and management in the marine environment is an explicit or implicit objective in much of New Zealand's legislation. Examples include the catchment-to-the-sea jurisdiction of regional councils and their functions to establish and implement provisions to achieve integrated management of broadly defined natural and physical resources across this area. There are also strong requirements in the RMA and EEZ Act to manage cumulative effects, and specific direction in the NZCPS for integrated management and strategic planning. There is provision for coordinated management across (some) legislative regimes (eg between the RMA and EEZ Act) and effective interfaces between others (eg the Hauraki Gulf Marine Park Act and the RMA).

Many pieces of legislation provide tools for the spatial distribution of activities in and on the ocean (within the jurisdictional scope of that legislation). While regional coastal plans prepared under the RMA are most notable in this regard, the EEZ Act also provides for spatial planning through regulations which have the potential to operate like regional coastal plans and include requirements, methods or technical standards for specified areas. Conservation legislation provides for the establishment of marine mammal sanctuaries and marine reserves – both important protective tools relevant to a broader MSP process.

The purpose and principles of the Fisheries Act 1996 support, in theory, an approach to fisheries management that considers the entire ecosystem, including the needs of future generations and the effects of fishing on the broader aquatic environment. Furthermore, sustainability measures and fisheries plans have the potential to give effect to integrated management and spatial planning. There are also examples of elements of MSP occurring through *taiāpure* local fisheries and *mātaitai* reserves established under the Fisheries Act (see spotlight on East Otago *Taiāpure* below).

Chapter 3 also outlines the limits of our current law with respect to MSP. Marine reserve legislation is a salient example, with its dated purpose and lack of application in the EEZ.¹ Chapter 3 notes the care which will need to be taken

when integrating fisheries management into a MSP regime. This is less a result of legislative barriers than the approach adopted to the Act's implementation, which has focused on management of individual fish stocks within the framework of MSY and been limited in its management of the wider impacts of fishing activity on marine species, habitats and biodiversity. Although the RMA has a wide ambit, councils have tended to stay away from restricting fisheries activities, and the Act itself does not extend to managing the impacts of fishing on fisheries resources.

More fundamentally, there is no statutory mechanism to develop shared and overarching marine objectives and policies which apply across marine management regimes and support joined-up action on issues by different agencies.

These statutory limitations mean that despite efforts made by central government, councils, *tangata whenua*, local communities and other stakeholders (and collaborations between these groups) using existing statutory mechanisms, processes will ultimately be limited in their ability to achieve a fully integrated approach to marine and coastal management. This is because various sectors, activities or spatial areas are beyond the jurisdiction of management efforts or the necessary tools for such processes are lacking.

One of the consequences of this, as described in Chapter 2, is a lack of joined-up action on cross-cutting issues (eg marine habitat protection) and a poor consideration of cumulative impacts of activities, ultimately weakening efforts to maintain healthy and productive ecosystems.

In addition, processes which plan for only some sectors and activities in the marine environment (and not others) can create conflicts between different users. The community 'pushback' experienced by some councils when they embarked on identifying Aquaculture Management Areas in the mid-2000s illustrates how single-sector marine planning exercises can founder.²

Similar problems have been encountered where spatial planning exercises have focused solely on marine protection. Such narrowly focused exercises can end up heightening conflict within the community, making resolution of the issue even more difficult. A 2019 report by the Office of the Auditor General found this to be the case with respect to the process followed by the South-East Coast Marine Forum, established in 2014 to make recommendations to establish a network of marine protected areas under the government's Marine Protected Areas Policy. Proposals made by some members which did not meet the requirements for biodiversity protection in the policy implementation guidelines were considered out of scope, undermining members' participation and confidence in the process.³

Some interviewees raised the issue that MSP could occur through non-statutory processes, thereby circumventing the shortcomings of the legislative framework.

Implementation could be achieved through formal avenues following a plan's completion. In accordance with this view, a statutory framework would not add anything beyond what agencies, tangata whenua and stakeholders could already do on their own volition.

For a fully integrated marine spatial plan to be developed through a non-statutory process and successfully implemented, strong political leadership and interest would need to be present and be maintained over multiple years. This can be difficult with New Zealand's three-year political cycles. MSP processes are complex projects, and their success requires significant investment and commitment towards mobilising science, mātauranga Māori, stakeholders and the general public.

Another key drawback of a non-statutory MSP process is it will usually require a duplication of public processes. Once the plan has been completed, and despite iwi, stakeholder and public engagement during its preparation, portions of the plan will have to undergo additional rounds of public processes as required by the various pieces of implementing legislation (including plan change processes under the RMA, marine reserve processes under the Marine Reserves Act, sustainability measure processes under the Fisheries Act etc). This will likely result in the plan losing its integration and coherence, as each of these statutory processes is only considering a part of the whole picture. It also results in significant additional cost and community effort.

The international review of marine spatial plans in *Turning the Tide* found a statutory framework is not essential for implementation if there is strong political leadership. This was the case in Norway where the expansion of the petroleum industry in the area, and the potential of the planning process to help resolve the conflict, led to a 'whole of government' approach to plan development, with Cabinet being the key decision-maker.⁴ In New Zealand, political leadership and 'whole of government' interest may not always be present, notwithstanding the presence of serious problems which current management efforts are failing to address and clear opportunities to achieve positive change. This was a key challenge in Sea Change where many of its initial champions moved on in the course of the three-year planning period and new champions were not developed, hindering implementation of the final marine spatial plan.

Sea Change provides a case study in other drawbacks of non-statutory MSP processes. The lack of a formal multi-agency implementation mechanism following the plan's release, and a lack of alignment with the plan's proposals and existing legislation have been other key factors contributing to implementation difficulties.

There are also very practical benefits that a statutory framework for MSP would provide over the legislative status quo. Currently, despite New Zealand's legislative

framework providing for MSP (to an extent), there is no compulsion to undertake it, even if there are pressing issues in the marine environment including serious environmental degradation. A statutory framework would provide a legal mandate for MSP to be initiated and set out a roadmap for how to go about it. As noted in Chapter 2, parts of New Zealand have experienced a general absence of management in the marine environment. So a statutory framework that both initiates MSP and provides agencies, mana whenua and stakeholders with guidance on principles and process steps could ultimately spur effort in this area.



Rakino Island

Spotlight: East Otago Taiāpure

Members of Kāti Huirapa Rūnaka ki Puketeraki applied for the East Otago Taiāpure in 1992 driven by concerns over depleted pāua stocks and a desire to both reassert their rangatiratanga and ensure the health and wellbeing of present and future generations. The East Otago Taiāpure was gazetted in 1999 and the Taiāpure Management Committee responsible for its management was appointed in 2001.⁵

The management approach taken for the taiāpure has been wide-ranging and demonstrates a number of elements of MSP. These include a well-developed science and ecosystem monitoring programme, management through a multi-stakeholder committee, broadly based management objectives (relating to sustainable fisheries resources in the context of a wider healthy marine environment, which includes humans) and use of marine zoning as a management tool.

Management of the taiāpure is guided by the East Otago Taiāpure Management Plan which, among other things, sets out the committee's objectives to:

- Ensure customary, recreational and commercial fishers have access to, and sustainable use of, fisheries resources
- Actively promote the use of tikanga (customs) and kawa (protocols) such as rāhui (temporary closures) through the use of management regulations for the taiāpure (using law to give effect to 'lore')
- Ensure the adverse impacts of human activities on the marine environment, nursery areas, spawning grounds, fisheries habitat and associated and dependent species are avoided, remedied or mitigated
- Ensure all fisheries resources from the taiāpure are fit for human consumption

The Plan also sets out how the committee will work with other organisations, including the Otago Regional Council and Biosecurity New Zealand (part of MPI).⁶

An inclusive, multi-stakeholder approach has been taken to representation on the committee – half are representatives from Kāti Huirapa Rūnaka ki Puketeraki and the remainder is made up of representatives from local community groups, recreational and commercial fishing interests, and a scientist.⁷

The formal management measures available in a taiāpure include the power to recommend to the Minister of Fisheries regulations for the conservation and management of fish, aquatic life and seaweed within the area covered by the taiāpure. The management committee has been active in this regard, with several sets of regulations already in place, including the closure of two areas in the taiāpure to recreational and commercial pāua harvesting until such time as they recover. Further proposals by the committee relating to pāua fishing, harvesting of kelp, the use of set nets, and filleting of fish at sea are, at the time of writing, being considered by government.⁸

The committee's management is supported by science advice from the University of Otago, and an ecosystem monitoring programme is in place, including replicate freshwater, estuarine and coastal sites throughout the East Otago Taiāpure and Waikouaiti Mātaitai.⁹

There are limits to the taiāpure committee's ability to take a fully integrated approach to management of fisheries. For example, despite its efforts to protect kelp forest through fisheries regulations prohibiting harvesting, there are limited mechanisms available to address other stressors such as sedimentation from land use and other (non-fishing) activities taking place in the marine environment.

In addition, and more fundamentally, while the legislative aim of a taiāpure is to make better provision for the recognition of rangatiratanga, many processes (such as application for taiāpure, approval of taiāpure, approval of management committee and gazettal of regulations) are ultimately controlled by the Minister of Fisheries, thereby enabling only a limited form of rangatiratanga for tangata whenua.¹⁰

Benefits of a MSP framework

There are a number of benefits that an implemented statutory framework for MSP could deliver New Zealand. These are summarised here in bullet point form and expanded on below.

A statutory framework for MSP could:

- Harness scientific, local and indigenous knowledge to better manage the marine environment
- Provide better linkages between science and management
- Provide a mechanism to protect and restore the marine environment
- Provide a better response to cumulative effects
- Enhance the involvement of iwi, whānau, hapū and local communities in decision-making and grow social capital
- Provide a platform for mana whenua to exercise rangatiratanga (Māori governance), including through improving opportunities for kaitiakitanga (imperfectly translated as guardianship).
- Enhance economic benefits from the marine area (eg from thriving fisheries and aquaculture)
- Provide greater certainty and streamlined applications for those seeking to undertake activities in the marine environment

A framework for MSP would provide a mechanism to harness scientific, local and indigenous knowledge of the marine environment. Such a mechanism is important, given the complex nature of the marine environment and the difficulties agencies (and others) currently have in obtaining good biophysical information to enable strategic planning (see Chapter 2).

The Sea Change plan benefited from the integration of mātauranga Māori: *'Mātauranga (Māori world views and knowledge) relating to water, fisheries, and to the Hauraki Gulf Marine Park is a vast body of knowledge spanning a thousand years. This includes centuries of familiarisation with the environment, detailed understanding of natural systems and cycles, and learning which management approaches work, and which don't.'*¹¹ Learnings from Sea Change demonstrate how integrating mātauranga Māori could be more successful in future planning processes.¹² A formal framework for MSP could help with such efforts.

A framework for MSP would also provide a forum for the sharing of economic, social and ecological information between local and central government agencies.

This could create a better linkage between science and management and enable information gaps to be identified and future research to be prioritised.

A framework for MSP could provide a means to protect and restore the marine environment, which is becoming increasingly urgent given the poor environmental outcomes outlined in Chapter 2. It could do this through the identification of ecologically important areas and setting out ecological objectives and policies to be incorporated into decision-making. A framework for MSP could also establish a forum and support for planning a network of marine protected areas.

A framework for MSP could provide a mechanism through which to develop ways to better respond to cumulative effects. This is due to the ability of MSP to fully integrate various sectors, activities and spatial areas that are currently subject to a fragmented management regime.

A framework for MSP potentially could provide more practical or operational solutions to manage cumulative effects. For example, building on the suggestions of Hilke Giles, it could provide a way to better manage cumulative effects by moving to a system of marine management based on areas or 'zones' for which environmental quality standards are set. Planning for potential activities within each zone could take place within the envelope provided by the standards. Science and monitoring would focus at the zone-based scale. Such standards could relate to water quality, seabed condition and indicators of overall ecosystem health. Triggers could be identified as to when management action would occur in response to the standards not being met.¹³

Humans, along with their multiple uses and values for the marine environment, are part of the ecosystem, and a framework for MSP could provide a mechanism to involve all interested parties (agencies, iwi, industries, whānau, hapū and local communities) in decision-making. In Sea Change, close working relationships developed between the Stakeholder Working Group members, and this social capital has flowed into other Hauraki Gulf initiatives since the plan was completed.

A framework for MSP could provide a platform for mana whenua to exercise rangatiratanga (Māori governance), including through improving opportunities for kaitiakitanga (imperfectly translated as guardianship). Management of local areas can be strengthened when kaitiakitanga is empowered.¹⁴ In the plan making process, this could be through a co-governance approach (as with Sea Change), developing the plan in a way that integrates mātauranga Māori, and providing implementation mechanisms such as the Ahu Moana co-management arrangements proposed in Sea Change.

There are economic benefits to be obtained from a framework for MSP. Ecosystem-based MSP focuses on the underlying health and productivity of

marine ecosystems through, for example, protecting habitat of importance to fisheries and protecting water quality important for aquaculture. Ensuring thriving fisheries for the benefit of current and future generations is a key outcome of a MSP process.

MSP brings a strategic, forward-looking approach to marine management and can suggest areas suitable and unsuitable for activities, providing greater certainty for those seeking to undertake activities. Consent procedures could be



Tauranga Harbour

streamlined, with requirements made more transparent to applicants. MSP can also identify compatible uses and synergies within the same area and reduce conflicts between incompatible uses.

A framework for MSP could improve capacity to plan for new and changing human activities. As noted in Chapter 2, science to assess adverse effects can be limited when new activities are proposed, such as offshore aquaculture or mining for minerals. MSP can put in place policy frameworks applying to new activities, ultimately bringing greater certainty for marine users.

When asked whether they considered a statutory framework for MSP would enhance marine management in New Zealand, the majority of those interviewed for this project responded affirmatively. The integrative function of MSP – applying across various sectors, activities and spatial areas that are currently subject to a fragmented management regime, and aligning central government and local government approaches to marine management – was cited by most interviewees as significant benefits.

In cases where interviewees responded negatively, this was usually accompanied by concerns that an additional statutory framework would duplicate existing RMA functions of regional councils and in this regard would duplicate effort and cost unnecessarily for councils and stakeholders participating in these processes. This is an important concern, and was a relevant consideration in the design of the options for a framework presented later in this report.

Functions of a MSP framework

Before considering what a framework for MSP in New Zealand could look like, it is useful to consider, at a high level, what specific functions it might perform.

This section draws on the marine management challenges identified in Chapter 2, the insights provided by Sea Change summarised in Chapter 4, interviews with New Zealand experts, the New Zealand legal review in Chapter 3, and the review of international frameworks for MSP in Chapter 5. It sets out six functions identified to be core to a framework for MSP. It is not exhaustive, and there are other functions that could be included. In addition, these functions could vary over time as marine management challenges evolve and public interest and values in the marine environment change.

1. A framework for MSP needs to **provide for a fully integrated approach to marine management**. As discussed in Chapter 2, there are a large number of marine-related statutes, some significantly dated, with no overarching mechanism to ensure they are interacting coherently. This has led to a lack of joined-up action by agencies on cross-cutting issues and, in some cases,

issues falling through the gaps. A key function of a framework for MSP would be to integrate management under existing, often siloed, statutory frameworks (ie marine spatial plans could act as umbrella instruments). In addition, the framework for MSP would need to have a clear path for implementation, for example through marine spatial plans having legal influence on lower level regulatory and funding decisions.

2. A framework for MSP needs to **fulfil Crown obligations under the Treaty of Waitangi/Te Tiriti o Waitangi and integrate mātauranga Māori relating to the coastal and marine environment**. As discussed in Chapter 4, the Court and the Waitangi Tribunal have described the Treaty as a document signifying a partnership.¹⁵ Under the Treaty, the Crown must actively protect the continuing obligations of kaitiaki towards the environment.¹⁶ A framework for MSP must be cognisant of these obligations, and recognise that Treaty obligations are ongoing and *'will evolve from generation to generation as conditions change'*.¹⁷

MSP also has much to gain from mātauranga Māori. Mātauranga Māori provides knowledge of a marine area based on centuries of active engagement with the environment, detailed understanding of natural systems and cycles, and learnings about which management approaches work and which don't.¹⁸ A future framework for MSP should draw on mātauranga Māori as a key source of knowledge and seek to understand the values of tangata whenua in the relevant marine area.

3. A framework for MSP needs to **protect and restore the marine environment**. A number of environmental health indicators point towards progressive decline or the suppression of environmental values at low levels in the marine environment (see Chapter 2). There is a need not only to maintain present ecological functioning and biodiversity but also to ensure that, where degraded, it is restored to a healthy state. A framework for MSP needs to ensure that protection and restoration can be identified as key outcomes and be practically implemented, including through dedicated funding.
4. A framework for MSP needs to **provide for the setting of clear and strong environmental bottom lines**. Bottom lines can be thought of as *'lines in the sand that need to be defended strictly and vigorously against erosion by cumulative human actions'*.¹⁹ They are primarily outcomes to be met, such as swimmable rivers or drinkable water, and often need to be associated with firm methods that 'bite', such as rules, in order to achieve outcomes. New Zealand's experience to date exhibits limited 'true' bottom lines imposed in higher order environmental policy, leading to ad hoc balancing at the consenting level, which risks cumulative effects and development uncertainty.²⁰



Point Chevalier Beach, Auckland

The *EDS v New Zealand King Salmon* Supreme Court decision confirmed that the RMA contemplates environmental bottom lines and that these can be set in policies and plans.²¹ The NZCPS establishes a number of bottom lines relevant to the marine environment through the requirement to avoid adverse effects, including in respect of outstanding natural landscapes and natural character, and important biodiversity. MSP is an approach which can help ensure that these bottom lines are respected in practice, particularly in relation to cumulative effects.

New framework legislation for MSP could itself set general bottom lines that reflect what society values in the marine and coastal environment and is not willing to trade off. It could also require the setting and implementation (through rules and other methods) of more specific, location-based environmental bottom lines in marine spatial plans.

5. A framework for MSP needs to **provide for current and future use and enjoyment of New Zealand's marine environment**. People are an integral part of the ecosystem within which MSP operates and New Zealanders have multiple values associated with our estuaries, beaches and oceans. These areas support local, regional and national economies, create jobs and livelihoods, provide food and recreational opportunities, support cultural practices and offer spiritual respite. A framework needs to recognise the

importance of these places to the overall wellbeing of New Zealanders. Local communities, user groups and industry need to be closely engaged in MSP processes.

6. A framework for MSP needs to **facilitate strategic planning**. The term 'strategic' is used here to describe planning that is forward-looking and focused on the things that really matter (the 'big' issues). Such planning is focused on driving positive change over time. Chapter 2 noted that strategic management of the marine environment for some parts of our coast has not eventuated, or is at best nascent, resulting in poor management of cumulative effects and other poor environmental outcomes. In the context of MSP, a strategic approach involves developing a vision, objectives and desired outcomes, and a means of achieving them. It also can include the spatial identification of marine areas to be managed for specific purposes or to achieve specific environmental quality objectives, spatial identification of areas suitable for specific activities, and consideration of how these might change over time (eg in response to population growth or climate change).

These six functions are proffered as a useful guide in designing a future framework for MSP in New Zealand, and in assessing the pros and cons of various frameworks – tasks which are the focus of the following chapter.



Mimiwhangata

KEY MESSAGES

- New Zealand's current legislative framework is fairly compatible with MSP, but some legislative barriers exist. These include a lack of statutory mechanisms to develop shared and overarching marine objectives and policies which apply across marine management regimes. As a result, MSP processes using existing statutory mechanisms will ultimately be limited in their ability to achieve a fully integrated approach to marine and coastal management.
- It is possible for MSP to occur through non-statutory processes, thereby circumventing the shortcomings of the legislative framework, with implementation achieved through formal avenues following a plan's completion.
- For such a non-statutory plan to be successfully implemented, strong political leadership and interest would need to be present and be maintained over multiple years. This could be difficult with New Zealand's three-year political cycles.
- Non-statutory MSP processes will usually require a duplication of public processes (eg consultation, hearings) and may result in the plan losing its integration and coherence, as each of these statutory processes is only considering a part of the whole picture.
- Currently there is no compulsion to undertake MSP, even if there are pressing issues in the marine environment including serious environmental degradation. A statutory framework that both initiates MSP and provides agencies, mana whenua and stakeholders with guidance on principles and process steps could ultimately spur effort in this area.
- There are considerable social, economic and ecological benefits that an implemented statutory framework for MSP could deliver New Zealand.
- Six functions are proffered as a useful guide in designing a future framework for MSP in New Zealand, and in assessing the pros and cons of various frameworks. A framework for MSP needs to:
 1. Provide for a fully integrated approach to marine management
 2. Fulfil Crown obligations under the Treaty of Waitangi/Te Tiriti o Waitangi and integrate mātauranga Māori relating to the coastal and marine environment
 3. Protect and restore the marine environment
 4. Provide for the setting of clear and strong environmental bottom lines
 5. Provide for current and future use and enjoyment of New Zealand's marine environment
 6. Facilitate strategic planning



Cavalli Islands (Tanya Peart)

Endnotes

- 1 Marine Reserves Act 1971, s 3(1)
- 2 Peart, 2019
- 3 Office of the Auditor-General, 2019
- 4 Peart, 2018, 51
- 5 Kāti Huirapa Rūnaka ki Puketeraki, 2013
- 6 East Otago Taiāpure Management Committee, 2008
- 7 Hepburn et al, 2019
- 8 Fisheries New Zealand, 2018
- 9 Hepburn et al, 2019
- 10 Jackson, 2013
- 11 Sea Change Tai Timu Tai Pari, 2017, 28
- 12 Peart, 2018, 28
- 13 Giles, 2019, 61
- 14 Hepburn et al, 2019
- 15 *New Zealand Māori Council v Attorney-General* [1987] 1 NZLR 641, Waitangi Tribunal
- 16 Waitangi Tribunal, 2011, 118
- 17 *Te Runanga o Muriwhenua Inc v Attorney-General* [1990] 2 NZLR 641 at 656
- 18 Sea Change Tai Timu Tai Pari, 2017, 28
- 19 Severinsen and Peart, 2018, 8
- 20 Severinsen and Peart, 2018, 97
- 21 *Environmental Defence Society Inc v The New Zealand King Salmon Co Ltd* [2014] NZSC, 38



Options for a New Zealand MSP framework

Ocean Beach, Hastings

Having outlined how a framework for MSP could benefit New Zealand and what functions a framework needs to perform in Chapter 6, this chapter is concerned with what a framework for MSP in New Zealand could look like.

In the first section, key design elements for MSP processes are considered, drawing on the insights provided by Sea Change, interviews with New Zealand experts, and the review of international frameworks for MSP. These elements reflect the 'nuts and bolts' of MSP frameworks, including matters such as plan initiation, funding, science, monitoring and review, among others. Various approaches to design are weighed up and recommendations are made.

In the second section, three options for a framework for MSP in New Zealand are presented and assessed. These are:

Option 1: Non-statutory marine spatial plans

Option 2: A Spatial Planning Act

Option 3: An Oceans Act

The discussion on key design elements for MSP processes which follows is relevant to all three options presented in the second section of this chapter (ie funding will always be a relevant consideration, as will the question of how to best mobilise science, or who should initiate plan preparation). There are some nuances between the various options, which are addressed in the second section.

Key design elements

Who should lead MSP in New Zealand?

A common feature of all international statutory frameworks for MSP reviewed was they clearly established a lead agency, or Minister for MSP processes. The learnings from Sea Change also highlight the importance of identifying upfront who will take the lead and 'champion' the plan, particularly during the implementation phase.¹

The lead agency could perform a range of tasks including initiating MSP processes, overseeing budgets and ensuring adequate resourcing, collating relevant biophysical, economic and social information for marine areas, and facilitating involvement of other relevant agencies, iwi/hapū and stakeholders. They would also need to oversee plan implementation and an environmental monitoring and plan review programme. Agencies with existing roles in the marine space are considered in turn below for their appropriateness for this role.

Regional councils and unitary authorities

Regional councils and unitary authorities (together termed 'regional councils') are charged with achieving the integrated management of the natural and physical resources of a region under the RMA.² Regional councils prepare regional coastal plans and make permitting decisions within the territorial sea (termed 'coastal marine area').³ Their decisions are taken within the framework of Part 2 of the RMA (which sets out the purpose and principles of the Act) and national policy statements, with the most pertinent to the marine environment being the NZCPS.

Regional councils are integral to successful MSP and already undertake elements of it in the coastal marine area. However, a number of factors suggest a central government agency would be more appropriate to lead a national MSP programme than regional councils. If New Zealand takes a strategic approach at a national level to MSP (as recommended), including identifying which parts of the coast and marine environment should be targeted, and in what order (see discussion in following sections), the initiation of MSP projects and financial support for MSP will be largely derived from central government. In addition, the lead agency would need to mobilise involvement of other relevant agencies at the central government level, which is likely to be more effectively achieved by another central government agency. That said, regional councils are recommended to have a governing role in MSP processes (described below).

Department of Conservation

DOC is a department of state established by the Conservation Act with functions including administration of the conservation estate and marine-related conservation legislation such as the Marine Mammals Protection Act, Marine Reserves Act and Wildlife Act. The Department also has a role under the RMA in the preparation of the NZCPS and advising the Minister of Conservation on the approval of regional coastal plans.

DOC has a policy advice and management planning role which includes preparing conservation management strategies, national park management plans and conservation management plans, which set out how the Department and its Treaty partners manage natural and historic heritage. DOC also has an operational role, managing about one-third of New Zealand's land surface.⁴ The Department provides for recreation and preserves historic sites on public conservation land and manages pests, weeds and threatened species.

DOC's statutory functions are, on the whole, conservation-oriented and include advocating for the conservation of natural and historic resources generally, among other matters.⁵

This may create difficulties if the Department were to be a lead agency for MSP, which addresses both protection and use of the marine environment.

Ministry for Primary Industries

MPI is a non-statutory department of state containing several business units of particular relevance to MSP. These include Fisheries New Zealand, which manages fisheries under the Fisheries Act; Biosecurity New Zealand, which leads New Zealand's biosecurity system under the Biosecurity Act 1993; and Te Uru Rākau (Forestry New Zealand). Fisheries New Zealand is also the government's principal advisor on aquaculture. In addition, MPI's role includes policy development and regulatory oversight for dairy, horticulture, viticulture, meat and wool. MPI's primary production focus may create difficulties in performing the roles of a lead agency, which would include, for example, overseeing protective and restorative functions of marine spatial plans, among other things.

Ministry for the Environment

The Ministry for the Environment is a department of state established under the Environment Act 1986 with a broad environmental mandate, including advising on *'all aspects of environmental administration'*.⁶ In this sense, it would be less confined than DOC and MPI in performing the role of a lead agency for MSP. However, as a Ministry chiefly engaged in providing policy advice, it is less suited to operational aspects of policy implementation. For example, under the RMA, planning is largely delegated to councils, as are most enforcement functions. The Ministry's role has traditionally been providing leadership and guidance, and preparing national directions under the RMA. This would make the Ministry well suited to provide advice relating to national strategy with respect to MSP, which is a recommendation made in later sections.

Environmental Protection Authority

The Environmental Protection Authority (EPA), was established in 2011 under the Environmental Protection Authority Act 2011 as a Crown Agent (as defined by the Crown Entities Act 2004).⁷ This means the EPA must 'give effect to' policy that relates to the entity's functions and objectives if directed by the Minister, but the Minister cannot give directions on its statutorily independent functions nor direct it to bring about a certain result. As such, the EPA can be considered to operate at 'arm's length' from government. The EPA is governed by a Board of 6–8 members appointed by the Minister for the Environment, and has a Māori advisory committee, Ngā Kaihautū Tikanga Taiao.

The statutory role of the EPA includes the administration of 'nationally significant proposals' by providing support to Boards of Inquiry under the RMA; operation

of the New Zealand Emissions Trading Scheme and New Zealand Emission Unit Register under the Climate Change Response Act 2002; regulation of substances under the Hazardous Substances and New Organisms Act, the Ozone Layer Protection Act 1996, and Imports and Exports (Restrictions) Act 1988; and consenting and monitoring activities taking place within the EEZ and continental shelf under the EEZ Act.

The statutory objective of the EPA is to undertake its functions in a way that *'(a) contributes to the efficient, effective, and transparent management of New Zealand's environment and natural and physical resources; and (b) enables New Zealand to meet its international obligations'*. In addition, when undertaking its particular functions under other environmental Acts, the EPA must act in a way that furthers any objectives or purposes stated in respect of those Acts.⁸

The EPA has a current administrative role in processing applications for proposals of national significance under the RMA. These are lodged with the EPA and if the Minister for the Environment decides to establish a Board of Inquiry to hear such applications, the EPA's role is to administer the hearing process. This means the EPA is currently well configured to perform the administrative tasks suggested for a lead agency above.

In terms of marine-related expertise, the EPA has an existing role as a regulator in the EEZ. Its role includes making decisions on applications for certain marine activities in the area, monitoring compliance, and enforcing the EEZ Act.⁹ The Authority's role as a regulator makes it a more appropriate agency to oversee marine spatial plan implementation and monitoring than policy-focused agencies such as the Ministry for the Environment. The EPA would, however, need to grow its marine expertise, including by employing marine scientists and planners and ultimately building a team of specialist MSP-trained staff. All factors considered, we consider that the EPA would be the most appropriate current agency to lead the practical application of MSP in New Zealand under a policy umbrella provided by the Ministry for the Environment.

There is also the need to establish a responsible Minister for MSP. The Minister would have a role in approving strategy and high level policy to guide MSP processes.

The Minister for Environment's functions in the coastal and marine environment are broad in scope and are set out in the RMA and EEZ Act. Under the RMA these include initiating and recommending the adoption of national policy statements and national environmental standards, approving national planning standards, making a direction for a matter that is a proposal of national significance, and monitoring the effect and implementation of the RMA. The Minister for the Environment is also charged with developing regulations under the EEZ Act.

In contrast, the Minister of Fisheries has a narrower role as the decision-maker on matters relating to fisheries management, including setting sustainability measures. This is in the context of the Fisheries Act, which focuses on utilisation (with its purpose *'to provide for the utilisation of fisheries resources while ensuring sustainability'*)¹⁰ rather than protection. In contrast, the Minister of Conservation has a broader role in the coastal environment, approving the NZCPS and regional coastal plans. However, that Minister's other roles are more focused on conservation, including managing protected species and establishing marine reserves (albeit with the concurrence of the Minister of Fisheries).¹¹

To avoid any conflicting duties or roles, it is recommended that the Minister for the Environment be the responsible Minister for MSP in New Zealand. This is consistent with international practice (see Chapter 6). Of the jurisdictions studied, MSP was usually overseen by a Minister with an environment portfolio. In the event of an Oceans Act being promulgated, responsibility could be given to a new Minister of Oceans. In addition, the EPA currently reports to the Minister for the Environment (with respect to its RMA and EEZ Act functions) so there would be continuity in this regard, given the earlier recommendation as to the lead role of the EPA in MSP.

How should MSP be initiated?

One of the key findings of Sea Change was that MSP is not something to be embarked on lightly; there should be a pressing need, complex issues or conflicts to resolve, and an appetite for change.¹² In this regard, a future framework for MSP could usefully provide some criteria to guide the decision on whether to initiate an MSP process in any given instance. In addition, there will be need to prioritise MSP efforts across the country and stage the rollout of MSP with consideration of available resources and statutory planning cycles of agencies.

It is recommended that the Minister for the Environment, advised by Ministry for the Environment, develop a **Marine Spatial Planning Strategy**, which would set out a programme for developing marine spatial plans. Preparation of the Strategy would be a mandatory requirement under a statutory framework for MSP.

The Strategy would be reviewed at least every 10 years and would identify priority areas for MSP over the next 10-year planning period, based on a set of statutory criteria (discussed below). Preparation of the Strategy would necessitate a strategic look at which parts of the coast and marine environment should be targeted, and in what order, allowing prioritisation of effort. The Strategy would also set out high level objectives for marine spatial plans in the identified areas, akin to a high level terms of reference. This would enable, for example, an objective to be included on increasing marine protected area coverage in a proposed MSP area, or objectives on renewable energy or providing for public infrastructure.

The Marine Spatial Planning Strategy would allow public funds to be set aside for marine spatial plan development and implementation, and allow agencies to consider aligning other planning and funding processes with the MSP process (eg regional councils could decide to defer changing regional coastal plans until a MSP process was complete).

A new statutory framework for MSP could include criteria the Minister for the Environment would be required to consider in deciding which areas to identify for MSP in the Strategy. Some criteria, if met, would become 'automatic triggers' for MSP. Automatic triggers would be ecologically based, applying in instances of serious environmental decline. The framing of these criteria in the legislation would be based on expert ecological advice and need to be objectively and clearly defined.

Other criteria would be mandatory relevant considerations for the Minister in deciding whether to initiate MSP in a given area (as opposed to automatic triggers). The factors listed in the RMA relating to ministerial decisions concerning whether or not matters are proposals of national significance would be a useful starting point in developing criteria. These are set out in full for ease of reference below.¹³

'In deciding whether a matter is, or is part of, a proposal of national significance, the Minister may have regard to—

(a) any relevant factor, including whether the matter—

- (i) has aroused widespread public concern or interest regarding its actual or likely effect on the environment (including the global environment); or*
- (ii) involves or is likely to involve significant use of natural and physical resources; or*
- (iii) affects or is likely to affect a structure, feature, place, or area of national significance; or*
- (iiia) gives effect to a national policy statement and is one that is specified in any of paragraphs (c) to (f) of the definition of matter in section 141; or*
- (iv) affects or is likely to affect or is relevant to New Zealand's international obligations to the global environment; or*
- (v) results or is likely to result in or contribute to significant or irreversible changes to the environment (including the global environment); or*
- (vi) involves or is likely to involve technology, processes, or methods that are new to New Zealand and that may affect its environment; or*
- (vii) is or is likely to be significant in terms of section 8; or*

- (viii) *will assist the Crown in fulfilling its public health, welfare, security, or safety obligations or functions; or*
- (ix) *affects or is likely to affect more than 1 region or district; or*
- (x) *relates to a network utility operation that extends or is proposed to extend to more than 1 district or region; ...'*

Some of these existing RMA criteria could be adapted to a new statutory framework for MSP. For example, whether a matter is significant in terms of section 8 of the RMA (which requires persons exercising functions and powers under the RMA to take into account the principles of the Treaty of Waitangi/Te Tiriti o Waitangi) would be a relevant criterion for MSP initiation. Iwi and hapū support for MSP initiation in an area would need to be considered. Also relevant would be whether iwi had settled Treaty claims with the Crown. Iwi still involved in Crown negotiations may be less inclined to support MSP processes.

There would also need to be criteria that explicitly recognised the importance of initiating MSP in areas where there was ongoing environmental degradation from the cumulative effects of multiple activities (as addressing such effects is a particular strength of MSP – see Chapter 5).

The Marine Spatial Planning Strategy would have legal effect through a statutory requirement that the EPA implements the Strategy. This would include the requirement that the EPA initiate MSP processes in the areas identified in the Strategy, in accordance with the timeframes set.

In addition to government-initiated MSP processes via the Marine Spatial Planning Strategy, a new statutory framework for MSP would also provide for community-driven MSP initiatives. Any person (which would include individuals, an iwi/hapū, a corporate person or a body of persons) could apply to the Minister for the Environment seeking an MSP process be established. The application would be required to include evidence that the area met one or more of the statutory criteria discussed above.

How would the project team be made up?

A key finding of the Sea Change review was the importance of establishing a dedicated core project team. The role of the project team is to support plan preparation by providing expertise and technical support, and to ensure relevant information and science is accessible during the plan making process. The skill set needed in the project team should be clearly identified upfront and would likely include a principal planner, a chief scientist, an economist, a mātauranga Māori lead and a public engagement specialist.

An issue raised by interviewees was the lack of specialist coastal and marine planners in New Zealand, and a lack of university courses which could assist in remedying this situation. To further develop New Zealand's expertise in MSP (and marine and coastal planning more generally), universities could consider offering a specialisation in MSP at undergraduate or graduate level. This has been the approach taken in Europe, where an Erasmus Mundus Master Course on Maritime Spatial Planning is offered between three universities to train MSP specialists.¹⁴ The government could consider a scholarship programme to encourage New Zealanders to take this course. In addition, New Zealand agencies could consider recruiting staff from overseas who have experience in MSP.

Looking ahead towards the mid-to-long term, a project team could be built from a core of specialist MSP-trained EPA staff, supplemented with staff seconded full time from MPI, DOC and councils. External contractors would be brought in where needed to complete skill sets. It is recommended that, where project staff from agencies are utilised, they should be dedicated to MSP projects full time and be retained for the duration of the project. This would avoid some of the staffing difficulties Sea Change encountered, where some agency staff were assigned only 0.1 or 0.2 of their FTE, undermining active contribution.¹⁵

How should MSP be funded?

Who pays for MSP is a key question to be addressed in the design of a statutory framework. The cost of developing a marine spatial plan is likely to be in vicinity of several hundred thousand to several million NZ dollars, depending on the scale and complexity.¹⁶

There are considerable public interest benefits from MSP. The benefits of maintaining marine ecosystems in a healthy, productive and resilient condition so that they can provide the goods and services humans want and need are difficult to quantify, but in the long term would be considerable. The greater certainty provided for industry can also generate considerable economic value. In addition, the value of the social capital generated through the involvement of agencies, iwi, hapū, whānau, industry and local communities in decision-making in MSP processes can be considerable.

As a general principle, public authorities can be expected to pay for MSP to the extent it results in outcomes in the public interest. Because these benefits are likely to be experienced at local, regional and national levels, it is recommended the costs of MSP are shared between local and central government, with the majority of funding coming from central government.

The EPA is primarily funded by the Crown (although receives some revenue from cost recovery). Crown funding is provided through three appropriations in Vote

Environment. Currently these relate to the EPA's decision-making and monitoring and enforcement functions, and to the Emissions Trading Scheme.¹⁷

It is recommended that if the EPA was made the lead agency for MSP under a new statutory framework, a separate appropriation would be made to the EPA for MSP-related functions. Provision would be made in the national budget for proposed marine spatial plans in accordance with the Marine Spatial Planning Strategy. The funding could be adjusted in each budget to an extent, depending on the requirements of the Strategy, but a base level of funding for activities such as implementation, monitoring and review would be required each year for marine spatial plans (even where the plan preparation process itself was complete). It is recommended regional councils and territorial authorities fund their own involvement in MSP processes.

Project governance

The role of a governing group, which is referred to here as a **Marine Planning Partnership**, would be to provide the plan making group with a terms of reference (this would need to be consistent with any minimum content requirements set out in the Strategy) and act as a sounding board during the plan preparation process.

The Marine Planning Partnership would, at the end of the plan making process, approve the draft plan prior to it being released for public submissions. The Partnership would also be tasked with championing the plan's implementation within their respective organisations once it had been finalised. Such a role would be best suited to senior level or political representatives from relevant agencies and iwi/hapū that possessed the requisite mandate and status in their respective organisations.

A co-governance structure with a 50:50 split between iwi/hapū and agency representatives is recommended for the Marine Planning Partnership. This would be a step towards providing for iwi and hapū, as kaitiaki, to partner with the Crown in environmental management and would also assist with integrating mātauranga Māori into the planning process. A co-governance arrangement for the project would also help embed mana whenua support for the planning process, which was an overall finding of Sea Change.

A suggested formulation for the Marine Planning Partnership could therefore be: one representative each from DOC, MPI and the relevant regional council(s); one representative for all relevant territorial authorities; and an equal number of iwi/hapū representatives. Where possible, members of the Partnership should serve for the duration of the MSP process. Where there are election cycles midway, any new political representatives should be well briefed on the project.

It is recommended that the Marine Planning Partnership continues to operate for a transitional period after the plan is completed to oversee and champion implementation. This was a key learning from Sea Change, which found governance group members can play an important role in socialising the plan within agencies and amongst stakeholder groups and the broader public. This approach has also been adopted overseas: Scotland's own Marine Planning Partnerships will continue to operate during the implementation phase of regional marine plans, and will be responsible for ongoing monitoring of the effectiveness of plans, supported by the central government agency, Marine Scotland.

Marine spatial plan preparation

Most international statutory frameworks for MSP reviewed for this report involved a single agency being tasked with preparing the plan. In most cases there was a statutory requirement to consult and/or receive submissions from stakeholder groups and the general public as part of this process. New Zealand is familiar with these more traditional agency-led frameworks, having deployed them in a range of environmental regimes, including the preparation of regional and district plans under the RMA and conservation management strategies and plans under the Conservation Act.

An alternative approach to public involvement is provided for by the Marine (Scotland) Act 2010. While Scottish Ministers are responsible for preparing regional marine plans under the Act, this function may be delegated to a stakeholder group with an interest in the relevant marine area.¹⁸ In practice, the Scottish Government has created 11 'marine regions' and will delegate functions for preparing regional marine plans to 'Marine Planning Partnerships', comprising marine stakeholders. The regional marine plans will take account of local circumstances and smaller ecosystem units, and enable local ownership of the planning process. At the time of writing, development of marine spatial plans was underway in the Clyde and Shetland Isles regions.¹⁹

Another exception to the agency-led plan making process is the process followed in Sea Change. Sea Change empowered stakeholder representatives to develop a marine spatial plan through a collaborative process. It broke new ground internationally in this respect.

In developing a statutory framework for MSP a key question is: *Should New Zealand's approach to MSP adopt an agency-led approach to plan making, a collaborative stakeholder-led approach to plan making, or something in-between?*

Collaborative plan making processes have a number of strengths, which can include the generation of strong support for the final plan among stakeholders, increasing the likelihood of successful implementation. Social capital can be (but

is not always) generated in the process. Drawing on international literature and collaborative, co-designed and participatory decision-making processes have also been considered a key principle of ecosystem based management in New Zealand's marine area.²⁰

In Sea Change, stakeholder members shifted their positions considerably during the process to enable consensus to be reached and there was strong support for the final plan amongst most stakeholders. The social capital generated during the process has beneficially flowed into other Hauraki Gulf initiatives since the plan was completed.

Collaborative processes by their nature do have weaknesses. Where provisions are the result of stakeholder consensus rather than an agency proposal, there is a risk that provisions may be watered down (due to the need to compromise) and also that they will not be readily implementable by agencies. In Sea Change, agency staff were largely kept separate from the deliberations of the stakeholder group. Agencies were not closely involved in the development of recommendations prior to the plan being finalised. Consequently, there was no prioritisation or costings undertaken and no allocation of tasks to specific agencies. The recommendations had also not considered alignment with existing programmes or agency budgetary cycles – resulting in difficulties with implementation.

Where the provisions are the result of a stakeholder consensus rather than a public consultative process, there is a need to ensure the wider public are not

alienated from the process and have formal opportunities for submissions. The public engagement efforts of Sea Change wound down during the later stages of development, and there was no public consultation on the draft due to financial constraints. The lack of public consultation was considered to be an additional barrier to implementation of the plan by agencies.

There is also a risk that social capital is in fact eroded in collaborative processes. Not all stakeholders have the time to be involved in such processes, particularly if they are not paid, creating issues in achieving adequate representation. For those that do take part, several interviewees cited collaboration fatigue and stress as a potential cause of a loss of social capital. In addition, there are some issues where a win-win cannot be achieved and consensus may not be reached. In Sea Change, for example, the Stakeholder Working Group did not reach full consensus on the establishment of new marine protected areas, with two alternative proposals being presented for some areas.

Some of these difficulties can be addressed in the design of future collaborative MSP processes. A more effective interface between the Stakeholder Working Group members and agency staff could be developed and a well-constructed programme for local community and wider public engagement could be deployed. A suggested process follows:

- A governing **Marine Planning Partnership** is established between agencies and iwi/hapū (see subsection on project governance above).
- A **Project Team** is established, built from a core of specialist MSP-trained EPA staff, supplemented with staff seconded full time from MPI, DOC and councils. External contractors would be brought in where needed.
- A **Collaborative Working Group** is established comprising iwi/hāpu and stakeholders. The appointment of iwi/hapū representatives would occur through a hui-ā-iwi process. The appointment of stakeholder members would be guided by minimum criteria to ensure adequate coverage of interests. A possible formulation would include representatives of persons with an interest in the protection and restoration of the relevant marine area, the use of the marine area for recreational purposes, the use of the marine area for commercial purposes, and catchment-based sectors impacting the relevant marine area.
- A senior member of each core agency (ie MPI, DOC, regional council[s]) would be appointed to the Collaborative Working Group as non-voting members. They would participate in all the discussions but would not be asked to agree to the final plan. They would be tasked with ensuring the plan is cognisant of existing agency programmes and budgetary cycles and



Cape Rodney-Ōkākari Point marine reserve

that it contains a set of implementable actions (from an agency perspective). They would also be tasked with keeping their agency regularly informed about the progress of the planning process, including at the highest (political) levels.

- Members of the Collaborative Working Group and Project Team would be appointed for the duration of the project. There would be no alternates for Collaborative Working Group members, including agency representatives, although with provision for replacement where members become unavailable.
- An **Independent Chair** would be appointed to chair Collaborative Working Group meetings and oversee the collaborative process.
- The plan would be developed through a collaborative process where the Collaborative Working Group would develop the plan on a consensus basis. The Project Team would support the Collaborative Working Group by providing technical support and expert advice on planning, science, economics, mātauranga Māori and public engagement. All non-agency members would need to agree to the plan before it goes forward for approval and public consultation (see below). Where consensus cannot be reached, alternative proposals could be presented.²¹
- The completed draft of the plan would be submitted to the Marine Planning Partnership to approve, prior to public consultation and hearing (see subsection on plan approval and implementation below).

Science

Several of the international frameworks reviewed contained an explicit requirement for a scientific assessment of the MSP area, as part of plan preparation.

The Marine (Scotland) Act requires that, in preparing marine plans, an assessment of the condition of the relevant marine area and a summary of significant pressures on the area be prepared.²² In order to fulfil that requirement, Scotland's 'Marine Atlas' was developed, which contains an assessment of the condition of Scotland's seas, an economic assessment, and a summary of pressures and human impacts relating to activities in Scottish waters.

The Massachusetts Oceans Act required a 'Baseline Assessment' as part of the first Ocean Management Plan and requires a review and update of this Baseline Assessment at least every five years.²³ The 2009 document constituted an extensive cataloguing of the current state of knowledge regarding human uses, natural resources and other ecosystem components of Massachusetts ocean

waters. An updated version was developed for the second iteration of the Ocean Management Plan in 2015.

Other statutory frameworks for MSP do not explicitly require upfront scientific assessments of marine areas but contain other provisions for integrating science. These include establishing expert advisory groups (eg Victoria's Marine and Coastal Council),²⁴ while in Canada's Oceans Act there is a requirement that the Minister '*is responsible for coordinating, promoting and recommending national policies and programs with respect to fisheries science, hydrography, oceanography and other marine sciences*'.²⁵

The science programme underpinning Sea Change was somewhat informal, and at times ad hoc, but the science drawn on was fairly comprehensive and generally regarded to be of very high quality. The science needs of the project were largely identified by the Stakeholder Working Group with assistance from the Project Steering Group. At times, the scientific information was gathered on request between monthly meetings, rather than a coherent science programme being constructed in advance.

Drawing on the important role of science evident in the international frameworks reviewed and in Sea Change, it is recommended a statutory framework for MSP contain specific directions on how scientific information is to be used in plan making. This could look as follows:

- At the beginning of an MSP process, a formal assessment of the condition of the relevant marine area and a summary of the significant pressures and human uses of the area could be prepared. Responsibility for the assessment would lie with the lead agency (EPA), but could be delegated under the Act to an expert scientist or group of scientists.
- A **Chief Scientist** could be appointed as part of the project team. The Chief Scientist would be responsible for compiling a stock take of information (ecological, social, economic) in the early stages of plan making. During the plan making process, he or she could act as a conduit between the scientific information and the Collaborative Working Group, proactively briefing the group from time to time on various issues and providing scientific responses to queries and advising on how to deal with scientific uncertainty.

Mātauranga Māori

As noted in the previous chapter, a framework for MSP needs to integrate mātauranga Māori relating to the coastal and marine environment. Mātauranga Māori also is a key source of knowledge for MSP processes, providing knowledge based on centuries of familiarisation with the marine environment, detailed understanding of natural systems and cycles, and learnings about which

management approaches work and which don't. It therefore offers significant benefits to marine management more generally.²⁶

It is recommended a future framework for MSP draws on, and integrates, mātauranga Māori as a key source of knowledge, and as a means to understand the values of tangata whenua in the relevant marine area.

Learning from Sea Change, MSP processes would benefit from:

- The establishment of a separate mātauranga Māori workstream supported by experts in the area to develop mātauranga Māori input. The workstream should commence prior to the planning process itself to enable relevant information to be compiled in time for incorporation into the planning process.
- The development of protocols around confidentiality and intellectual property to encourage information to be made available. Best practice guidance could be developed around these aspects.
- Adequate budgetary provision for the above activities.

Plan content

A statutory framework for MSP could set out some minimum content requirements for marine spatial plans. These would be defined in general terms in legislation to allow flexibility for individual processes. The Marine Spatial Planning Strategy (described above) would also allow for government direction on high level content of marine spatial plans. As this would be revisited every 10 years (and could be revisited earlier if required) it would be responsive to current issues and priorities.

In terms of content, it is recommended marine spatial plans contain a robust description of the health of the marine area and a broad and comprehensive description of pressures or issues faced (this would be informed by the science assessment outlined above). Plans could include a vision statement, objectives and desired outcomes (including environmental bottom lines). This part of the plan would be non-regulatory, in the sense it would not be intended to have direct binding effect on individuals.

It is also recommended the non-regulatory component contain strategic measures. These might include an action plan of the tasks needed to be undertaken to achieve the desired outcomes. It could also include the spatial identification of marine areas to be managed for specific purposes and areas suitable or not suitable for specific activities.

The non-regulatory component would also set out provisions requiring funding and other actions from agencies, iwi/hapū or stakeholders under the plan.

Provisions could relate to matters such as funding marine research, actions relating to biosecurity, funding for coastal infrastructure, and restoration of shellfish beds, wetlands and dunes.

The marine spatial plan would also have a regulatory component which would contain provisions intended to have regulatory effect. These might be objectives, policies or rules under regional policy statements or regional coastal plans. They could be regulations under the EEZ Act, regulations implementing sustainability measures under the Fisheries Act, a decision relating to taiāpure or customary fishing under the Fisheries Act, or a decision to establish a marine protected area under the Marine Reserves Act or a marine mammal sanctuary under the Marine Mammals Protection Act. Through these regulatory provisions, environmental bottom lines would be given 'teeth'.

The drafting of the regulatory provisions would need to be carried out by agency/legal staff to ensure that the language of provisions was consistent with regulatory language and that provisions were sufficiently clear and implementable. For each regulatory provision the plan would make explicit the applicable statute and the nature of the provision (eg objective, rule or regulation).

Finally, marine spatial plans would contain a 'Monitoring and Evaluation' section. This section would identify key performance indicators to allow progress towards the plan's objectives and outcomes (including environmental bottom lines) to be ascertained. Indicators could relate to matters such as nutrients, sediment, biodiversity values or fish stocks. Some outcomes could have targets (interim steps on the way to achieving the long-term outcome) also established. They could also include triggers whereby prescribed management action would be required if targets were not being met.

Plan approval and implementation

At the point where the Collaborative Working Group had agreed on a draft marine spatial plan, the plan would be submitted to the Marine Planning Partnership for approval. At this stage the marine spatial plan is still a pre-consultation draft. Following approval by the Partnership, the plan would be publicly notified by the EPA and public submissions invited.

Submissions on the non-regulatory elements of the plan could be considered by the Collaborative Working Group and any adjustments to those elements of the plan made before forwarding to the Marine Planning Partnership for final approval.

The regulatory component of the marine spatial plan would be heard by an independent body in a process whereby plan provisions could be rigorously tested against the applicable legal frameworks.

One option would be for the Minister for the Environment to appoint a Board of Inquiry which would hear the matter, akin to the process currently provided for in the RMA for proposals of national significance. Consistent with this process, the Board of Inquiry would be able permit cross-examination, direct briefs of evidence to be prepared and obtain expert advice from the EPA on issues raised by the matter.²⁷ While there are provisions in the Act to guide Board of Inquiry appointments (eg with respect to skills and expertise), the appointments are completely at the discretion of the Minister, which restricts the true independence of the Board.

Another option would be for the Environment Court to hear and decide marine spatial plans. The Environment Court would bring utmost independence to the consideration of marine spatial plans, and for this reason is considered a more appropriate body than a Board of Inquiry. As New Zealand's experience in MSP grows over time, it would be beneficial to have Environment Commissioners appointed to the Environment Court who have specialist knowledge and experience in MSP.

It is proposed the Environment Court would consider the regulatory provisions in the marine spatial plan as a holistic package, but it would need to consider separate provisions in terms of the relevant empowering legislation (eg the purposes and principles and other relevant considerations set out in various decision-making frameworks such as the RMA and Fisheries Act).

The Environment Court would release a decision whereby MSP provisions are accepted, amended or rejected. For RMA provisions, the Court would make a direction to the relevant local authority to amend RMA policy statements or plans without using Schedule 1 process, to implement the Court's decision. The decision of the Environment Court could be appealed to the High Court on matters of law only.

For regulatory provisions intended to take effect under other legislation, such as the Fisheries Act, EEZ Act or conservation legislation, the Court would make a formal report to the relevant Minister recommending MSP be made as proposed, or amended or rejected. The relevant Minister would be required to implement the recommendation of the Court or, within a set timeframe, lay before the House of Representatives a written statement setting out the reasons for his or her decision not to implement them. This is similar to current process followed for water conservation orders under the RMA and which appears to have worked well.²⁸

Under this proposal, public notification by the EPA of the entire marine spatial plan would be deemed consultation and/or public participation in accordance with other marine legislation such as the EEZ Act and Fisheries Act, although provision for the separate input and participation of tangata whenua as set out in the Fisheries Act and any other relevant legislation would be retained and would need to be incorporated into the EPA's engagement process.²⁹

A key reason for the Marine Planning Partnership to continue to operate for a transitional period after the plan is complete is to support implementation of the non-regulatory component of the marine spatial plan. The non-regulatory provisions might require actions from agencies related to matters such as marine research, biosecurity, funding for coastal infrastructure or restoration activities. These activities are likely to require a senior level or political representatives to ensure agencies follow through on these programmes and that they are appropriately funded and resourced.

Monitoring and review

A monitoring and review programme is a key part of MSP. This programme should assess the state of the environment in the marine spatial plan area and the performance of management measures contained in the marine spatial plan. The assessment of management measures would involve consideration of the desired management outcomes and trends in the key performance indicators identified in the plan (see subsection on plan content above).

As the lead agency, the EPA would be responsible for overseeing and coordinating monitoring of marine spatial plans. On-the-ground monitoring efforts could continue to be largely undertaken by regional councils, which already monitor the marine environment as part of their RMA functions. Fisheries New Zealand would need to monitor fishing-related indicators. In both cases this data would be shared with the EPA, and the EPA would need to provide advice to both agencies to ensure the outcomes of monitoring allowed indicators identified in the marine spatial plan to be assessed.

In cases where regional council programmes did not cover all matters in the MSP monitoring programme (eg in the EEZ, or in relation to matters beyond their jurisdiction such as fisheries), the EPA would be responsible for collecting the necessary data from appropriate agencies to ensure the marine spatial plan monitoring programme is robust.

Monitoring is expensive and regional councils may need additional central government funding to support marine spatial plan monitoring. Where possible, efficiencies should be sought in monitoring programmes, such as aligning MSP data collection protocols with monitoring programmes undertaken as part of state of the environment reporting by the Ministry for the Environment and Statistics New Zealand.

It is also recommended the statutory framework require a formal review of marine spatial plans to be provided once every five years by the EPA. The review would include recommendations for updating the plan, as well as identifying research needs.

Summary of key design elements

A summary of the recommended approach to each of the key design elements is provided in the table below.

Design element	Recommended approach
Lead agency	EPA
Marine Spatial Planning Strategy	Developed by the Ministry for the Environment and approved by the Minister for the Environment.
Initiation of MSP projects	Marine areas for MSP are identified by government (in the Marine Spatial Planning Strategy) and by the local community/iwi/stakeholders (through an application process made to the Minister for the Environment). Candidate marine areas are considered against a set of criteria. Automatic triggers for MSP apply in instances of serious environmental decline. The EPA is responsible for formally initiating MSP processes.
Project Team	A Project Team is established consisting of specialist MSP-trained EPA staff, supplemented with staff seconded full time from MPI, DOC and relevant councils. External contractors would be brought in where needed to complete skill sets.
Funding	Costs of MSP are shared between local and central government, with the majority of funding coming from central government, and largely directed to the lead agency (EPA).
Project governance	A Marine Planning Partnership governs the plan making process. Membership comprises senior level or political representatives from relevant agencies and iwi/hapū organisations. An equal number of representatives from iwi/hapū and agencies are appointed (ie a 50:50 split).
Marine spatial plan preparation	A Collaborative Working Group is established comprising iwi/hāpu and stakeholders and senior agency staff. The Collaborative Working Group develops the plan on a consensus basis. Agency staff participate in the deliberations but are not asked to agree to the plan.
Science	At the beginning of an MSP process, a formal assessment of the condition of the relevant marine area and a summary of the significant pressures and human uses of the area is prepared by the EPA. A Chief Scientist is appointed as part of the project team to act as a conduit between the scientific information and the Collaborative Working Group.



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Design element	Recommended approach
Mātauranga Māori	Mātauranga Māori is integrated into the marine spatial plan through the establishment of a separate mātauranga Māori workstream. The workstream is established ahead of the collaborative planning process. Protocols around confidentiality and intellectual property are developed.
Plan content	Marine spatial plans have a non-regulatory component (eg a robust description of the health of the marine area, the pressures or issues faced, a vision statement, objectives and desired outcomes [including environmental bottom lines]). An action plan of the tasks needed to be undertaken to achieve the desired outcomes including programmes requiring funding (eg marine research, biosecurity, funding for coastal infrastructure, and restoration) would also be included. Marine spatial plans have a regulatory component (eg provisions intended to have regulatory effect). These might be objectives, policies or rules under regional policy statements or regional coastal plans; regulations under the EEZ Act; regulations or other decisions under the Fisheries Act; or decisions under the Marine Reserves Act and Marine Mammals Protection Act.
Plan approval	The Marine Planning Partnership approves a pre-consultation draft of the plan and forwards the plan to the EPA. The EPA publicly notifies the draft plan and receives public submissions. The Collaborative Working Group considers submissions on the non-regulatory elements of the plan and forwards recommendations to the Marine Planning Partnership for final approval. The Environment Court holds a hearing on the regulatory component of the marine spatial plan, considering all regulatory provisions as a package under relevant empowering legislation. The Environment Court releases its decision, recommending MSP provisions be made as proposed, or amended or rejected.
Plan implementation	Implementation under RMA: Environment Court directs the relevant local authority to amend RMA policy statements or plans without using Schedule 1 process (subject to appeals on matters of law only). Implementation under other legislation: Environment Court makes a recommendation to the responsible Minister. Responsible Minister must implement the recommendation of the Environment Court or, within a set timeframe, lay before the House of Representatives a written statement setting out the reasons for his or her decision not to implement them.
Monitoring and review	The EPA is responsible for oversight and coordination of a monitoring programme, with on-the-ground efforts largely undertaken by regional councils. A formal review of marine spatial plans is provided once every 5 years by the EPA.

Figure 1: MSP Key players and their roles

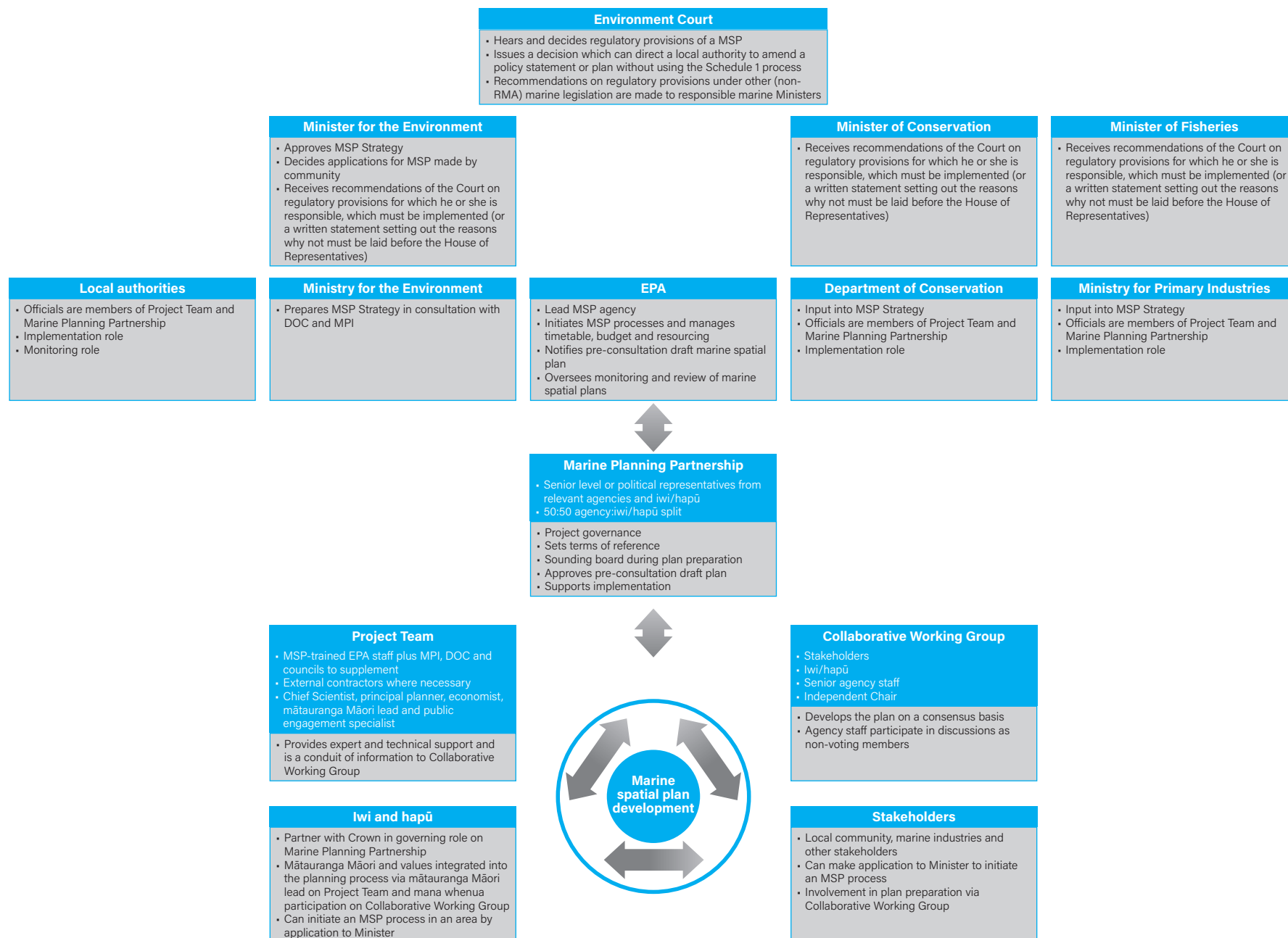
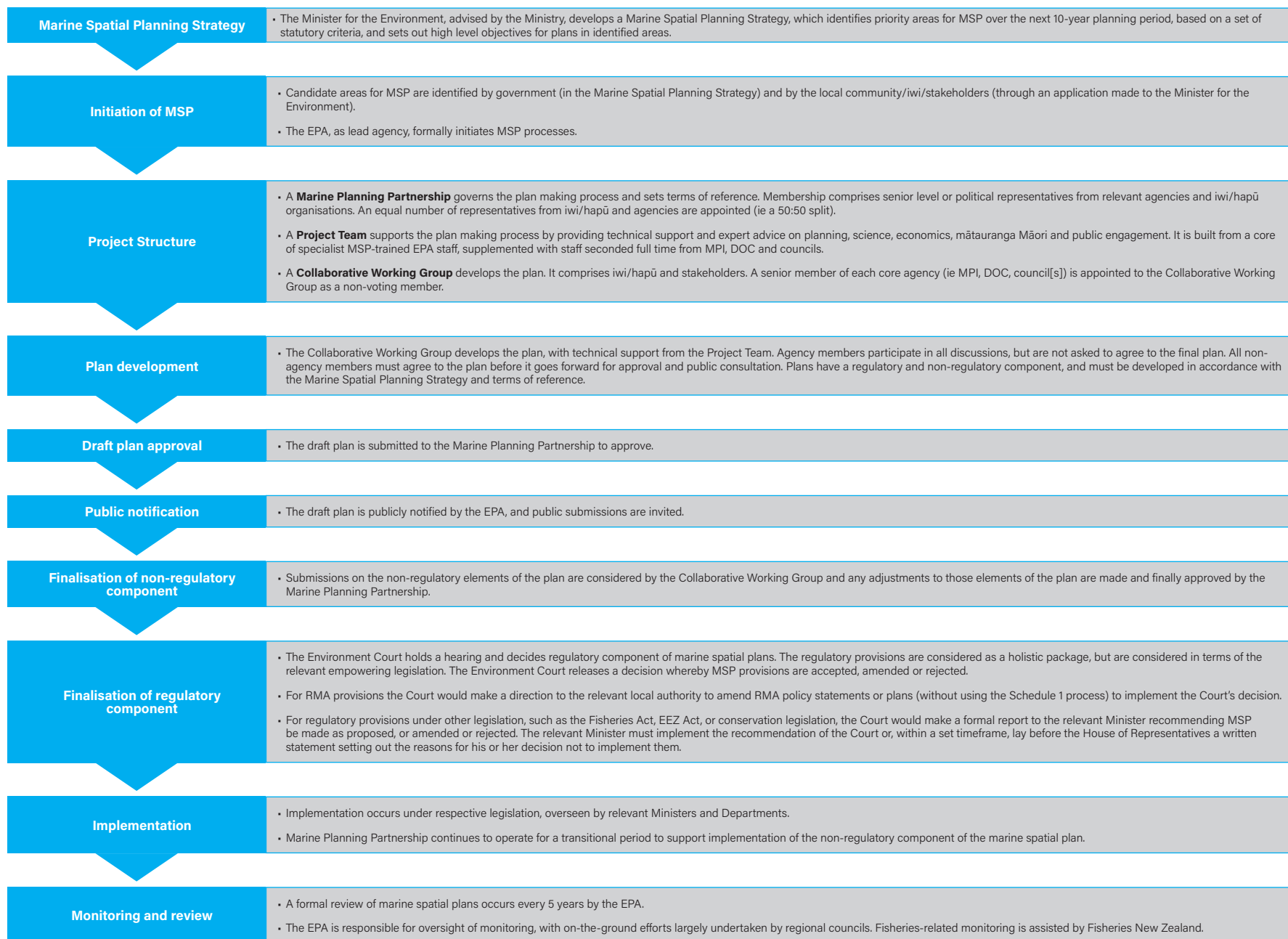


Figure 2: Steps in the MSP process



Three options for a New Zealand MSP framework

The following section presents three options for a framework for MSP in New Zealand. The options are presented as distinct proposals for ease of communication, but are intended to be thought of as pragmatic stepping stones along a pathway towards a fully developed framework for MSP. As such, no option is right or wrong, and each option could be progressed sequentially building on the groundwork already laid.

Option 1: Non-statutory marine spatial plans

Under Option 1, the initiation of MSP processes would be optional and marine spatial plans would be non-statutory (ie have no legal effect). That said, with sufficient and sustained political interest, respective agencies could concurrently work towards implementing the package of provisions in a marine spatial plan using existing legislative frameworks and other tools (eg funding and non-regulatory methods).

While the status quo is preserved under Option 1 (as far as the legislative framework goes), there are non-statutory opportunities that could be pursued to strengthen MSP efforts. These include development of a non-statutory **Strategy** for MSP and non-statutory best practice **Guidance** for undertaking MSP. As the government's principal advisor on environmental policy and legislation, the Ministry for the Environment could develop these documents (see subsection on who should lead MSP in New Zealand above).

The Strategy could be a non-statutory version of the Marine Spatial Planning Strategy outlined earlier (see subsection on MSP should be initiated above). It would identify priority areas for MSP over the next 10-year planning period and intended timeframes for the initiation of MSP projects. The Strategy would also set out specific content requirements for marine spatial plans in the identified areas, akin to a high level terms of reference for the preparation of plans in the identified areas.

Best practice Guidance on how to undertake MSP could complement the Strategy. Agencies, tangata whenua and stakeholders could draw on the Guidance as a resource during plan making. The Guidance could draw on recommendations for the various design features referred to in the first section of this chapter, noting these would be non-statutory. For example, recommendations relating to the project team, project governance, process for marine spatial plan preparation, science, mātauranga Māori and plan content could be applied to a non-statutory process.

A non-statutory process would lack a mechanism for direct implementation, but implementation could be facilitated through a statement in the plan of the

intended regulatory or non-regulatory effect of provisions and a clear allocation of tasks and responsibilities among agencies. With sufficient political will, various different agencies and Ministers, in theory, could concurrently work to implement the package of provisions in a marine spatial plan.

Alternative options for implementation could also be considered. These include (but are not limited to) promulgation of a Marine Spatial Planning National Policy Statement for one or more regions and passing bespoke regional legislation.

The RMA currently provides a mechanism for the Minister for the Environment to promulgate a national policy statement applying to specific regions to any specified district or region, or to any specified part of New Zealand.³⁰ Local authorities are required, if directed by national policy statements, to amend plans to include specific objectives and policies set out in the statement. This process must be undertaken without public consultation.³¹

Using this process, a Marine Spatial Planning National Policy Statement applying to a specified part of New Zealand could be used to amend RMA plans in a consistent and relatively quick manner to implement the RMA provisions of marine spatial plans. This process would, however, remove the usual opportunities for public participation in plan making, including a public hearing and opportunities for Environment Court oversight. It would therefore be recommended only if there had been strong agency, iwi, stakeholder and wider public involvement in the development of the marine spatial plan, and even then should be considered with some caution.

New Zealand also has three bespoke regional marine Acts. These include the Fiordland (Te Moana o Atawhenua) Marine Management Act, Kaikōura (Te Tai o Marokura) Marine Management Act and the Hauraki Gulf Marine Park Act. Continuing this practice, the passing of further bespoke regional marine legislation could be used to implement the provisions of a marine spatial plan. An example of how this could work is provided in the Kaikōura (Te Tai o Marokura) Marine Management Act. This Act establishes a marine reserve (in accordance with the Marine Reserves Act 1971);³² a whale sanctuary³³ and a New Zealand fur seal sanctuary (in accordance with the Marine Mammals Protection Act);³⁴ three mātaimai reserves (in accordance with the Fisheries (South Island Customary Fishing) Regulations 1999);³⁵ and two taiāpure-local fisheries (in accordance with the Fisheries Act 1996).³⁶

Assessment

Option 1 does not require statutory amendment or new legislation to implement. It therefore avoids the costs of a legislative process and results in minimal

institutional disruption. It also provides maximum flexibility to those preparing the plan with respect to process and content, potentially spurring innovation.

The minimal constraints in Sea Change with respect to plan content enabled novel solutions to be developed, including, for example, the creation of Ahu Moana co-management areas. The plan proposes these will be located in nearshore areas extending one kilometre seawards. They will be co-managed jointly by mana whenua and local communities to mobilise and focus the energy and knowledge of these parties towards improving the management of local fisheries and inshore coastal waters.

That said, there are some significant barriers to achieving a MSP process that performs the key functions set out in the previous chapter. Perhaps most obviously, there is a risk that MSP is simply not initiated under Option 1, potentially continuing a general absence of management in the marine environment noted elsewhere in this report. Even if an MSP project was initiated, there is a risk that the plan would not be completed, or would founder at the implementation phase. This may be a risk even in statutory MSP processes, but is particularly relevant to non-statutory MSP processes, where the impetus may be weaker. In the absence of statutory requirements for marine spatial plans to be developed and implemented, non-statutory MSP processes rely on strong political leadership and interest being maintained over multiple years. As noted earlier, with respect to Sea Change, this can be particularly difficult with New Zealand's three-year election cycle.

Option 1 also leaves the integrative function of the non-statutory marine spatial plan somewhat in doubt. There is no mandate to engage all agencies in the planning exercise (although a non-statutory Marine Spatial Planning Strategy would assist in providing some leverage for this). There is also no clear path for implementation (eg through legal influence on lower level regulatory and funding decisions, or the ability for provisions to take direct effect). While a Marine Spatial Planning National Policy Statement could amend RMA plans in a consistent and relatively quick manner to implement MSP provisions, it would have limited influence over decision-making under other legislation (eg Fisheries Act).

Even with a high level of political interest and commitment to implementation, there are less than ideal procedural issues associated with this option. Processes such as iwi/hapū and stakeholder participation, scientific input, and agency consideration of planning provisions would be duplicated under the MSP process and again under the relevant statutory framework. This would be costly in terms of agency resources and may lead to general consultation fatigue. In a similar way, the passing of further bespoke regional marine legislation in order to implement marine spatial plans would be both costly and require duplication of agency,

iwi/hapū and stakeholder effort. It also contributes to ongoing fragmentation of marine legislation. In addition, implementation occurs under existing legislation, which has different purposes and is overseen by different Ministers. As such, there is no guarantee that plan provisions will be implemented as a package.

The other functions of an MSP framework referred to in the previous chapter would also be somewhat in doubt in the absence of a statutory framework that specifically realises these roles. For example, if MSP seeks to fulfil Crown obligations under the Treaty in the coastal and marine environment, this function may be better achieved through upfront legislative recognition about how it should occur. The preparation and application of guidance for undertaking MSP, drawing on the recommendations for key design elements presented earlier in this chapter, would assist.

Option 1 does not require statutory amendment or new legislation to implement, and some of the elements of this option have already been progressed through the Sea Change process. Current efforts to implement Sea Change, while in the early stages, are indicative of what might be achieved when different agencies and Ministers work together to implement the provisions in a non-statutory marine spatial plan. This option provides agencies with the opportunity to further develop MSP skill sets, and to pilot different approaches, which, in time could set these agencies up well to embark on the statutory MSP described in Option 2.

Option 2: A Spatial Planning Act

Option 2 builds on the concept of a Spatial Planning Act presented in EDS's *Reform of the Resource Management System: The Next Generation – Synthesis Report*. That report proposes (as one of many options for consideration), the promulgation of a Spatial Planning Act that would mandate the creation of spatial plans to encourage integrated decision-making under the RMA, Local Government Act 2002, Land Transport Management Act 2003 and other statutes.³⁷

The Spatial Planning Act would align decision-making that had spatial components, especially land use planning and infrastructure funding decisions, which are important to the management of rapid urban growth. Spatial plans would be overarching in nature, sitting over the top of other statutory frameworks and would have legally mandated pathways to implementation (eg through regulatory and funding tools made under other statutory frameworks).³⁸

Spatial planning is a tool that is applied in (and across) terrestrial and marine contexts, and a framework specifically for MSP could be included in a Spatial Planning Act, as envisioned in the *Synthesis Report*. That said, there are some important differences between terrestrial spatial planning and MSP that would need careful consideration in the legislation.

As Chapter 3 explains, for New Zealand's purposes MSP is usefully viewed as a tool to implement ecosystem-based management of our marine environment. The goal of ecosystem-based management is to maintain ecosystems in a healthy, productive and resilient condition so they can provide the goods and services humans want and need.³⁹ In addition, key functions that a framework for MSP needs to perform are the protection and restoration of the marine environment and providing for the setting of environmental bottom lines.

In contrast, terrestrial spatial planning, in New Zealand's case, is likely to be focused on the need to align decision-making under legislation that has spatial components, such as land use planning and infrastructure funding decisions. In this sense, the role of spatial planning on land may be weighted more towards its integrative role than towards its role in achieving healthy and productive ecosystems and other environmental outcomes (although this will still be a relevant role).

The complex and interconnected nature of the marine environment also requires consideration in designing spatial planning legislation. In terrestrial spatial planning we have a better understanding of where the boundaries of activities start and stop, and of the scale at which their impacts may occur. Marine environments do not react to development pressures based on the traditional notions of 'sites' and 'boundaries'. Understanding impacts in marine environments requires spatial planning approaches that consider chains of causation and an understanding of the complexity and fluidity of marine environments.⁴⁰

These differences are likely to require different approaches to the design of spatial planning processes on land and in the ocean. To reflect these differences, we suggest a Spatial Planning Act would have two parts: the first part would provide a framework for terrestrial spatial planning (beyond the scope of this project), and the second part would provide a framework for MSP.

The marine component of the Spatial Planning Act would be a statutory expression of the key design elements recommended in the first section of this chapter, and these are recapped below.

The Spatial Planning Act would establish the EPA as lead agency for MSP and task it with initiating MSP processes, project management, plan notification and submission processes, and oversight of plan implementation, monitoring and review.

The Spatial Planning Act would require the Minister for the Environment, advised by the Ministry for the Environment, to develop a Marine Spatial Planning Strategy, as proposed earlier in this chapter. The Strategy would identify priority areas for MSP over the next 10-year planning period, based on a set of statutory criteria, and set out high level objectives for marine spatial plans in the identified areas. The Act would also provide a process for any person (eg an iwi, hapū,

commercial users or members of the local community) to apply to the Minister to get a MSP process initiated in a marine area, subject to consideration of the application against the statutory criteria.

The EPA, as lead agency, would be responsible for formally initiating MSP processes in accordance with the Marine Spatial Planning Strategy or community-driven initiatives. This would include establishing a Project Team, as described earlier in this chapter.

The Spatial Planning Act would require the establishment of a 'Marine Planning Partnership' to govern the plan making process. This would comprise of senior level or political representatives from relevant agencies and iwi/hapū organisations. The Act would require an equal number of representatives from iwi/hapū and agencies to be appointed (ie a 50:50 split).

The Spatial Planning Act would require the establishment of a Collaborative Working Group comprising stakeholders and iwi/hapū who would develop the plan on a consensus basis. An Independent Chair would be appointed by the EPA to chair meetings. Senior agency staff would be appointed to the group but would not be asked to agree to the final plan. This would help ensure that the final plan



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contained a set of implementable actions (from an agency perspective) and that the plan would be cognisant of existing agency programmes and budgetary cycles.

The Spatial Planning Act would require a formal assessment of the condition of the relevant marine area and a summary of the significant pressures on, and human uses of, the area before plan making commenced. It would also require the appointment of a Chief Scientist as part of the Project Team (see subsection on science above).

The Spatial Planning Act would require integration of mātauranga Māori into the marine spatial plan. It is suggested that this occurs through the establishment of a separate mātauranga Māori workstream. Protocols around confidentiality and intellectual property would be developed (see subsection on mātauranga Māori above).

The Spatial Planning Act would set out minimum requirements for plan content, drawing on the content elements outlined earlier in this chapter. The plan would be required to clearly identify provisions that were regulatory and those that were non-regulatory. Planning or legal staff from agencies would draft the regulatory provisions to ensure the language of provisions was consistent with regulatory language, and that provisions were sufficiently clear and implementable. For each regulatory provision the plan would make explicit the applicable statute and the nature of the provision (eg objective, rule or regulation).

The Spatial Planning Act would follow the process described earlier in this chapter for plan approval, whereby at the point where the Collaborative Working Group had agreed on a draft marine spatial plan, the plan would be submitted to the Marine Planning Partnership for approval. Following approval by the Partnership, the plan would be publicly notified by the EPA and public submissions invited.

The EPA would then lodge the draft plan, submissions and a summary of submissions with the Environment Court. The Court would hold an inquiry (including a public hearing) on the regulatory component of the marine spatial plan, considering all regulatory provisions under their relevant empowering legislation.

Submissions on the non-regulatory elements of the plan could be considered by the Collaborative Working Group and any adjustments to those elements of the plan made before forwarding to the Marine Planning Partnership for final approval.

On completion of its inquiry into the regulatory component of the marine spatial plan, the Environment Court would make a report recommending provisions be made as proposed, or amended or rejected. Provisions approved to take effect as objectives, policies or rules under RMA statutory plans would be inserted directly into regional policy statements and regional or district plans with no Schedule 1 process.

For provisions intended to take effect under other legislation (eg Fisheries Act, EEZ Act or conservation legislation), the relevant Minister would be required to implement the recommendation of the Environment Court or, within a set timeframe, lay before the House of Representatives a written statement setting out the reasons for his or her decision not to implement them. This is similar to the process adopted currently in the RMA for water conservation orders.⁴¹

The Marine Planning Partnership would operate for a transitional period after the release of the Environment Court's report to support implementation of the marine spatial plan.

The EPA would be responsible under the Spatial Planning Act for oversight and coordination of a monitoring programme, with on-the-ground efforts largely undertaken by regional councils. A formal review of marine spatial plans would be required once every five years by the EPA.

Assessment

Option 2 provides a significantly more integrated approach to marine management than the status quo. It achieves this through the development of marine spatial plans that have clear mechanisms for implementation as a holistic package. That said, implementation still occurs under existing legislation, which has different purposes and is overseen by different Ministers. Even with Environment Court endorsement, there is risk some provisions will be rejected by one or more Ministers, notwithstanding other parts of the plan being successfully implemented.

Option 2 also provides a range of mechanisms that would appear to better support protection and restoration of the marine environment and the setting of environmental bottom lines than the status quo. For example, it provides a statutory mandate for MSP which includes an automatic trigger for MSP processes in instances of serious environmental decline and a requirement for a MSP strategy which identifies candidate areas and timeframes. These provisions would ensure MSP gets initiated when it is most needed. Also, the requirements to establish desired management outcomes (including environmental bottom lines) and to identify key performance indicators (eg nutrients, sediment, biodiversity values or fish stocks) provide a mechanism to ensure outcomes relating to ecosystem health are regularly scrutinised and progress is transparent.

Enshrining a co-governance structure in the Spatial Planning Act itself, whereby Marine Planning Partnerships have equal representation of iwi/hapū and agencies, would also be consistent with a key function of a framework, being to provide a platform for iwi and hapū, as kaitiaki, to be partners in management in the coastal and marine environment.

Option 2 also provides clarity and certainty over how local communities, user groups and industry will be engaged in MSP processes, and in doing so provides for current and future use and enjoyment of New Zealand's marine environment. It also performs the strategic function of MSP, in requiring development of a Marine Spatial Planning Strategy and specifying minimum content requirements (a vision statement, objectives, desired outcomes for the plan and measures to achieve them).

This option would require some institutional change, most significantly to the EPA, which would need to actively build marine science and marine planning expertise in order to fulfil the role as lead agency. New overarching legislation is required, but existing marine management regimes remain intact under their distinct statutory frameworks. Therefore, this option is likely to be achievable in the mid-term (18 months-2 years). It can also be usefully considered as a pragmatic stepping stone along a pathway towards the fully developed framework for MSP described in Option 3.

Option 3: An Oceans Act

This option involves reform of New Zealand's marine management system and the passing of broad overarching marine legislation in the form of an 'Oceans Act'. Existing legislation, including the RMA (to the extent it applies to the coastal marine area), the EEZ Act, the Fisheries Act, the Marine Reserves Act, the Marine Mammals Protection Act, the Maritime Transport Act, and the marine provisions of the Wildlife Act (seabirds and marine species), would be rationalised and brought together under the new Act. The Marine and Coastal Area (Takutai Moana) Act 2011 would remain separate.

A similar rationalising approach was adopted in the UK when it passed the Marine and Coastal Access Act 2009. The UK Act includes fisheries management, marine protected areas, marine mammal protection, marine planning, marine licensing, marine pollution and enforcement. The Act's geographical ambit includes both the territorial sea and the EEZ.

A clear purpose statement would be included in the Oceans Act. A dual purpose statement could be considered such as 'Sustainable management and protection and enhancement of the health of the New Zealand marine area', which is akin to that adopted by the Marine (Scotland) Act 2010.

In terms of institutional reform, the legislation would provide for a new 'Oceans Agency'. It would be responsible for a broad range of functions including fisheries management, marine protected areas, marine mammal protection, shipping, marine pollution and enforcement. It also would be responsible for overseeing MSP. The Oceans Agency would operate at arm's length of the government. A model akin to the EPA could be adopted where the Oceans Agency would be

governed by an independent board whose members are appointed by the relevant Minister. The Oceans Agency would have core funding to adequately perform the above functions.

The UK's Marine Management Organisation has a similarly broad range of responsibilities that include fisheries management, marine protected areas, marine mammal protection, marine planning, marine licensing, marine pollution and enforcement. It is also a non-departmental public body with an independent board.

The Oceans Act would establish overarching principles for marine management. There would also be a requirement in the Act for a 'Marine Policy Statement', which would be a long-term overarching policy document for the marine and coastal environment that would articulate national policy positions and guide decision-making.

The Oceans Act would also contain a framework for MSP. This would require the statutory expression of many of the key design elements recommended earlier in this chapter and traversed in Option 2, although there would be some important differences.

The Oceans Agency would be the lead agency for MSP (rather than the EPA). The Agency would prepare a Marine Policy Statement and prepare the Marine Spatial Planning Strategy, with both documents approved by a new Minister for Oceans.

The Marine Spatial Planning Strategy could, under the Oceans Act, form part of the more comprehensive Marine Policy Statement. This is the approach taken in Victoria, Australia, where the state's Marine and Coastal Policy is required to include a MSP framework that establishes a process for achieving integrated and coordinated planning and management of the marine environment.⁴²

The Oceans Act (like the Spatial Planning Act) would include criteria to be considered in deciding where to progress MSP, although a new Minister for Oceans would be the decision-maker, approving candidate areas for inclusion in the Strategy, and approving community applications.

A Marine Planning Partnership would also govern MSP processes under an Oceans Act framework. Stakeholders and iwi/hapū representatives would collaboratively develop the plan, with senior members of each core agency participating as non-voting members. Provision for science and mātauranga Māori would be consistent with that recommended for the Spatial Planning Act.

Plan approval and implementation would be far more streamlined as most mechanisms for implementation would be contained within the Oceans Act and implemented by the Oceans Agency, with the exception of catchment-based plan provisions that would need to be implemented in RMA plans and policy

statements. Public notification, submissions, and a hearing by the Environment Court would also be required under the Oceans Act framework.

The Oceans Agency would be required to oversee a monitoring programme that assessed (1) the state of the environment in the marine spatial plan area and (2) the performance of management measures contained in the marine spatial plan. As described with respect to Option 2, the results of the monitoring programme would be used to adapt the marine spatial plan, with a formal review of the marine spatial plan and recommendations for its updating to be provided once every five years.

Assessment

Option 3 constitutes wide-ranging legislative reform of marine management, requiring significant new legislation, the disestablishment of existing government business units (eg Fisheries New Zealand) and the establishment of a new Oceans Agency. The costs of the legislative process and degree of institutional disruption would be the greatest of the three options proposed.

Option 3 puts into place a thoroughly integrated approach to marine management. Implementation of marine spatial plans would be far more streamlined as most mechanisms for implementation would be contained within the Ocean Act and lie within the jurisdiction of the Oceans Agency (with the exception of catchment-related management).

The incorporation of 'protection and enhancement' into the purpose of the Oceans Act coupled with dedicated funding awarded to the Oceans Agency for this purpose would also likely facilitate better achievement of the 'protect and restore the marine environment' function sought for a MSP framework.

This option brings much greater independence and centralisation in the setting of environmental bottom lines than Option 1 or 2. Recall Option 2 provides flexibility for individual plans (prepared by local and central government agencies, iwi/hapū and stakeholders) to set environmental bottom lines. In contrast, the Oceans Act would set high level bottom lines, and these would be supported by more detailed environmental bottom lines set through a Marine Policy Statement. This may improve the health of the marine environment by depoliticising some environmental bottom lines around which there is social consensus.

The formation of a new statutory institution in the form of an Oceans Agency would require consideration of the Crown's Treaty obligations in the coastal and marine environment, including consideration of how to provide a platform for iwi and hapū, as kaitiaki, to be partners in management in the coastal and marine environment. This would likely need to be through a strong direction in an Oceans Act and would need to ensure the structure, governance and processes of the institution were reflective or representative of Māori interests.

Summary of key options

Option 1	Non-statutory marine spatial plans	No regulatory or statutory changes Provides opportunity to develop a non-statutory Strategy and best practice Guidance for design of MSP processes so they most effectively perform key functions identified Provides opportunity to further develop MSP skill sets within relevant agencies Could be progressed immediately, and work is already underway in some areas (eg current efforts to implement Sea Change)
Option 2	Spatial Planning Act	Provides a statutory mandate and process for MSP with the passing of a Spatial Planning Act Spatial plans would be overarching in nature, sitting over the top of other statutory frameworks and have legally mandated pathways to implementation. Requires relevant agencies, particularly EPA, to actively build marine science and marine planning skill sets Existing marine management regimes (fisheries, RMA, conservation, EEZ etc) remain intact under their distinct statutory regimes. This option achievable in the mid-term (18 months-2 years).
Option 3	Oceans Act	Involves reform of New Zealand's marine management system and the passing of a new Oceans Act Provides a fully developed, integrated, framework for MSP embedded in comprehensive marine management legislation (covering fisheries management, marine protected areas, marine mammal protection, shipping, marine pollution and enforcement) Involves significant statutory reform and institutional change in the form of a new Oceans Agency This approach could be actioned in the longer term (3–5 years).

KEY MESSAGES

MSP could be successfully implemented in New Zealand with a statutory or non-statutory framework. As an example of the latter, **Option 1: Non-statutory marine spatial plans** is presented as a useful short-term option to further develop MSP skill sets and to pilot different approaches. However, without the development of a statutory framework in the longer term, there is a risk that MSP is not initiated or MSP processes fail to perform the key functions set out in the previous chapter, seriously undermining their value.

Drawing on the rich body information provided by Sea Change, interviews with New Zealand experts, and the review of international frameworks for MSP, two workable and effective statutory options are proposed for implementing MSP in New Zealand.

- **Option 2: A Spatial Planning Act** establishes a mandate and process for MSP with the passing of a Spatial Planning Act. It positions the EPA as lead agency for MSP, supported by a policy framework developed by the Ministry for the Environment. Spatial plans are overarching in nature, sitting over the top of other statutory frameworks and have legally mandated pathways to implementation. Existing marine management regimes remain intact under their distinct statutory regimes, which makes this option achievable in the short to mid-term (18 months–2 years).
- **Option 3: An Oceans Act** involves the creation of an Oceans Act that provides a fully developed integrated framework for MSP embedded in comprehensive marine management legislation. A new Oceans Agency, operating at arm's length of the government, would be responsible for overseeing MSP, in addition to a broad range of other marine functions (including fisheries management, marine protected areas, marine mammal protection, shipping, marine pollution and enforcement). This approach involves significant statutory reform and therefore could be actioned in the long term (3–5 years).

These three options can be thought of as pragmatic stepping stones along a pathway towards the fully developed framework for MSP envisaged in Option 3. As such, no option is right or wrong, and each option could be progressed sequentially drawing on the groundwork already laid. New Zealand is not starting from scratch in this regard, and current efforts to implement Sea Change, while in the early stages, form an excellent base to build from.



Russell

Endnotes

- 1 Peart and Cox, 2018, 38
- 2 RMA, s 30(1)(a)
- 3 Extending seawards 12 nautical miles
- 4 DOC, 2018
- 5 Conservation Act, s 6 and schedule 1
- 6 Environment Act 1986, s 31
- 7 Environmental Protection Authority Act 2011, s 8; Crown Entities Act 2004, schedule 1
- 8 Environmental Protection Authority Act 2011, s 12
- 9 The EPA decides applications for publicly notified applications for marine discharge and dumping activities, and all non-notified applications. In practice these are delegated to EPA-appointed decision-making committees. Publicly notified marine consent applications for section 20 restricted activities (eg mining) are decided by a Board of Inquiry process, similar to that under the RMA
- 10 Fisheries Act 1996, s 8(1)
- 11 Marine Reserves Act 1971, s 5(7)
- 12 Peart and Cox, 2018, 8
- 13 RMA, s142(3)
- 14 Details of the course can be found at <http://www.iuav.it/Didattica1/master/master---1/Erasmus-Mu/index.htm>
- 15 Peart and Cox, 2018, 13
- 16 Peart and Cox, 2018, 64
- 17 EPA, 2018
- 18 Marine (Scotland) Act 2010, s 12
- 19 Scottish Government, nd
- 20 Hewitt et al, 2018
- 21 This occurred in both Sea Change's and the South-East Marine Protection Forum's recommendations
- 22 Marine (Scotland) Act 2010, s 5(4)
- 23 Commonwealth of Massachusetts, chapter 21A of the General Laws, s 4C(d) and (h)
- 24 Marine and Coastal Act 2018 (Victoria), s 16
- 25 Oceans Act 1996, s 43
- 26 Sea Change Tai Timu Tai Pari, 2017, 28
- 27 RMA, s 149
- 28 RMA, s 215
- 29 Fisheries Act 1996, s 12(1)(b)
- 30 RMA, s 45A
- 31 RMA, s 55
- 32 Kaikōura (Te Tai o Marokura) Marine Management Act 2014, ss 9 and 10
- 33 Kaikōura (Te Tai o Marokura) Marine Management Act 2014, s 11
- 34 Kaikōura (Te Tai o Marokura) Marine Management Act 2014, s 12
- 35 Kaikōura (Te Tai o Marokura) Marine Management Act 2014, ss 21, 22, and 23
- 36 Kaikōura (Te Tai o Marokura) Marine Management Act 2014, ss 26 and 27
- 37 Severinsen and Peart, 2018, 295
- 38 Severinsen and Peart, 2018, 270
- 39 Ehler and Douvere, 2009
- 40 Gazzola et al, 2015
- 41 RMA, s 215
- 42 Marine and Coastal Act 2018, s 24 (Victoria, Australia)



Conclusions

Plimmerton

This report began with the observation that ‘business as usual’ marine management is struggling to improve the poor environmental outcomes observed in our marine environment. New tools and approaches are clearly needed if we are to protect and restore coastal and marine ecosystems, and maintain the delivery of valuable ecosystem services for future generations.

Global threats of ocean acidification and ocean warming from climate change are highly likely to intensify throughout this century, and various environmental indicators in New Zealand’s marine environment remain suppressed at low levels or point towards progressive decline. Management of these pressures is complicated due to the interconnected nature of the marine environment, where it can be difficult, and often impossible, to link a specific activity with adverse effects on ecological health.

Other marine management challenges arise from New Zealand’s large number of fragmented and, in some cases dated, pieces of marine legislation. Marine management falls through the gaps between various legislative frameworks, lacks fundamental alignment across regimes, and often fails to join up action by agencies on cross-cutting issues (such as marine habitat protection). Fisheries management in particular exhibits a narrow approach focused on individual species, and the current lack of management of the impacts of fishing activity on marine habitats and ecosystems creates impediments to an integrated system of marine management.

That said, existing legislation is not without provisions for the integrated management of the marine environment, which is an explicit or implicit objective in much of New Zealand’s legislation, with the RMA most notable in this regard. However, integrated management has not eventuated, or is at best nascent, in many marine areas due to various practical barriers to implementation, including funding and marine planning capability.

This report has specifically addressed how MSP can assist in responding to these and other marine management challenges and at the same time offer considerable social, economic and ecological benefits. It has also outlined how undertaking MSP through non-statutory processes, with implementation achieved using existing legislative mechanisms, is likely to undermine the value of MSP and risk foundering of the project at the implementation stage.

For a non-statutory plan to be successfully implemented, strong political leadership and interest would need to be present and be maintained over multiple years. This can be difficult with New Zealand’s three-year political cycles. Non-statutory MSP processes will also usually require a duplication of public processes and may result in the plan losing its integration and coherence. Perhaps most fundamentally, there is no compulsion to undertake MSP, even

if there are pressing issues in the marine environment, including serious environmental degradation. A statutory framework that both initiates MSP and provides agencies, iwi, hapū and stakeholders with a process for undertaking MSP could ultimately spur effort in this area.

Drawing on the rich body information provided by Sea Change, interviews with New Zealand experts, and a review of international frameworks for MSP, three options have been proposed for implementing MSP in New Zealand:

1. Non-statutory marine spatial plans
2. A Spatial Planning Act
3. An Oceans Act

These options can be thought of as pragmatic stepping stones along a pathway towards the fully developed framework for MSP. Each option could be progressed sequentially, drawing on the groundwork already laid. New Zealand is not starting from scratch in this regard, and current efforts to implement Sea Change, while in the early stages, form an excellent base to build from.

We conclude with the finding that the two statutory options proposed – Options 2 and 3 – offer workable and effective approaches that go a significant way to achieving the functions sought for MSP. They achieve a fully integrated approach to marine management, provide for current and future use and enjoyment of New Zealand’s marine environment, and facilitate strategic planning. They also provide a process to recognise obligations to tangata whenua under the Treaty of Waitangi/Te Tiriti of Waitangi, including the integration of mātauranga Māori relating to the coastal and marine environment. Finally, they provide for the setting of clear and strong environmental bottom lines and offer a more effective means to protect and restore the marine environment.



Maraetai

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New Zealand faces considerable challenges in managing its extensive marine realm. Marine spatial planning is increasingly being adopted overseas as a strategic, forward-looking approach to managing current and future activities while ensuring the health of the marine environment. The Sea Change Tai Timu Tai Pari project in the Hauraki Gulf was the first fully-integrated marine spatial plan to be developed in New Zealand. Building on the lessons from the Sea Change project, and drawing on legal frameworks from seven jurisdictions around the world, this report explores non-statutory and statutory options for implementing marine spatial planning in New Zealand more widely. It will be of considerable interest to marine policy makers, managers, advisors and users as well as everyone with an interest in ensuring a healthy marine environment.